



THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Ministry of Agriculture, Livestock, Land and Irrigation

Climate Resilience Multiphase Programmatic Approach (CResMPA)

Request for Proposals Consulting Services

Procurement of:

*Consultant Service for designing and developing a
Decision Support System (DSS) to enhance
Emergency Preparedness and Response for
Disaster Risk Reduction*

RFP No: SLMOI/CRES/DMC/C/QCBS/137

Client: Climate Resilience Multi-Phase Programmatic Approach (CResMPA)

Country: Sri Lanka

Issued on: 11th August 2025

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PART I

Section 1. Request for Proposal Letter



THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Ministry of Agriculture, Livestock, Land and Irrigation
Climate Resilience Multiphase Programmatic Approach (CResMPA)

Request for Proposal Letter Consulting Services

Name of Assignment: Consultant Service for designing and developing a Decision Support System (DSS) to enhance Emergency Preparedness and Response for Disaster Risk Reduction

RFP Reference No.: SLMOI/CRES/DMC/C/QCBS/137

Loan No.: IBRD-89960

Country: Sri Lanka

Date: 11th August 2025

Percent Technology Group Co.Ltd-
No.02, Sixth Lane, Colombo 03, Sri Lanka

JV with Xeptagon Pvt Ltd, Baththaramulla

1. The Democratic Socialist Republic of Sri Lanka (hereinafter called "Borrower") has received financing from the International Bank for Reconstruction and Development (IBRD) (the "Bank") in the form of a "loan" (hereinafter called "loan") toward the cost of Climate Resilience Multiphase Programmatic Approach (CResMPA). The Disaster Management Centre, an implementing agency of the Client, intends to apply a portion of the proceeds of this loan to eligible payments under the contract for which this Request for Proposals is issued.
2. The Client now invites proposals to provide the following consulting services (hereinafter called "Services"): Consultant Service for designing and developing a Decision Support System (DSS) to enhance Emergency Preparedness and Response for Disaster Risk Reduction. More details on the Services are provided in the Terms of Reference (Section 7).

3. This Request for Proposals (RFP) has been addressed to the following shortlisted Consultants:

- I. Hayley's Fenton's -200, Deans Road, Colombo 03, Sri Lanka
Sub Consultant- Omobio Pvt Ltd- No.01, St. Alban's Place, Colombo 04, Sri Lanka
- II. Millenium I.T.E.S.P. Pvt Ltd – No.450D, R.A.De Mel Mawatha,Colombo 03, Sri Lanka.
JV with Celeta Tech Pvt Ltd – No.97 ¼, Mount View Residencies Moratuwa.
- III. Percent Technology Group Co.Ltd- No.02, Sixth Lane, Colombo 03, Sri Lanka
JV with Xeptagon Pvt Ltd- No 157/16, Robert Gunawardana Mawatha, Baththaramulla, Sri Lanka.
- IV. Dialog Broadband Networks Pvt Ltd No. 475, Union Place, Colombo 02.
JV with NCINGA Pvt Ltd – Level 19-A, Parkland Building, No.33, Park Street, Colombo 02.
- V. Just in Time Technologies Pvt Ltd- No.370, 4th floor, Galle Road, Colombo 03, Sri Lanka
JV with GIS Solutions Pvt Ltd No.370, Galle Road, Colombo 03, Sri Lanka and Altria Consulting Pvt Ltd – 98/3, Havelock Road, Colombo 05, Sri Lanka.
- VI. Ernst and Yong – No109, Rotunda Gardens, Colombo 03, Sri Lanka.
- VII. Asian Disaster Preparedness Center (ADPC) – SM Tower, 24th Floor, 979/66-70, Paholyothin Road, Phyanthai, Bangkok, Thailand.
JV with Naxa Pvt Ltd, Kathmandu, Nepal, Geo Edge Pvt Ltd, Sri Lanka, Infortechns IDEAS (PVT) LTD and Sri Lanka, Spatial Information Group (SIG), USA

4. It is not permissible to transfer this RFP to any other firm.

5. A firm will be selected under Quality and Cost Based Selection (QCBS) procedures and in a Full Technical Proposal (FTP) format as described in this RFP, in accordance with the Bank's "Procurement Regulations for IPF Borrowers" **February 2025** ("Procurement Regulations"), which can be found at the following website: www.worldbank.org

The RFP includes the following documents:

Section 1 – Request for Proposals Letter

Section 2 - Instructions to Consultants and Data Sheet

Section 3 - Technical Proposal (FTP) - Standard Forms

Section 4 - Financial Proposal - Standard Forms

Section 5 – Eligible Countries

Section 6 – Fraud and Corruption

Section 7 - Terms of Reference

Section 8 - Standard Forms of Contract (Lump-Sum)

6. Please inform us by 15th August 2025, in writing at **Project Director - Climate Resilience Multi-Phase Programmatic Approach, No 11, Jawatta Road, Colombo 05**, by E-mail: **pdcresmpa@gmail.com**:
- (a) that you have received this Request for Proposals; and
 - (b) whether you intend to submit a proposal alone or intend to enhance your experience by requesting permission to associate with other firm(s) (if permissible under Section 2, Instructions to Consultants (ITC), Data Sheet 14.1.1).
7. Attention is drawn to the Procurement Regulations requiring the Borrower to disclose information on the successful Consultant's beneficial ownership, as part of the Contract Award Notice, using the Beneficial Ownership Disclosure Form as included in the Request for Proposals.
8. Details on the proposal's submission date, time and address are provided in ITC 17.7 and ITC 17.9.

Yours sincerely,



Project Director - Climate Resilience Multi-Phase Programmatic Approach
No 11, Jawatta Road,
Colombo 05
Sri Lanka
Tel: +9411-2058451 / +9411-2507855
Email: pdcresmpa@gmail.com

Section 2. Instructions to Consultants and Data Sheet

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Instructions to Consultants

A. General Provisions

1. Definitions

- (a) **“Affiliate(s)”** means an individual or an entity that directly or indirectly controls, is controlled by, or is under common control with the Consultant.
- (b) **“Applicable Law”** means the laws and any other instruments having the force of law in the Client’s country, or in such other country as may be specified in the **Data Sheet**, as they may be issued and in force from time to time.
- (c) **“Bank”** means the International Bank for Reconstruction and Development (IBRD) or the International Development Association (IDA).
- (d) **“Borrower”** means the Government, Government agency or other entity that signs the *[loan/financing/grant¹]* agreement with the Bank.
- (e) **“Client”** means the implementing agency that signs the Contract for the Services with the selected Consultant.
- (f) **Client’s Personnel** is as defined in Clause GCC 1.1 (e).
- (g) **“Consultant”** means a legally-established professional consulting firm or an entity that may provide or provides the Services to the Client under the Contract.
- (h) **“Contract”** means a legally binding written agreement signed between the Client and the Consultant and includes all the attached documents listed in its Clause 1 (the General Conditions of Contract (GCC), the Special Conditions of Contract (SCC), and the Appendices).
- (i) **“Data Sheet”** means an integral part of the Instructions to Consultants (ITC) Section 2 that is used to reflect specific country and assignment conditions to supplement, but not to over-write, the provisions of the ITC.
- (j) **“Day”** means a calendar day, unless otherwise specified as **“Business Day”**. A Business Day is any day that is an official working day of the Borrower. It excludes the Borrower’s official public holidays.

¹ [*“loan agreement” term is used for IBRD loans; “financing agreement” is used for IDA credits; and “grant agreement” is used for Recipient-Executed Trust Funds administered by IBRD or IDA*]

- (k) **“Experts”** means, collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-consultant or Joint Venture member(s).
- (l) **“Government”** means the government of the Client’s country.
- (m) **“in writing”** means communicated in written form (e.g. by mail, e-mail, fax, including, if specified in the Data Sheet, distributed or received through the electronic-procurement system used by the Client) with proof of receipt;
- (n) **“Joint Venture (JV)”** means an association with or without a legal personality distinct from that of its members, of more than one Consultant where one member has the authority to conduct all business for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.
- (o) **“Key Expert(s)”** means an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose CV is taken into account in the technical evaluation of the Consultant’s proposal.
- (p) **“ITC”** (this Section 2 of the RFP) means the Instructions to Consultants that provides the shortlisted Consultants with all information needed to prepare their Proposals.
- (q) **“Non-Key Expert(s)”** means an individual professional provided by the Consultant or its Sub-consultant and who is assigned to perform the Services or any part thereof under the Contract and whose CVs are not evaluated individually.
- (r) **“Proposal”** means the Technical Proposal and the Financial Proposal of the Consultant.
- (s) **“RFP”** means the Request for Proposals to be prepared by the Client for the selection of Consultants, based on the SPD - RFP.
- (t) **“Services”** means the work to be performed by the Consultant pursuant to the Contract.
- (u) **“Sexual Exploitation and Abuse” “(SEA)”** means the following:

Sexual Exploitation is defined as any actual or attempted abuse of position of vulnerability,

differential power or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another.

Sexual Abuse is defined as the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

- (v) **“Sexual Harassment” “(SH)”** is defined as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature by the Experts with other Experts or Client’s Personnel.
- (w) **“SPD - RFP”** means the Standard Procurement Document - Request for Proposals, which must be used by the Client as the basis for the preparation of the RFP.
- (x) **“Sub-consultant”** means an entity to whom the Consultant intends to subcontract any part of the Services while the Consultant remains responsible to the Client during the whole performance of the Contract.
- (y) **“Terms of Reference (TORs)”** (this Section 7 of the RFP) means the Terms of Reference that explains the objectives, scope of work, activities, and tasks to be performed, respective responsibilities of the Client and the Consultant, and expected results and deliverables of the assignment.

2. Introduction

- 2.1 The Client named in the **Data Sheet** intends to select a Consultant from those listed in the Request for Proposals (RFP), in accordance with the method of selection specified in the **Data Sheet**.
- 2.2 The shortlisted Consultants are invited to submit a Technical Proposal and a Financial Proposal, or a Technical Proposal only, as specified in the **Data Sheet**, for consulting services required for the assignment named in the **Data Sheet**. The Proposal will be the basis for negotiating and ultimately signing the Contract with the selected Consultant.
- 2.3 The Consultants should familiarize themselves with the local conditions and take them into account in preparing their Proposals, including attending a pre-proposal conference if one is specified in the **Data Sheet**. Attending any such pre-proposal conference is optional and is at the Consultants’ expense.

2.4 The Client will timely provide, at no cost to the Consultants, the inputs, relevant project data, and reports required for the preparation of the Consultant's Proposal as specified in the **Data Sheet**.

3. Conflict of Interest

3.1 The Consultant is required to provide professional, objective, and impartial advice, at all times holding the Client's interests paramount, strictly avoiding conflicts with other assignments or its own corporate interests, and acting without any consideration for future work.

3.2 The Consultant has an obligation to disclose to the Client any situation of actual or potential conflict that impacts its capacity to serve the best interest of its Client. Failure to disclose such situations may lead to the disqualification of the Consultant or the termination of its Contract and/or sanctions by the Bank.

3.2.1 Without limitation on the generality of the foregoing, the Consultant shall not be hired under the circumstances set forth below:

a. Conflicting Activities

(i) Conflict between consulting activities and procurement of goods, works or non-consulting services: a firm that has been engaged by the Client to provide goods, works, or non-consulting services for a project, or any of its Affiliates, shall be disqualified from providing consulting services resulting from or directly related to those goods, works, or non-consulting services. Conversely, a firm hired to provide consulting services for the preparation or implementation of a project, or any of its Affiliates, shall be disqualified from subsequently providing goods or works or non-consulting services resulting from or directly related to the consulting services for such preparation or implementation.

b. Conflicting Assignments

(ii) Conflict among consulting assignments: a Consultant (including its Experts and Sub-consultants) or any of its Affiliates shall not be hired for any assignment that, by its nature, may be in conflict with another assignment of the Consultant for the same or for another Client.

c. Conflicting Relationships

(iii) Relationship with the Client's staff: a Consultant (including its Experts and Sub-consultants) that has a close business or family relationship with a professional staff of the Borrower (or of the Client, or

of implementing agency, or of a recipient of a part of the Bank's financing) who are directly or indirectly involved in any part of (i) the preparation of the Terms of Reference for the assignment, (ii) the selection process for the Contract, or (iii) the supervision of the Contract, may not be awarded a Contract, unless the conflict stemming from this relationship has been resolved in a manner acceptable to the Bank throughout the selection process and the execution of the Contract.

**4. Unfair
Competitive
Advantage**

4.1 Fairness and transparency in the selection process require that the Consultants or their Affiliates competing for a specific assignment do not derive a competitive advantage from having provided consulting services related to the assignment in question. To that end, the Client shall indicate in the **Data Sheet** and make available to all shortlisted Consultants together with this RFP all information that would in that respect give such Consultant any unfair competitive advantage over competing Consultants.

**5. Fraud and
Corruption**

5.1 The Bank requires compliance with the Bank's Anti-Corruption Guidelines and its prevailing sanctions policies and procedures as set forth in the WBG's Sanctions Framework, as set forth in Section 6.

5.2 In further pursuance of this policy, Consultants shall permit and shall cause their agents (where declared or not), subcontractors, subconsultants, service providers, suppliers, and personnel, to permit the Bank to inspect all accounts, records and other documents relating to any shortlisting process, Proposal submission, and contract performance (in the case of award), and to have them audited by auditors appointed by the Bank.

6. Eligibility

6.1 The Bank permits consultants (individuals and firms, including Joint Ventures and their individual members) from all countries to offer consulting services for Bank-financed projects.

6.2 Furthermore, it is the Consultant's responsibility to ensure that its Experts, joint venture members, Sub-consultants, agents (declared or not), sub-contractors, service providers, suppliers and/or their employees meet the eligibility requirements as established by the Bank in the applicable Procurement Regulations.

6.3 As an exception to the foregoing ITC 6.1 and ITC 6.2 above:

a. Sanctions

6.3.1 A Consultant that has been sanctioned by the Bank, pursuant to the Bank's Anti-Corruption Guidelines and in accordance with its prevailing sanctions policies and procedures as set forth in the WBG's Sanctions Framework as described in Section VI, Fraud and Corruption, paragraph 2.2 d., shall be ineligible to be shortlisted for, submit proposals for, or be awarded a Bank-financed contract or benefit from a Bank-financed contract, financially or otherwise, during such period of time as the Bank shall have determined. The list of debarred firms and individuals is available at the electronic address specified **in the PDS**.

b. Prohibitions

6.3.2 Firms and individuals of a country or goods manufactured in a country may be ineligible if so indicated in Section 5 (Eligible Countries) and:

- (a) as a matter of law or official regulations, the Borrower's country prohibits commercial relations with that country, provided that the Bank is satisfied that such exclusion does not preclude effective competition for the provision of Services required; or
- (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in that country.

c. Restrictions for State-Owned Enterprises

6.3.3 State-owned enterprises or institutions in the Borrower's country may be eligible to compete and be awarded a contract only if they can establish, in a manner acceptable to the Bank, that they: (i) are legally and financially autonomous, (ii) operate under commercial law, and (iii) are not under supervision of the Client.

d. Restrictions for Public Employees

6.3.4 Government officials and civil servants of the Borrower's country are not eligible to be included as Experts, individuals, or members of a team of Experts in the Consultant's Proposal unless:

- (i) the services of the government official or civil servant are of a unique and exceptional nature, or their participation is critical to project implementation; and
- (ii) their hiring would not create a conflict of interest, including any conflict with employment or other laws, regulations, or policies of the Borrower.

**e. Borrower
Debarment**

6.3.5 A firm that is under a sanction of debarment by the Borrower from being awarded a contract is eligible to participate in this procurement, unless the Bank, at the Borrower's request, is satisfied that the debarment; (a) relates to fraud or corruption, and (b) followed a judicial or administrative proceeding that afforded the firm adequate due process.

B. Preparation of Proposals

**7. General
Considerations**

7.1 In preparing the Proposal, the Consultant is expected to examine the RFP in detail. Material deficiencies in providing the information requested in the RFP may result in rejection of the Proposal.

**8. Cost of
Preparation of
Proposal**

8.1 The Consultant shall bear all costs associated with the preparation and submission of its Proposal, and the Client shall not be responsible or liable for those costs, regardless of the conduct or outcome of the selection process. The Client is not bound to accept any proposal, and reserves the right to annul the selection process at any time prior to Contract award, without thereby incurring any liability to the Consultant.

9. Language

9.1 The Proposal, as well as all correspondence and documents relating to the Proposal exchanged between the Consultant and the Client, shall be written in the language(s) specified in the **Data Sheet**.

**10. Documents
Comprising the
Proposal**

10.1 The Proposal shall comprise the documents and forms listed in the **Data Sheet**.

10.2 If specified in the **Data Sheet**, the Consultant shall include a statement of an undertaking of the Consultant to observe, in competing for and executing a contract, the Client country's laws against fraud and corruption (including bribery).

10.3 The Consultant shall furnish information on commissions, gratuities, and fees, if any, paid or to be paid to agents or any other party relating to this Proposal and, if awarded, Contract execution, as requested in the Financial Proposal submission form (Section 4).

11. Only One Proposal

11.1 The Consultant (including the individual members of any Joint Venture) shall submit only one Proposal, either in its own name or as part of a Joint Venture in another Proposal. If a Consultant, including any Joint Venture member, submits or participates in more than one proposal, all such proposals shall be disqualified and rejected. This does not, however, preclude a Sub-consultant, or the Consultant's staff from participating as Key Experts and Non-Key Experts in more than one Proposal when circumstances justify and if stated in the **Data Sheet**.

12. Proposal Validity

12.1 Proposals shall remain valid until the date specified **in the Data Sheet** or any extended date if amended by the Client in accordance with ITC 13.1.1.

12.2 During this period, the Consultant shall maintain its original Proposal without any change, including the availability of the Key Experts, the proposed rates and the total price.

12.3 If it is established that any Key Expert nominated in the Consultant's Proposal was not available at the time of Proposal submission or was included in the Proposal without his/her confirmation, such Proposal shall be disqualified and rejected for further evaluation and may be subject to sanctions in accordance with ITC 5.

a. Extension of Proposal Validity

12.4 The Client will make its best effort to complete the negotiations and award the contract prior to the date of expiry of the Proposal validity. However, should the need arise, the Client may request, in writing, all Consultants who submitted Proposals prior to the submission deadline to extend the Proposals' validity.

12.5 If the Consultant agrees to extend the validity of its Proposal, it shall be done without any change in the original Proposal and with the confirmation of the availability of the Key Experts, except as provided in ITC 12.7.

12.6 The Consultant has the right to refuse to extend the validity of its Proposal in which case such Proposal will not be further evaluated.

b. Substitution of Key Experts at Validity Extension

12.7 If any of the Key Experts become unavailable for the extended validity period, the Consultant shall seek to substitute another Key Expert. The Consultant shall provide a written adequate justification and evidence satisfactory to the Client together with the substitution request. In such case, a substitute Key Expert shall have equal or better qualifications and experience than those of the originally proposed Key Expert. The technical evaluation score, however, will remain to be based on the evaluation of the CV of the original Key Expert.

12.8 If the Consultant fails to provide a substitute Key Expert with equal or better qualifications, or if the provided reasons for the replacement or justification are unacceptable to the Client, such Proposal will be rejected.

c. Sub-Contracting

12.9 The Consultant shall not subcontract the whole of the Services.

13. Clarification and Amendment of RFP

13.1 The Consultant may request a clarification of any part of the RFP during the period indicated in the **Data Sheet** before the Proposals' submission deadline. Any request for clarification must be sent in writing, or by standard electronic means, to the Client's address indicated in the **Data Sheet**. The Client will respond in writing, or by standard electronic means, and will send written copies of the response (including an explanation of the query but without identifying its source) to all shortlisted Consultants. Should the Client deem it necessary to amend the RFP as a result of a clarification, it shall do so following the procedure described below:

13.1.1 At any time before the proposal submission deadline, the Client may amend the RFP by issuing an amendment in writing or by standard electronic means. The amendment shall be sent to all shortlisted Consultants and will be binding on them. The shortlisted Consultants shall acknowledge receipt of all amendments in writing.

13.1.2 If the amendment is substantial, the Client may extend the proposal submission deadline to give the shortlisted Consultants reasonable time to take an amendment into account in their Proposals.

13.2 The Consultant may submit a modified Proposal or a modification to any part of it at any time prior to the proposal submission deadline. No modifications to the

Technical or Financial Proposal shall be accepted after the deadline.

14. Preparation of Proposals Specific Considerations

14.1 While preparing the Proposal, the Consultant must give particular attention to the following:

14.1.1 If a shortlisted Consultant considers that it may enhance its expertise for the assignment by associating with other consultants in the form of a Joint Venture or as Sub-consultants, it may do so with either (a) non-shortlisted Consultant(s), or (b) shortlisted Consultants if permitted in the **Data Sheet**. In all such cases a shortlisted Consultant must obtain the written approval of the Client prior to the submission of the Proposal. When associating with non-shortlisted firms in the form of a joint venture or a sub-consultancy, the shortlisted Consultant shall be a lead member. If shortlisted Consultants associate with each other, any of them can be a lead member.

14.1.2 The Client may indicate in the **Data Sheet** the estimated Key Experts' time input (expressed in person-month) or the Client's estimated total cost of the assignment, but not both. This estimate is indicative, and the Proposal shall be based on the Consultant's own estimates for the same.

14.1.3 If stated in the **Data Sheet**, the Consultant shall include in its Proposal at least the same time input (in the same unit as indicated in the **Data Sheet**) of Key Experts, failing which the Financial Proposal will be adjusted for the purpose of a comparison of proposals and decision for award in accordance with the procedure in the **Data Sheet**.

14.1.4 For assignments under the Fixed-Budget selection method, the estimated Key Experts' time input is not disclosed. A total budget, with an indication whether it is inclusive or exclusive of taxes, is given in the **Data Sheet**, and the Financial Proposal shall not exceed this budget.

15. Technical Proposal Format and Content

15.1 The Technical Proposal shall be prepared using the Standard Forms provided in Section 3 of the RFP and shall comprise the documents listed in the **Data Sheet**. The Technical Proposal shall not include any financial information. A Technical Proposal containing material financial information shall be declared non-responsive.

- 15.1.1 Consultant shall not propose alternative Key Experts. Only one CV shall be submitted for each Key Expert position. Failure to comply with this requirement will make the Proposal non-responsive.
- 15.2 Depending on the nature of the assignment, the Consultant is required to submit a Full Technical Proposal (FTP), or a Simplified Technical Proposal (STP) as indicated in the **Data Sheet** and use the Standard Forms provided in Section 3 of the RFP.
- 16. Financial Proposal**
- 16.1 The Financial Proposal shall be prepared using the Standard Forms provided in Section 4 of the RFP. It shall list all costs associated with the assignment, including (a) remuneration for Key Experts and Non-Key Experts, (b) reimbursable expenses indicated in the **Data Sheet**.
- a. Price Adjustment**
- 16.2 For assignments with a duration exceeding 18 months, a price adjustment provision for foreign and/or local inflation for remuneration rates applies if so stated in the **Data Sheet**.
- b. Taxes**
- 16.3 The Consultant and its Sub-consultants and Experts are responsible for meeting all tax liabilities arising out of the Contract unless stated otherwise in the **Data Sheet**. Information on taxes in the Client's country is provided in the **Data Sheet**.
- c. Currency of Proposal**
- 16.4 The Consultant may express the price for its Services in the currency or currencies as stated in the **Data Sheet**. If indicated in the **Data Sheet**, the portion of the price representing local cost shall be stated in the national currency.
- d. Currency of Payment**
- 16.5 Payment under the Contract shall be made in the currency or currencies in which the payment is requested in the Proposal.

C. Submission, Opening and Evaluation

- 17. Submission, Sealing, and Marking of Proposals**
- 17.1 The Consultant shall submit a signed and complete Proposal comprising the documents and forms in accordance with ITC 10 (Documents Comprising Proposal). Consultants shall mark as "CONFIDENTIAL" information in their Proposals which is confidential to their business. This may include proprietary information, trade secrets or commercial or financially sensitive information.

The submission can be done by mail or by hand. If specified in the **Data Sheet**, the Consultant has the option of submitting its Proposals electronically.

- 17.2 An authorized representative of the Consultant shall sign the original submission letters in the required format for both the Technical Proposal and, if applicable, the Financial Proposal and shall initial all pages of both. The authorization shall be in the form of a written power of attorney attached to the Technical Proposal.

17.2.1 A Proposal submitted by a Joint Venture shall be signed by all members so as to be legally binding on all members, or by an authorized representative who has a written power of attorney signed by each member's authorized representative.

- 17.3 Any modifications, revisions, interlineations, erasures, or overwriting shall be valid only if they are signed or initialed by the person signing the Proposal.

- 17.4 The signed Proposal shall be marked "ORIGINAL", and its copies marked "COPY" as appropriate. The number of copies is indicated in the **Data Sheet**. All copies shall be made from the signed original. If there are discrepancies between the original and the copies, the original shall prevail.

- 17.5 The original and all the copies of the Technical Proposal shall be placed inside a sealed envelope clearly marked "**TECHNICAL PROPOSAL**", "[Name of the Assignment]", "[reference number]", [name and address of the Consultant], and with a warning "**DO NOT OPEN UNTIL [INSERT THE DATE AND THE TIME OF THE TECHNICAL PROPOSAL SUBMISSION DEADLINE].**"

- 17.6 Similarly, the original Financial Proposal (if required for the applicable selection method) and its copies shall be placed inside of a separate sealed envelope clearly marked "**FINANCIAL PROPOSAL**", "[Name of the Assignment]", [reference number], [name and address of the Consultant]", and with a warning "**DO NOT OPEN WITH THE TECHNICAL PROPOSAL.**"

- 17.7 The sealed envelopes containing the Technical and Financial Proposals shall be placed into one outer envelope and sealed. This outer envelope shall be addressed to the Client and bear the submission address, RFP reference number, the name of the assignment, the Consultant's name and the address, and shall be clearly marked "Do Not

Open Before [insert the time and date of the submission deadline indicated in the **Data Sheet**]”.

- 17.8 If the envelopes and packages with the Proposal are not sealed and marked as required, the Client will assume no responsibility for the misplacement, loss, or premature opening of the Proposal.
- 17.9 The Proposal or its modifications must be sent to the address indicated in the **Data Sheet** and received by the Client no later than the deadline indicated in the **Data Sheet**, or any extension to this deadline. Any Proposal or its modification received by the Client after the deadline shall be declared late and rejected and promptly returned unopened.

18. Confidentiality

- 18.1 From the time the Proposals are open to the time the Contract is awarded, the Consultant should not contact the Client on any matter related to its Technical and/or Financial Proposal. Information relating to the evaluation of Proposals and award recommendations shall not be disclosed to the Consultants who submitted the Proposals or to any other party not officially concerned with the process, until the Notification of Intention to Award the Contract. Exceptions to this ITC are where the Client notifies Consultants of the results of the evaluation of the Technical Proposals.
- 18.2 Any attempt by shortlisted Consultants or anyone on behalf of the Consultant to influence improperly the Client in the evaluation of the Proposals or Contract award decisions may result in the rejection of its Proposal and may be subject to the application of prevailing Bank's sanctions procedures.
- 18.3 Notwithstanding the above provisions, from the time of the Proposals' opening to the time of Contract award publication, if a Consultant wishes to contact the Client or the Bank on any matter related to the selection process, it shall do so only in writing.

19. Opening of Technical Proposals

- 19.1 The Client's evaluation committee shall conduct the opening of the Technical Proposals in the presence of the shortlisted Consultants' authorized representatives who choose to attend (in person, or online if this option is offered in the **Data Sheet**). The opening date, time and the address are stated in the **Data Sheet**. The envelopes with the Financial Proposal shall remain sealed and shall be securely stored with a reputable public auditor or

independent authority until they are opened in accordance with ITC 23.

- 19.2 At the opening of the Technical Proposals the following shall be read out: (i) the name and the country of the Consultant or, in case of a Joint Venture, the name of the Joint Venture, the name of the lead member and the names and the countries of all members; (ii) the presence or absence of a duly sealed envelope with the Financial Proposal; (iii) any modifications to the Proposal submitted prior to proposal submission deadline; and (iv) any other information deemed appropriate or as indicated in the **Data Sheet**.

20. Proposals Evaluation

- 20.1 Subject to provision of ITC 15.1, the evaluators of the Technical Proposals shall have no access to the Financial Proposals until the Financial Proposals are opened.
- 20.2 The Consultant is not permitted to alter or modify its Proposal in any way after the proposal submission deadline except as permitted under ITC 12.7. While evaluating the Proposals, the Client will conduct the evaluation solely on the basis of the submitted Technical and Financial Proposals.

21. Evaluation of Technical Proposals

- 21.1 The Client's evaluation committee shall evaluate the Technical Proposals on the basis of their responsiveness to the Terms of Reference and the RFP, applying the evaluation criteria, sub-criteria, and point system specified in the **Data Sheet**. Each responsive Proposal will be given a technical score. A Proposal shall be rejected at this stage if it does not respond to important aspects of the RFP or if it fails to achieve the minimum technical score indicated in the **Data Sheet**.

22. Notification of Results of Technical Evaluation, Opening of /Invitation to Submit Financial Proposals for QBS

- 22.1 Following the ranking of the Technical Proposals and determination of the proposal that has achieved the highest technical score, the Client shall notify in writing the highest- ranking Consultant of its technical score and that its Technical Proposal has been evaluated as the highest ranking.
- 22.2 The Client shall simultaneously notify in writing the other Consultants: (i) on their overall technical score, as well as scores obtained for each criterion and sub-criterion, and that their technical proposals have not been evaluated as the highest ranked; and (ii) that their Financial Proposals

will be returned unopened after completing the selection process and Contract signing.

22.3 If Financial Proposals were invited together with the Technical Proposals, the Client shall notify all of the Consultants that submit proposals of the date, time and location of the public opening of the Financial Proposals of the highest-ranking Consultant. If Financial Proposals were not invited to be submitted along with the Technical Proposals, the opening of Financial Proposals does not apply, and the highest-ranking Consultant shall be invited to submit its Financial Proposals for negotiations.

22.4 The opening date of the Financial Proposal or invitation of the highest-ranking Consultant to submit its Financial Proposal, as applicable, shall not be earlier than ten (10) Business Days from the date of notification of the results of the technical evaluation, described in ITC 22.1 and 22.2. However, if the Client receives a complaint on the results of the technical evaluation within the ten (10) Business Days, the opening date or the date to invite submission of Financial Proposal, as applicable, shall be subject to ITC 35.1.

23. Public Opening of Financial Proposals (for QCBS, FBS, and LCS methods)

23.1 After the technical evaluation is completed, the Client shall notify in writing those Consultants whose Proposals were considered non-responsive to the RFP and TOR or did not meet the minimum qualifying technical score, advising them the following:

- (i) their Proposal was not responsive to the RFP and TOR or did not meet the minimum qualifying technical score;
- (ii) provide information relating to the Consultant's overall technical score, as well as scores obtained for each criterion and sub-criterion;
- (iii) their Financial Proposals will be returned unopened after completing the selection process and Contract signing; and
- (iv) notify them of the date, time and location of the public opening of the Financial Proposals.

23.2 The Client shall simultaneously notify in writing those Consultants whose Proposals were considered responsive to the RFP and TOR, and that have achieved the minimum qualifying technical score, advising them the following:

- (i) their Proposal was responsive to the RFP and TOR and met the minimum qualifying technical score;
- (ii) provide information relating to the Consultant's overall technical score, as well as scores obtained for each criterion and sub-criterion.
- (iii) their Financial Proposal will be opened at the public opening of Financial Proposals; and
- (iv) notify them of the date, time and location of the public opening and invite them for the opening of the Financial Proposals.

23.3 The opening date shall not be earlier than ten (10) Business Days from the date of notification of the results of the technical evaluation, described in ITC 23.1 and 23.2. However, if the Client receives a complaint on the results of the technical evaluation within the ten (10) Business Days, the opening date shall be subject to ITC 35.1.

23.4 The Consultant's attendance at the opening of the Financial Proposals (in person, or online if such option is indicated in the **Data Sheet**) is optional and is at the Consultant's choice.

23.5 The Financial Proposals shall be opened publicly by the Client's evaluation committee in the presence of the representatives of the Consultants and anyone else who chooses to attend. Any interested party who wishes to attend this public opening should contact the client as indicated in the **Data Sheet**. Alternatively, a notice of the public opening of Financial Proposals may be published on the Client's website, if available. At the opening, the names of the Consultants, and the overall technical scores, including the break-down by criterion, shall be read aloud. The Financial Proposals will then be inspected to confirm that they have remained sealed and unopened. These Financial Proposals shall be then opened, and the total prices read aloud and recorded. Copies of the record shall be sent to all Consultants who submitted Proposals and to the Bank.

24. Correction of Errors

24.1 Activities and items described in the Technical Proposal but not priced in the Financial Proposal, shall be assumed to be included in the prices of other activities or items, and no corrections are made to the Financial Proposal.

a. Time-Based Contracts

24.1.1 If a Time-Based contract form is included in the RFP, the Client's evaluation committee will (a)

correct any computational or arithmetical errors, and (b) adjust the prices if they fail to reflect all inputs included for the respective activities or items included in the Technical Proposal. In case of discrepancy between (i) a partial amount (sub-total) and the total amount, or (ii) between the amount derived by multiplication of unit price with quantity and the total price, or (iii) between words and figures, the former will prevail. In case of discrepancy between the Technical and Financial Proposals in indicating quantities of input, the Technical Proposal prevails and the Client's evaluation committee shall correct the quantification indicated in the Financial Proposal so as to make it consistent with that indicated in the Technical Proposal, apply the relevant unit price included in the Financial Proposal to the corrected quantity, and correct the total Proposal cost.

b. Lump-Sum Contracts

24.1.2 If a Lump-Sum contract form is included in the RFP, the Consultant is deemed to have included all prices in the Financial Proposal, so neither arithmetical corrections nor price adjustments shall be made. The total price, net of taxes understood as per ITC 25, specified in the Financial Proposal (Form FIN-1) shall be considered as the offered price. Where there is a discrepancy between the amount in words and the amount figures, the amount in words shall prevail.

25. Taxes

25.1 The Client's evaluation of the Consultant's Financial Proposal shall exclude taxes and duties in the Client's country in accordance with the instructions in the **Data Sheet**.

26. Conversion to Single Currency

26.1 For the evaluation purposes, prices shall be converted to a single currency using the selling rates of exchange, source and date indicated in the **Data Sheet**.

27. Combined Quality and Cost Evaluation

a. Quality and Cost-Based Selection (QCBS)

27.1 In the case of QCBS, the total score is calculated by weighting the technical and financial scores and adding them as per the formula and instructions in the **Data Sheet**. The Consultant with the Most Advantageous Proposal,

which is the Proposal that achieves the highest combined technical and financial scores, will be invited for negotiations.

b. Fixed-Budget Selection (FBS)

- 27.2 In the case of FBS, those Proposals that exceed the budget indicated in ITC 14.1.4 of the **Data Sheet** shall be rejected.
- 27.3 The Client will select the Consultant with the Most Advantageous Proposal, which is the highest-ranked Technical Proposal that does not exceed the budget indicated in the RFP, and invite such Consultant to negotiate the Contract.

c. Least-Cost Selection

- 27.4 In the case of Least-Cost Selection (LCS), the Client will select the Consultant with the Most Advantageous Proposal, which is the Proposal with the lowest evaluated total price among those Proposals that achieved the minimum qualifying technical score, and invite such a Consultant to negotiate the Contract.

D. Negotiations and Award

28. Negotiations

- 28.1 The negotiations will be held at the date and address indicated in the Data Sheet with the Consultant's representative(s) who must have written power of attorney to negotiate and sign a Contract on behalf of the Consultant.
- 28.2 The Client shall prepare minutes of negotiations that are signed by the Client and the Consultant's authorized representative.

a. Availability of Key Experts

- 28.3 The invited Consultant shall confirm the availability of all Key Experts included in the Proposal as a pre-requisite to the negotiations, or, if applicable, a replacement in accordance with ITC 12. Failure to confirm the Key Experts' availability may result in the rejection of the Consultant's Proposal and the Client proceeding to negotiate the Contract with the next-ranked Consultant.
- 28.4 Notwithstanding the above, the substitution of Key Experts at the negotiations may be considered if due solely to circumstances outside the reasonable control of and not foreseeable by the Consultant, including but not limited to death or medical incapacity. In such case, the Consultant shall offer a substitute Key Expert within the period of time specified in the letter of invitation to negotiate the Contract,

who shall have equivalent or better qualifications and experience than the original candidate.

b. Technical Negotiations

28.5 The negotiations include discussions of the Terms of Reference (TORs), the proposed methodology, the Client's inputs, the special conditions of the Contract, and finalizing the "Description of Services" part of the Contract. These discussions shall not substantially alter the original scope of services under the TOR or the terms of the contract, lest the quality of the final product, its price, or the relevance of the initial evaluation be affected.

c. Financial Negotiations

28.6 The negotiations include the clarification of the Consultant's tax liability in the Client's country and how it should be reflected in the Contract.

28.7 If the selection method included cost as a factor in the evaluation, the total price stated in the Financial Proposal for a Lump-Sum contract shall not be negotiated.

28.8 In the case of a Time-Based contract, unit rates negotiations shall not take place, except when the offered Key Experts and Non-Key Experts' remuneration rates are much higher than the typically charged rates by consultants in similar contracts. In such case, the Client may ask for clarifications and, if the fees are very high, ask to change the rates after consultation with the Bank. The format for (i) providing information on remuneration rates in the case of Quality Based Selection; and (ii) clarifying remuneration rates' structure under this Clause, is provided in Appendix A to the Financial Form FIN-3: Financial Negotiations – Breakdown of Remuneration Rates.

29. Conclusion of Negotiations

29.1 The negotiations are concluded with a review of the finalized draft Contract, which then shall be initialed by the Client and the Consultant's authorized representative.

29.2 If the negotiations fail, the Client shall inform the Consultant in writing of all pending issues and disagreements and provide a final opportunity to the Consultant to respond. If disagreement persists, the Client shall terminate the negotiations informing the Consultant of the reasons for doing so. The Client will then invite the next-ranked Consultant to negotiate a Contract. Once the Client commences negotiations with the next-ranked Consultant, the Client shall not reopen the earlier negotiations.

- 30. Standstill Period** 30.1 The Contract shall not be awarded earlier than the expiry of the Standstill Period. The Standstill Period shall be ten (10) Business Days unless extended in accordance with ITC 33. The Standstill Period commences the day after the date the Client has transmitted to each Consultant (that has not already been notified that it has been unsuccessful) the Notification of Intention to Award the Contract. Where only one Proposal is submitted, or if this contract is in response to an emergency situation recognized by the Bank, the Standstill Period shall not apply.
- 31. Notification of Intention to Award** 31.1 The Client shall send to each Consultant (that has not already been notified that it has been unsuccessful) the Notification of Intention to Award the Contract to the successful Consultant. The Notification of Intention to Award shall contain, at a minimum, the following information:
- (a) the name and address of the Consultant with whom the client successfully negotiated a contract;
 - (b) the contract price of the successful Proposal;
 - (c) the names of all Consultants included in the short list, indicating those that submitted Proposals;
 - (d) where the selection method requires, the price offered by each Consultant as read out and as evaluated;
 - (e) the overall technical scores and scores assigned for each criterion and sub-criterion to each Consultant;
 - (f) the final combined scores and the final ranking of the Consultants;
 - (g) a statement of the reason(s) why the recipient's Proposal was unsuccessful, unless the combined score in (f) above already reveals the reason;
 - (h) the expiry date of the Standstill Period; and
 - (i) instructions on how to request a debriefing and/or submit a complaint during the Standstill Period.
- 32. Notification of Award** 32.1 Upon expiry of the Standstill Period, specified in ITC 30.1 or any extension thereof, and upon satisfactorily addressing any complaint that has been filed within the Standstill Period, and upon verifying that the Consultant (including each member of a JV) is not disqualified by the Bank due to noncompliance with contractual SEA/SH prevention and

response obligations, the Client shall, send a notification of award to the successful Consultant, confirming the Client's intention to award the Contract to the successful Consultant and requesting the successful Consultant to sign and return the draft negotiated Contract within eight (8) Business Days from the date of receipt of such notification. The Client will require the Consultant to replace any subconsultant that is disqualified by the Bank due to noncompliance with contractual SEA/SH prevention and response obligations. The client shall simultaneously request the successful Consultant to submit, within eight (8) Business Days, the Beneficial Ownership Disclosure Form.

Contract Award Notice

Within ten (10) Business Days from the date of notification of award such request, the Client shall publish the Contract Award Notice which shall contain, at a minimum, the following information:

- (a) name and address of the Client;
- (b) name and reference number of the contract being awarded, and the selection method used;
- (c) names of the consultants that submitted proposals, and their proposal prices as read out at financial proposal opening, and as evaluated;
- (d) names of all Consultants whose Proposals were rejected or were not evaluated, with the reasons therefor;
- (e) the name of the successful consultant, the final total contract price, the contract duration and a summary of its scope; and
- (f) successful Consultant's Beneficial Ownership Disclosure Form.

32.2 The Contract Award Notice shall be published on the Client's website with free access if available, or in at least one newspaper of national circulation in the Client's Country, or in the official gazette.

33. Debriefing by the Client

33.1 On receipt of the Client's Notification of Intention to Award referred to in ITC 31.1, an unsuccessful Consultant has three (3) Business Days to make a written request to the Client for a debriefing. The Client shall provide a

debriefing to all unsuccessful Consultants whose request is received within this deadline.

- 33.2 Where a request for debriefing is received within the deadline, the Client shall provide a debriefing within five (5) Business Days, unless the Client decides, for justifiable reasons, to provide the debriefing outside this timeframe. In that case, the standstill period shall automatically be extended until five (5) Business Days after such debriefing is provided. If more than one debriefing is so delayed, the standstill period shall not end earlier than five (5) Business Days after the last debriefing takes place. The Client shall promptly inform, by the quickest means available, all Consultants of the extended standstill period.
- 33.3 Where a request for debriefing is received by the Client later than the three (3)-Business Day deadline, the Client should provide the debriefing as soon as practicable, and normally no later than fifteen (15) Business Days from the date of publication of Public Notice of Award of contract. Requests for debriefing received outside the three (3)-day deadline shall not lead to extension of the standstill period.
- 33.4 Debriefings of unsuccessful Consultants may be done in writing or verbally. The Consultants shall bear their own costs of attending such a debriefing meeting.

34. Signing of Contract

- 34.1 The Contract shall be signed prior to the expiry date of the Proposal validity and promptly after expiry of the Standstill Period, specified in ITC 30.1 or any extension thereof, and upon satisfactorily addressing any complaint that has been filed within the Standstill Period.
- 34.2 The Consultant is expected to commence the assignment on the date and at the location specified in the **Data Sheet**.

35. Procurement Related Complaint

- 35.1 The procedures for making a Procurement-related Complaint are as specified in the **Data Sheet**.

Section 2. Instructions to Consultants

E. Data Sheet

ITC Reference	A. General
2.1	Name of the Client: Climate Resilience Multi-Phase Programmatic Approach (CResMPA) Method of selection: Quality and Cost Based Selection (QCBS) as per the Procurement Regulations (available at www.worldbank.org)
2.2	Financial Proposal to be submitted together with Technical Proposal: Yes The name of the assignment is: Consultant Service for designing and developing a Decision Support System (bDSS) to enhance Emergency Preparedness and Response for Disaster Risk Reduction
2.3	A pre-proposal conference will be held: Yes Date of pre-proposal conference: 22nd August 2025 Time: 09:30 hours Address: Climate Resilience Multiphase Programmatic Approach, No 11, Jawatta Road, Colombo 05, Sri Lanka Telephone: +9411-2058451 / +9411-2507855 E-mail: pdcrempa@gmail.com Contact person/conference coordinator: Project Director
2.4	The Client will provide the following inputs, project data, reports, etc. to facilitate the preparation of the Proposals: DRR Data and information such as; 1. Disaster Management Policy 2. Disaster Management Act 3. National Disaster Management Plan 4. National Emergency Operational Plan 5. Risk profile

	6. Desinventar Please refer – www.dmc.gov.lk
6.3.1	A list of debarred firms and individuals is available at the Bank's external website: www.worldbank.org/debarr
B. Preparation of Proposals	
9.1	This RFP has been issued in the English language. Proposals shall be submitted in English language. All correspondence exchange shall be in English language.
10.1	The Proposal shall comprise the following: <u>For FULL TECHNICAL PROPOSAL (FTP):</u> 1st Inner Envelope with the Technical Proposal: (1) Power of Attorney to sign the Proposal (2) TECH-1 (3) TECH-2 (4) TECH-3 (5) TECH-4 (6) TECH-5 (7) TECH-6 (8) TECH-7 Code of Conduct: The Consultant shall submit its Code of Conduct that will apply to the Experts. The Consultant shall use for this purpose the Code of Conduct form in Section 3. No substantial modifications shall be made to this form, except that the Consultant may introduce additional requirements, including as necessary to take into account specific Contract issues/risks. (9) TECH-8 AND 2nd Inner Envelope with the Financial Proposal (if applicable): (1) FIN-1 (2) FIN-2 (3) FIN-3

	(4) FIN-4 (5) Statement of Undertaking
10.2	Statement of Undertaking is required Yes
11.1	Participation of Sub-consultants, Key Experts and Non-Key Experts in more than one Proposal is permissible No
12.1	Proposals shall be valid until 189 days from the deadline of submission of proposals (until 3rd April 2025)
13.1	Clarifications may be requested no later than 14 (fourteen) days prior to the submission deadline. The contact information for requesting clarifications is: Project Director - Climate Resilience Multi-Phase Programmatic Approach No 11, Jawatta Road, Colombo 05 Facsimile: +9411-2058451 E-mail: pdcrempa@gmail.com
14.1.1	Shortlisted Consultants may associate with (a) Non-shortlisted Consultant(s): Yes Or (b) Other shortlisted Consultants: No
14.1.2	Estimated input of Key Experts' time-input: Refer Para 47 of the Terms of Reference in Section 7. However, Consultant could alter estimated input of Key Expert's time-input based on his experience and methodology.
15.2	The format of the Technical Proposal to be submitted is: FTP Submission of the Technical Proposal in a wrong format may lead to the Proposal being deemed non-responsive to the RFP requirements.

16.1	(1) <i>A per diem allowance, including hotel, for experts for every day of absence from the home office for the purposes of the Services;</i> (2) <i>cost of travel (both national and international) by the most appropriate means of transport and the most direct practicable route;</i> (3) <i>cost of office accommodation, including overheads and back-stop support;</i> (4) <i>communications costs;</i> (5) <i>cost of reports production (including printing) and delivering to the Client;</i> (6) <i>POC testing</i> (7) <i>other allowances where applicable and provisional or fixed sums (if any)]</i> <i>Note: DMC will be provided an office space of around 40 m² with furniture in the DMC-Headquarter premises at Colombo 07.</i> <i>Other required office equipment and software will not be provided.</i>
16.2	A price adjustment provision applies to remuneration rates: No
16.3	Information on the Consultant's tax obligations in the Client's country can be found from Department of Inland Revenue of Sri Lanka. Client will pay only VAT component with Consultant's payment upon submission of VAT registration certificate
16.4	The Financial Proposal shall be stated in the following currencies: Consultant may express the price for their Services in any fully convertible currency, singly or in combination of up to three foreign currencies. The Financial Proposal should state local costs in the Client's country currency (local currency): Yes
C. Submission, Opening and Evaluation	
17.1	The Consultants shall not have the option of submitting their Proposals electronically.
17.4	The Consultant must submit:

	(a) Technical Proposal: one (1) original, two (2) copies, one (1) sealed duplicate, and one (1) soft copy on a USB drive (b) Financial Proposal: one (1) original and 1 duplicate																											
17.7 and 17.9	The Proposals must be submitted no later than: Date: 22nd September 2025 Time: 14:00 hours The Proposal submission address is: Climate Resilience Multi-Phase Programmatic Approach, No 11, Jawatta Road, Colombo 05																											
19.1	An online option for the opening of the Technical Proposals is offered: No The opening shall take place at: same as the Proposal submission address Date: same as the submission deadline indicated in 17.7. Time: 14:00 hours																											
19.2	In addition, the following information will be read aloud at the opening of the Technical Proposals N/A																											
21.1 (for FTP)	Criteria, sub-criteria, and point system for the evaluation of the Full Technical Proposals: <table><tr><th>S.N.</th><th>Technical Factor</th><th>Points</th></tr><tr><td>1</td><td>Specific experience of the Consultant (as a firm) relevant to the Assignment: ICT with software experience for the last 10 years Similar 5 projects completed within the last 5 years</td><td>10</td></tr><tr><td>2</td><td>Adequacy and quality of the proposed methodology, and work plan in responding to the Terms of Reference (TORs)</td><td>40</td></tr><tr><td>2.1</td><td>Technical Approach and Methodology</td><td>20</td></tr><tr><td>2.2</td><td>Work Plan</td><td>10</td></tr><tr><td>2.3</td><td>Organization and Staffing}</td><td>10</td></tr><tr><td>3</td><td>Key Experts’ qualifications and competence for the Assignment</td><td>40</td></tr><tr><td>3.1</td><td>Team leader / Project Manager</td><td>6</td></tr><tr><td>3.2</td><td>Project/ Business Analyst</td><td>6</td></tr></table>	S.N.	Technical Factor	Points	1	Specific experience of the Consultant (as a firm) relevant to the Assignment: ICT with software experience for the last 10 years Similar 5 projects completed within the last 5 years	10	2	Adequacy and quality of the proposed methodology, and work plan in responding to the Terms of Reference (TORs)	40	2.1	Technical Approach and Methodology	20	2.2	Work Plan	10	2.3	Organization and Staffing}	10	3	Key Experts’ qualifications and competence for the Assignment	40	3.1	Team leader / Project Manager	6	3.2	Project/ Business Analyst	6
S.N.	Technical Factor	Points																										
1	Specific experience of the Consultant (as a firm) relevant to the Assignment: ICT with software experience for the last 10 years Similar 5 projects completed within the last 5 years	10																										
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2.3	Organization and Staffing}	10																										
3	Key Experts’ qualifications and competence for the Assignment	40																										
3.1	Team leader / Project Manager	6																										
3.2	Project/ Business Analyst	6																										

	3.3	System Architect	6
	3.4	UI/UX Designer	4
	3.5	Software Developer	4
	3.6	Database Administrator (DBAs)	4
	3.7	API Designers	3
	3.8	Quality Assurance (QA) Engineer	3
	3.9	Security Specialist	2
	3.10	GIS Specialist	2
		Sub-Criteria for Personnel Evaluation: The number of points to be assigned to each of the above positions shall be determined considering the following three sub-criteria and relevant percentage weights: 1) General qualifications (general education, training, and experience): 20% 2) Adequacy for the Assignment (relevant education, training, experience in the sector/similar assignments): 70% 3) Relevant experience in the subject area: 10% Total weight: 100%	
	4	Training and Knowledge Transfer Strategy	5
	5	Participation by nationals among proposed Key Experts	5
		Total Points for the Five Criteria:	100
The minimum technical score (St) required to pass is:			70 points
Public Opening of Financial Proposals			
23.4	An online option for the opening of the Financial Proposals is offered: No		
23.5	Following the completion of the evaluation of the Technical Proposals, the Client will notify all Consultants of the location, date and time of the public opening of Financial Proposals. Any interested party who wishes to attend this public opening should contact Project Director – Climate Resilience Multi-Phase Programmatic Approach and request to be notified of the location, date and time of the public opening of Financial Proposals. The request should be made before the deadline for submission of the Proposal stated above.		

	Alternatively, a notice of the public opening of Financial Proposals may be published on the Client's official website at https://www.dmc.gov.lk/ .
25.1	For the purpose of the evaluation, the Client will only exclude VAT. The Consultant shall accommodate any other taxes within the Financial Proposal.
26.1	The single currency for the conversion of all prices expressed in various currencies into a single one is: USD The official source of the selling (exchange) rate is: Central Bank of Sri Lanka The date of the exchange rate is: Twenty-eight days (28) prior to the deadline for submission of proposals
27.1	The lowest evaluated Financial Proposal (Fm) is given the maximum financial score (Sf) of 100. The formula for determining the financial scores (Sf) of all other Proposals is calculated as following: $Sf = 100 \times Fm / F$, in which "Sf" is the financial score, "Fm" is the lowest price, and "F" the price of the proposal under consideration. The weights given to the Technical (T) and Financial (P) Proposals are: T = 80%, and P = 20% Proposals are ranked according to their combined technical (St) and financial (Sf) scores using the weights (T = the weight given to the Technical Proposal; P = the weight given to the Financial Proposal; T + P = 1) as following: $S = St \times T\% + Sf \times P\%$.
	D. Negotiations and Award
28.1	Expected date and address for contract negotiations: Date: 15th November 2025 Address: Climate Resilience Multi-Phase Programmatic Approach No 11, Jawatta Road, Colombo 05, Sri Lanka.
34.2	Expected date for the commencement of the Services:

	Date: December 2025 at: Colombo, Sri Lanka
35.1	The procedures for making a Procurement-related Complaint are detailed in the “<u>Procurement Regulations for IPF Borrowers</u> (Annex III).” If a Consultant wishes to make a Procurement-related Complaint, the Consultant shall submit its complaint following these procedures, In Writing (by the quickest means available, such as by email or fax), to: For the attention: Mr. R.B. Bandula Sirimal Title/Position: Project Director Client: Climate Resilience Multi-Phase Programmatic Approach Email address: pdcresmpa@gmail.com Fax number: +9411-2058451 A copy of the complaint can be sent for the Bank’s information and monitoring to: pprocurementcomplaints@worldbank.org In summary, a Procurement-related Complaint may challenge any of the following: 1. the terms of this Request for Proposal. 2. the Client’s decision to exclude a consultant from the procurement process prior to the award of contract; and 3. the Client’s decision to award the contract.

Section 3. Technical Proposal – Standard Forms

{Notes to Consultant shown in brackets { } throughout Section 3 provide guidance to the Consultant to prepare the Technical Proposal; they should not appear on the Proposals to be submitted.}

CHECKLIST OF REQUIRED FORMS

Required for FTP or STP ✓		FORM	DESCRIPTION	Page Limit
FTP	STP			
✓	✓	TECH-1	Technical Proposal Submission Form.	As per format
✓ If applicable		TECH-1 Attachment	If the Proposal is submitted by a joint venture, attach a letter of intent or a copy of an existing agreement.	
✓ If applicable		Power of Attorney	No pre-set format/form. In the case of a Joint Venture, several are required: power of attorney for the authorized representative of each JV member, and a power of attorney for the representative of the lead member to represent all JV members	As per format
✓	✓	TECH-2	Consultant's Organization and Experience.	Maximum 20 pages
✓	✓	TECH-2A	A. Consultant's Organization	
✓	✓	TECH-2B	B. Consultant's Experience	
✓		TECH-3	Comments or Suggestions on the Terms of Reference and on Counterpart Staff and Facilities to be provided by the Client.	Maximum 10 pages
✓		TECH-3A	A. On the Terms of Reference	
✓		TECH-3B	B. On the Counterpart Staff and Facilities	
✓	✓	TECH-4	Description of the Approach, Methodology, and Work Plan for Performing the Assignment	Maximum 40 pages
✓	✓	TECH-5	Work Schedule and Planning for Deliverables	Maximum 10 pages
✓	✓	TECH-6	Team Composition, Key Experts Inputs, and attached Curriculum Vitae (CV)	As per format
✓	✓	TECH-7	Code of Conduct	As per format
✓	✓	TECH-8	Sexual Exploitation and Abuse (SEA) and/or Sexual Harassment (SH) Performance Declaration	As per format

All pages of the original Technical and Financial Proposal shall be initialed by the same authorized representative of the Consultant who signs the Proposal.

FORM TECH-1**TECHNICAL PROPOSAL SUBMISSION FORM**

{Location, Date}

To: *[Name and address of Client]*

Dear Sirs:

We, the undersigned, offer to provide the consulting services for *[Insert title of assignment]* in accordance with your Request for Proposals (RFP) dated *[Insert Date]* and our Proposal. *[Select appropriate wording depending on the selection method stated in the RFP: “We are hereby submitting our Proposal, which includes this Technical Proposal and a Financial Proposal sealed in a separate envelope” or, if only a Technical Proposal is invited “We hereby are submitting our Proposal, which includes this Technical Proposal only in a sealed envelope.”]*

{If the Consultant is a joint venture, insert the following: We are submitting our Proposal a joint venture with: {Insert a list with full name and the legal address of each member, and indicate the lead member}. We have attached a copy {insert: “of our letter of intent to form a joint venture” or, if a JV is already formed, “of the JV agreement”} signed by every participating member, which details the likely legal structure of and the confirmation of joint and severable liability of the members of the said joint venture.

{OR

If the Consultant’s Proposal includes Sub-consultants, insert the following: We are submitting our Proposal with the following firms as Sub-consultants: Insert a list with full name and address of each Sub-consultant.}

We hereby declare that:

- a) All the information and statements made in this Proposal are true and we accept that any misinterpretation or misrepresentation contained in this Proposal may lead to our disqualification by the Client and/or may be sanctioned by the Bank.
- (b) Our Proposal shall be valid and remain binding upon us until *[insert day, month and year in accordance with ITC 12.1]*.
- (c) We have no conflict of interest in accordance with ITC 3.
- (d) We meet the eligibility requirements as stated in ITC 6, and we confirm our understanding of our obligation to abide by the Bank’s policy in regard to Fraud and Corruption as per ITC 5.

- (e) We, along with any of our sub-consultants, subcontractors, suppliers, or service providers for any part of the contract, are not subject to, and not controlled by any entity or individual that is subject to, a temporary suspension or a debarment imposed by the World Bank Group or a debarment imposed by the World Bank Group in accordance with the Agreement for Mutual Enforcement of Debarment Decisions between the World Bank and other development banks. Further, we are not ineligible under the Client's country laws or official regulations or pursuant to a decision of the United Nations Security Council;
- (f) **Sexual Exploitation and Abuse (SEA) and/or Sexual Harassment (SH):**
[select the appropriate option from (i) to (iii) below and delete the others].

We *[where JV, insert: "including any of our JV members"]*, and any of our sub-consultants:

- (i) [have not been subject to disqualification by the Bank for non-compliance with SEA/ SH obligations.]
 - (ii) [are subject to disqualification by the Bank for non-compliance with SEA/ SH obligations.]
 - (iii) [had been subject to disqualification by the Bank for non-compliance with SEA/ SH obligations. An arbitral award on the disqualification case has been made in our favor.]
- (g) *[Note to Client: Only if required in ITC10.2 (Data Sheet 10.2), include the following: In competing for (and, if the award is made to us, in executing) the Contract, we undertake to observe the laws against fraud and corruption, including bribery, in force in the country of the Client.]*
- (h) Except as stated in the Data Sheet, ITC 12.7, we undertake to negotiate a Contract on the basis of the proposed Key Experts. We accept that the substitution of Key Experts for reasons other than those stated in ITC 12 and ITC 28.4 may lead to the termination of Contract negotiations.
- (i) Our Proposal is binding upon us and subject to any modifications resulting from the Contract negotiations.

We undertake, if our Proposal is accepted and the Contract is signed, to initiate the Services related to the assignment no later than the date indicated in ITC 34.2 of the Data Sheet.

We understand that the Client is not bound to accept any Proposal that the Client receives.

We remain,

Yours sincerely,

Signature (of Consultant's authorized representative) {In full and initials}:

Full name: {insert full name of authorized representative}
Title: {insert title/position of authorized representative}
Name of Consultant (company's name or JV's name):
Capacity: {insert the person's capacity to sign for the Consultant}
Address: {insert the authorized representative's address}
Phone/fax: {insert the authorized representative's phone and fax number, if applicable}
Email: {insert the authorized representative's email address} _____

{For a joint venture, either all members shall sign or only the lead member, in which case the power of attorney to sign on behalf of all members shall be attached}

FORM TECH-2 (FOR FULL AND SIMPLIFIED TECHNICAL PROPOSALS)

CONSULTANT’S ORGANIZATION AND EXPERIENCE

Form TECH-2: a brief description of the Consultant’s organization and an outline of the recent experience of the Consultant that is most relevant to the assignment. In the case of a joint venture, information on similar assignments shall be provided for each partner. For each assignment, the outline should indicate the names of the Consultant’s Key Experts and Sub-consultants who participated, the duration of the assignment, the contract amount (total and, if it was done in the form of a joint venture or a sub-consultancy, the amount paid to the Consultant), and the Consultant’s role/involvement.

A - Consultant’s Organization

1. Provide here a brief description of the background and organization of your company, and – in case of a joint venture – of each member for this assignment.
2. Include organizational chart, a list of Board of Directors, and beneficial ownership. The successful Consultant shall also provide additional information on beneficial ownership, using the Beneficial Ownership Disclosure Form.

B - Consultant’s Experience

1. List only previous similar assignments successfully completed in the last [.....] years.
2. List only those assignments for which the Consultant was legally contracted by the Client as a company or was one of the joint venture members. Assignments completed by the Consultant’s individual experts working privately or through other consulting firms cannot be claimed as the relevant experience of the Consultant, or that of the Consultant’s partners or sub-consultants, but can be claimed by the Experts themselves in their CVs. The Consultant should be prepared to substantiate the claimed experience by presenting copies of relevant documents and references if so requested by the Client.

Duration	Assignment name/& brief description of main deliverables/outputs	Name of Client & Country of Assignment	Approx. Contract value (in US\$ equivalent)/ Amount paid to your firm	Role on the Assignment
{e.g., Jan.2009–Apr.2010}	{e.g., “Improvement quality of.....”: designed master plan for rationalization of;}	{e.g., Ministry of, country}	{e.g., US\$1 mill/US\$0.5 mil}	{e.g., Lead partner in a JV A&B&C}
{e.g., Jan-May 2008}	{e.g., “Support to sub-national government.....” : drafted secondary level regulations on.....}	{e.g., municipality of....., country}	{e.g., US\$0.2 mil/US\$0.2 mil}	{e.g., sole Consultant}

FORM TECH-3 (FOR FULL TECHNICAL PROPOSAL)**COMMENTS AND SUGGESTIONS ON THE TERMS OF REFERENCE, COUNTERPART STAFF, AND FACILITIES TO BE PROVIDED BY THE CLIENT**

Form TECH-3: comments and suggestions on the Terms of Reference that could improve the quality/effectiveness of the assignment; and on requirements for counterpart staff and facilities, which are provided by the Client, including: administrative support, office space, local transportation, equipment, data, etc.

A - On Terms of Reference

{improvements to the Terms of Reference, if any}

B - On Counterpart Staff and Facilities

{comments on counterpart staff and facilities to be provided by the Client. For example, administrative support, office space, local transportation, equipment, data, background reports, etc., if any}

FORM TECH-4 (FOR FULL TECHNICAL PROPOSAL ONLY)**DESCRIPTION OF APPROACH, METHODOLOGY, AND WORK PLAN IN
RESPONDING TO THE TERMS OF REFERENCE**

Form TECH-4: a description of the approach, methodology and work plan for performing the assignment, including a detailed description of the proposed methodology and staffing for training, if the Terms of Reference specify training as a specific component of the assignment.

{Suggested structure of your Technical Proposal (in FTP format):

- a) Technical Approach and Methodology
- b) Work Plan
- c) Organization and Staffing}

- a) **Technical Approach and Methodology.** {Please explain your understanding of the objectives of the assignment as outlined in the Terms of Reference (TORs), the technical approach, and the methodology you would adopt for implementing the tasks, (including on addressing Sexual Exploitation and Abuse (SEA) and Sexual Harassment (SH) risks and, as required in the TOR, on managing cyber security risks related to the proposed consulting services contract to deliver the expected output(s), and the degree of detail of such output. Please do not repeat/copy the TORs in here.} {proposed solution, architecture, data security}
- b) **Work Plan.** {Please outline the plan for the implementation of the main activities/tasks of the assignment, their content and duration, phasing and interrelations, milestones (including interim approvals by the Client), and tentative delivery dates of the reports. The proposed work plan should be consistent with the technical approach and methodology, showing your understanding of the TOR and ability to translate them into a feasible working plan. A list of the final documents (including reports) to be delivered as final output(s) should be included here. The work plan should be consistent with the Work Schedule Form.}
- c) **Organization and Staffing.** {Please describe the structure and composition of your team, including the list of the Key Experts, Non-Key Experts and relevant technical and administrative support staff.

FORM TECH-5 (FOR FTP AND STP)

WORK SCHEDULE AND PLANNING FOR DELIVERABLES

N°	Deliverables ¹ (D-..)	Months											
		1	2	3	4	5	6	7	8	9		n	TOTAL
D-1	{e.g., Deliverable #1: Report A												
	1) data collection												
	2) drafting												
	3) inception report												
	4) incorporating comments												
	5) delivery of final report to Client}												
D-2	{e.g., Deliverable #2:}												
	0												

- 1 List the deliverables with the breakdown for activities required to produce them and other benchmarks such as the Client's approvals. For phased assignments, indicate the activities, delivery of reports, and benchmarks separately for each phase.
- 2 Duration of activities shall be indicated in a form of a bar chart.
- 3 Include a legend, if necessary, to help read the chart.

FORM TECH-6 (FOR FTP AND STP)

TEAM COMPOSITION, ASSIGNMENT, AND KEY EXPERTS' INPUTS

N°	Name	Expert's input (in person/month) per each Deliverable (listed in TECH-5)										Total time-input (in Months)			
		Position		D-1		D-2		D-3			D-...		Home	Field	Total
KEY EXPERTS															
K-1	{e.g., Mr. Abbbb}	[Team Leader]	[Home]	[2 month]		[1.0]		[1.0]							
			[Field]	[0.5 m]		[2.5]		[0]							
K-2															
K-3															
n															
Subtotal															
NON-KEY EXPERTS															
N-1			[Home]												
			[Field]												
N-2															
n															
Subtotal															
Total															

- 1 For Key Experts, the input should be indicated individually for the same positions as required under the Data Sheet ITC21.1.
- 2 Months are counted from the start of the assignment/mobilization. One (1) month equals twenty-two (22) working (billable) days. One working (billable) day shall be not less than eight (8) working (billable) hours.

- 3 “Home” means work in the office in the expert’s country of residence. “Field” work means work carried out in the Client’s country or any other country outside the expert’s country of residence.



Full time input



Part time input

FORM TECH-6 (CONTINUED)

CURRICULUM VITAE (CV)

Position Title and No.	{e.g., K-1, TEAM LEADER}
Name of Expert:	{Insert full name}
Date of Birth:	{day/month/year}
Country of Citizenship/Residence	

Education: {List college/university or other specialized education, giving names of educational institutions, dates attended, degree(s)/diploma(s) obtained}

Employment record relevant to the assignment: {Starting with present position, list in reverse order. Please provide dates, name of employing organization, titles of positions held, types of activities performed and location of the assignment, and contact information of previous clients and employing organization(s) who can be contacted for references. Past employment that is not relevant to the assignment does not need to be included.}

Period	Employing organization and your title/position. Contact information for references	Country	Summary of activities performed relevant to the Assignment
[e.g., May 2005-present]	[e.g., Ministry of, advisor/consultant to... For references: Tel...../e-mail.....; Mr. Hbbbbb, deputy minister]		

Membership in Professional Associations and Publications:

Language Skills (indicate only languages in which you can work): _____

Adequacy for the Assignment:

Detailed Tasks Assigned on Consultant's Team of Experts:	Reference to Prior Work/Assignments that Best Illustrates Capability to Handle the Assigned Tasks
{List all deliverables/tasks as in TECH- 5 in which the Expert will be involved)	

Expert 's contact information: (e-mail, phone.....)

Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available, as and when necessary, to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.

{day/month/year}

Name of Expert

Signature

Date

{day/month/year}

Name of authorized
Representative of the Consultant
(the same who signs the Proposal)

Signature

Date

FORM TECH-7 (FOR FTP AND STP)

CODE OF CONDUCT FOR EXPERTS FORM

Note to the Consultant:

The minimum content of the Code of Conduct form as set out by the Client shall not be substantially modified. However, the Consultant may add requirements as appropriate, including to take into account Contract-specific issues/risks.

The Consultant shall initial and submit the Code of Conduct form as part of its Proposal.

CODE OF CONDUCT FOR EXPERTS

We are the Consultant, [*enter name of Consultant*]. We have signed a contract with [*enter name of Client*] for [*enter description of the Services*]. Our contract requires us to implement measures to address social risks related to the Services, if any, including the risks of sexual exploitation, sexual abuse and sexual harassment.

This Code of Conduct is part of our measures to deal with social risks, if any, related to the Services. This Code of Conduct identifies the behavior that we require from all Experts.

Our workplace for carrying the Services is an environment where unsafe, offensive, abusive or violent behavior will not be tolerated and where all persons should feel comfortable raising issues or concerns without fear of retaliation.

REQUIRED CONDUCT

Experts shall:

1. carry out his/her duties competently and diligently;
2. comply with this Code of Conduct and all applicable laws, regulations and other requirements;
3. treat other people with respect, and not discriminate against specific groups such as women, people with disabilities, migrant workers or children;
4. not engage in Sexual Harassment, which means unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature with other Experts, or Client's Personnel;
5. not engage in Sexual Exploitation, which means any actual or attempted abuse of position of vulnerability, differential power or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another;

6. not engage in Sexual Abuse, which means the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions;
7. not engage in any form of sexual activity with individuals under the age of 18, except in case of pre-existing marriage;
8. complete training/sensitization that may be provided related to the social aspects of the Contract, including on Sexual Exploitation and Abuse (SEA), and Sexual Harassment (SH);
9. report violations of this Code of Conduct; and
10. not retaliate against any person who reports violations of this Code of Conduct, whether to us or the Client.

RAISING CONCERNS

If any person observes behavior that he/she believes may represent a violation of this Code of Conduct, or that otherwise concerns him/her, he/she should raise the issue promptly. This can be done in either of the following ways:

1. Contact [*enter name of person assigned by the Consultant to handle such matters*] in writing at this address [] or by telephone at [] or in person at []; or
2. Call [] to reach the Consultant's hotline (*if any*) and leave a message.

The person's identity will be kept confidential, unless reporting of allegations is mandated by the country law. Anonymous complaints or allegations may also be submitted and will be given all due and appropriate consideration. We take seriously all reports of possible misconduct and will investigate and take appropriate action. We will provide warm referrals to service providers that may help support the person who experienced the alleged incident, as appropriate.

There will be no retaliation against any person who raises a concern in good faith about any behavior prohibited by this Code of Conduct. Such retaliation would be a violation of this Code of Conduct.

CONSEQUENCES OF VIOLATING THE CODE OF CONDUCT

Any violation of this Code of Conduct by Experts may result in serious consequences, up to and including termination and possible referral to legal authorities.

FOR EXPERT:

I have received a copy of this Code of Conduct written in a language that I comprehend. I understand that if I have any questions about this Code of Conduct, I can contact [*enter name of the contact person(s) assigned by the Consultant*] requesting an explanation.

Name of Expert: [insert name]

Signature: _____

Date: (day month year): _____

Countersignature of authorized representative of the Consultant:

Signature: _____

Date: (day month year): _____

FORM TECH-8
SEXUAL EXPLOITATION AND ABUSE (SEA) AND/OR SEXUAL HARASSMENT (SH)
PERFORMANCE DECLARATION

*[The following table shall be filled in for the Consultant, each member of a Joint Venture
and each subconsultant proposed by the Consultant]*

Consultant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's or Subconsultant's Name: *[insert full name]*

RFP No. and title: *[insert RFP number and title]*

Page *[insert page number]* of *[insert total number]* pages

SEA and/or SH Declaration
We: ☐ (a) have not been subject to disqualification by the Bank for non-compliance with SEA/ SH obligations ☐ (b) are subject to disqualification by the Bank for non-compliance with SEA/ SH obligations ☐ (c) had been subject to disqualification by the Bank for non-compliance with SEA/ SH obligations. An arbitral award on the disqualification case has been made in our favor.
<i>[If (c) above is applicable, attach evidence of an arbitral award reversing the findings on the issues underlying the disqualification.]</i>

Section 4. Financial Proposal - Standard Forms

{*Notes to Consultant* shown in brackets { } provide guidance to the Consultant to prepare the Financial Proposals; they should not appear on the Financial Proposals to be submitted.}

Financial Proposal Standard Forms shall be used for the preparation of the Financial Proposal according to the instructions provided in Section 2.

- FIN-1 Financial Proposal Submission Form
- FIN-2 Summary of Costs
- FIN-3 Breakdown of Remuneration, including Appendix A “Financial Negotiations - Breakdown of Remuneration Rates” in the case of QBS method
- FIN-4 Reimbursable expenses

FORM FIN-1

FINANCIAL PROPOSAL SUBMISSION FORM

{Location, Date}

To: [Name and address of Client]

Dear Sirs:

We, the undersigned, offer to provide the consulting services for [Insert title of assignment] in accordance with your Request for Proposal dated [Insert Date] and our Technical Proposal.

Our attached Financial Proposal is for the amount of {Indicate the corresponding to the amount(s) currency(ies)} {Insert amount(s) in words and figures}, *[Insert “including” or “excluding”]* of all indirect local taxes in accordance with ITC 25.1 in the Data Sheet. The estimated amount of local indirect taxes is {Insert currency} {Insert amount in words and figures} which shall be confirmed or adjusted, if needed, during negotiations. {Please note that all amounts shall be the same as in Form FIN-2}.

Our Financial Proposal shall be valid and remain binding upon us, subject to the modifications resulting from Contract negotiations, for the period of time specified in the Data Sheet, ITC 12.1.

Commissions and gratuities paid or to be paid by us to an agent or any third party relating to preparation or submission of this Proposal and Contract execution, paid if we are awarded the Contract, are listed below:

Name and Address of Agents	Amount and Currency	Purpose of Commission or Gratuity

{If no payments are made or promised, add the following statement: “No commissions or gratuities have been or are to be paid by us to agents or any third party relating to this Proposal and Contract execution.”}

We understand you are not bound to accept any Proposal you receive.

We remain,

Yours sincerely,

Signature (of Consultant’s authorized representative) {In full and initials}:

Full name: {insert full name of authorized representative}

Title: {insert title/position of authorized representative}

Name of Consultant (company's name or JV's name):

Capacity: {insert the person's capacity to sign for the Consultant}

Address: {insert the authorized representative's address}

Phone/fax: {insert the authorized representative's phone and fax number, if applicable}

Email: {insert the authorized representative's email address}_____

{For a joint venture, either all members shall sign or only the lead member/consultant, in which case the power of attorney to sign on behalf of all members shall be attached}

FORM FIN-2 SUMMARY OF COSTS

Item	Cost			
	{Consultant must state the proposed Costs in accordance with ITC 16.4 of the Data Sheet; delete columns which are not used}			
	{Insert Foreign Currency # 1}	{Insert Foreign Currency # 2, if used}	{Insert Foreign Currency # 3, if used}	{Insert Local Currency, if used and/or required (16.4 Data Sheet)}
Cost of the Financial Proposal				
Including:				
(1) Remuneration				
(2) Reimbursables				
Total Cost of the Financial Proposal: {Should match the amount in Form FIN-1}				
Indirect Local Tax Estimates – to be discussed and finalized at the negotiations if the Contract is awarded				
(i) {insert type of tax e.g., VAT or sales tax}				
(ii) {e.g., income tax on non-resident experts}				
(iii) {insert type of tax}				
Total Estimate for Indirect Local Tax:				

Footnote: Payments will be made in the currency(ies) expressed above (Reference to ITC 16.4).

FORM FIN-3 BREAKDOWN OF REMUNERATION

When used for Lump-Sum contract assignment, information to be provided in this Form shall only be used to demonstrate the basis for the calculation of the Contract's ceiling amount; to calculate applicable taxes at contract negotiations; and, if needed, to establish payments to the Consultant for possible additional services requested by the Client. This Form shall not be used as a basis for payments under Lump-Sum contracts

A. Remuneration								
No.	Name	Position (as in TECH-6)	Person-month Remuneration Rate	Time Input in Person/Month (from TECH-6)	{Currency # 1- as in FIN-2}	{Currency # 2- as in FIN-2}	{Currency# 3- as in FIN-2}	{Local Currency- as in FIN-2}
Key Experts								
K-1			[Home]					
			[Field]					
K-2								
Non-Key Experts								
N-1			[Home]					
N-2			[Field]					
Total Costs								

Appendix A. Financial Negotiations - Breakdown of Remuneration Rates

1. Review of Remuneration Rates

- 1.1. The remuneration rates are made up of salary or a base fee, social costs, overheads, profit, and any premium or allowance that may be paid for assignments away from headquarters or a home office. An attached Sample Form can be used to provide a breakdown of rates.
- 1.2. If the RFP requests submission of a technical proposal only, the Sample Form is used by the selected Consultant to prepare for the negotiations of the Contract. If the RFP requests submission of the financial proposal, the Sample Form shall be completed and attached to the Financial Form-3. Agreed (at the negotiations), breakdown sheets shall form part of the negotiated Contract and be included in its Appendix D or C.
- 1.3. At the negotiations the firm shall be prepared to disclose its audited financial statements for the last three years, to substantiate its rates, and accept that its proposed rates and other financial matters are subject to scrutiny. The Client is charged with the custody of government funds and is expected to exercise prudence in the expenditure of these funds.
- 1.4. Rate details are discussed below:
 - (i) Salary is the gross regular cash salary or fee paid to the individual in the firm's home office. It shall not contain any premium for work away from headquarters or bonus (except where these are included by law or government regulations).
 - (ii) Bonuses are normally paid out of profits. To avoid double counting, any bonuses shall not normally be included in the "Salary" and should be shown separately. Where the Consultant's accounting system is such that the percentages of social costs and overheads are based on total revenue, including bonuses, those percentages shall be adjusted downward accordingly. Where national policy requires that 13 months' pay be given for 12 months' work, the profit element need not be adjusted downward. Any discussions on bonuses shall be supported by audited documentation, which shall be treated as confidential.
 - (iii) Social Charges are the costs of non-monetary benefits and may include, inter alia, social security (including pension, medical, and life insurance costs) and the cost of a paid sick and/or annual leave. In this regard, a paid leave during public holidays or an annual leave taken during an assignment if no Expert's replacement has been provided is not considered social charges.
 - (iv) Cost of Leave. The principles of calculating the cost of total days leave per annum as a percentage of basic salary is normally calculated as follows:

$$\text{Leave cost as percentage of salary} = \frac{\text{total days leave} \times 100}{[365 - w - ph - v - s]}$$

Where w = weekends, ph = public holidays, v = vacation, and s = sick leave.

Please note that leave can be considered as a social cost only if the Client is not charged for the leave taken.

- (v) Overheads are the Consultant's business costs that are not directly related to the execution of the assignment and shall not be reimbursed as separate items under the Contract. Typical items are home office costs (non-billable time, time of senior Consultant's staff monitoring the project, rent of headquarters' office, support staff, research, staff training, marketing, etc.), the cost of Consultant's personnel not currently employed on revenue-earning projects, taxes on business activities, and business promotion costs. During negotiations, financial statements audited, certified as correct by an independent auditor and supporting the last three years' overheads, shall be available for discussion, together with detailed lists of items making up the overheads and the percentage by which each relates to basic salary. The Client does not accept an add-on margin for social charges, overhead expenses, etc. for Experts who are not permanent employees of the Consultant. In such a case, the Consultant shall be entitled only to administrative costs and a fee on the monthly payments charged for sub-contracted Experts.
- (vi) Profit is normally based on the sum of the Salary, Social costs, and Overheads. If any bonuses paid on a regular basis are listed, a corresponding reduction shall be made in the profit amount. Profit shall not be allowed on travel or any other reimbursable expenses.
- (vii) Away from Home Office Allowance or Premium or Subsistence Allowances. Some Consultants pay allowances to Experts working away from headquarters or outside of the home office. Such allowances are calculated as a percentage of salary (or a fee) and shall not draw overheads or profit. Sometimes, by law, such allowances may draw social costs. In this case, the amount of this social cost shall still be shown under social costs, with the net allowance shown separately.

UNDP standard rates for the particular country may be used as reference to determine subsistence allowances.

Sample Form

Consultant:
Assignment:

Country:
Date:

Consultant's Representations Regarding Costs and Charges

We hereby confirm that:

- (a) the basic fees indicated in the attached table are taken from the firm's payroll records and reflect the current rates of the Experts listed which have not been raised other than within the normal annual pay increase policy as applied to all the Consultant's Experts;
- (b) attached are true copies of the latest pay slips of the Experts listed;
- (c) the away- from- home office allowances indicated below are those that the Consultant has agreed to pay for this assignment to the Experts listed;
- (d) the factors listed in the attached table for social charges and overhead are based on the firm's average cost experiences for the latest three years as represented by the firm's financial statements; and
- (e) said factors for overhead and social charges do not include any bonuses or other means of profit-sharing.

[Name of Consultant]

Signature of Authorized Representative

Date

Name: _____

Title: _____

**Consultant's Representations Regarding Costs and Charges
(Model Form I)**

(Expressed in {insert name of currency*})

Personnel		1	2	3	4	5	6	7	8
Name	Position	Basic Remuneration Rate per Working Month/Day/Year	Social Charges ¹	Overhead ¹	Subtotal	Profit ²	Away from Home Office Allowance	Proposed Fixed Rate per Working Month/Day/Hour	Proposed Fixed Rate per Working Month/Day/Hour ¹
Home Office									
Client's Country									

{* If more than one currency is used, use additional table(s), one for each currency}

1. Expressed as percentage of 1
2. Expressed as percentage of 4

FORM FIN-4 BREAKDOWN OF REIMBURSABLE EXPENSES

When used for Lump-Sum contract assignment, information to be provided in this Form shall only be used to demonstrate the basis for calculation of the Contract ceiling amount, to calculate applicable taxes at contract negotiations and, if needed, to establish payments to the Consultant for possible additional services requested by the Client. This form shall not be used as a basis for payments under Lump-Sum contracts

B. Reimbursable Expenses								
N°	Type of Reimbursable Expenses	Unit	Unit Cost	Quantity	{Currency # 1- as in FIN-2}	{Currency # 2- as in FIN-2}	{Currency# 3- as in FIN-2}	{Local Currency- as in FIN-2}
—	{e.g., Per diem allowances**}	{Day}						
—	{e.g., International flights}	{Ticket}						
—	{e.g., In/out airport transportation}	{Trip}						
	{e.g., Communication costs between Insert place and Insert place}							
	{ e.g., reproduction of reports}							
	{e.g., Office rent}							
								
	{Training of the Client's personnel – if required in TOR}							
Total Costs								

Legend:

“Per diem allowance” is paid for each night the expert is required by the Contract to be away from his/her usual place of residence. Client can set up a ceiling.

Section 5. Eligible Countries

In reference to ITC 6.3.2, for the information of shortlisted Consultants, at the present time firms, goods and services from the following countries are excluded from this selection:

Under the ITC 6.3.2 (a): None

Under the ITC 6.3.2 (b): None

Section 6. Fraud and Corruption

(This Section 6, Fraud and Corruption shall not be modified)

1. Purpose

- 1.1 The Bank's Anti-Corruption Guidelines and this annex apply with respect to procurement under Bank Investment Project Financing operations.

2. Requirements

- 2.1 The Bank requires that Borrowers (including beneficiaries of Bank financing); bidders (applicants/proposers), consultants, contractors and suppliers; any sub-contractors, sub-consultants, service providers or suppliers; any agents (whether declared or not); and any of their personnel, observe the highest standard of ethics during the procurement process, selection and contract execution of Bank-financed contracts, and refrain from Fraud and Corruption.

- 2.2 To this end, the Bank:

- a. Defines, for the purposes of this provision, the terms set forth below as follows:
 - i. "corrupt practice" is the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party;
 - ii. "fraudulent practice" is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain financial or other benefit or to avoid an obligation;
 - iii. "collusive practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;
 - iv. "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;
 - v. "obstructive practice" is:
 - (a) deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a Bank investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or
 - (b) acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under paragraph 2.2 e. below.
- b. Rejects a proposal for award if the Bank determines that the firm or individual recommended for the award, any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/ or their employees, has, directly or

indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question.

- c. In addition to the legal remedies set out in the relevant Legal Agreement, may take other appropriate actions, including declaring misprocurement, if the Bank determines at any time that representatives of the Borrower or of a recipient of any part of the proceeds of the loan engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices during the procurement process, selection and/or execution of the contract in question, without the Borrower having taken timely and appropriate action satisfactory to the Bank to address such practices when they occur, including by failing to inform the Bank in a timely manner at the time they knew of the practices;
- d. Pursuant to the Bank's Anti- Corruption Guidelines and in accordance with the Bank's prevailing sanctions policies and procedures, may sanction a firm or individual, either indefinitely or for a stated period of time, including by publicly declaring such firm or individual ineligible (i) to be awarded or otherwise benefit from a Bank-financed contract, financially or in any other manner;¹ (ii) to be a nominated² sub-contractor, consultant, manufacturer or supplier, or service provider of an otherwise eligible firm being awarded a Bank-financed contract; and (iii) to receive the proceeds of any loan made by the Bank or otherwise to participate further in the preparation or implementation of any Bank-financed project;
- e. Requires that a clause be included in bidding/request for proposals documents and in contracts financed by a Bank loan, requiring (i) bidders (applicants/proposers), consultants, contractors, and suppliers, and their sub-contractors, sub-consultants, service providers, suppliers, agents, personnel, permit the Bank to inspect³ all accounts, records and other documents relating to the procurement process, selection and/or contract execution, and to have them audited by auditors appointed by the Bank.

¹ For the avoidance of doubt, a sanctioned party's ineligibility to be awarded a contract shall include, without limitation, (i) applying for pre-qualification, expressing interest in a consultancy, and bidding, either directly or as a nominated sub-contractor, nominated consultant, nominated manufacturer or supplier, or nominated service provider, in respect of such contract, and (ii) entering into an addendum or amendment introducing a material modification to any existing contract.

² A nominated sub-contractor, nominated consultant, nominated manufacturer or supplier, or nominated service provider (different names are used depending on the particular bidding document) is one which has been: (i) included by the bidder in its pre-qualification application or bid because it brings specific and critical experience and know-how that allow the bidder to meet the qualification requirements for the particular bid; or (ii) appointed by the Borrower.

³ Inspections in this context usually are investigative (i.e., forensic) in nature. They involve fact-finding activities undertaken by the Bank or persons appointed by the Bank to address specific matters related to investigations/audits, such as evaluating the veracity of an allegation of possible Fraud and Corruption, through the appropriate mechanisms. Such activity includes but is not limited to: accessing and examining a firm's or individual's financial records and information, and making copies thereof as relevant; accessing and examining any other documents, data and information (whether in hard copy or electronic format) deemed relevant for the investigation/audit, and making copies thereof as relevant; interviewing staff and other relevant individuals; performing physical inspections and site visits; and obtaining third party verification of information.

Section 7. Terms of Reference

Background

The Government of Sri Lanka (GoSL) with support from the World Bank (WB) is currently in the process of implementing an investment project titled, the "Climate Resilience Multiphase Program (CResMPA)." This program is executed by the Ministry of Irrigation with the implementation support of the Ministry of Defence.

The main objective of component 1 of the project is to strengthen the capacity of the GoSL to deliver effective forecasts and warnings of floods and landslides for early action. The project involves four agencies: the Department of Meteorology (DoM), the Irrigation Department (ID), the National Building Research Organization (NBRO), and the Disaster Management Center (DMC). These terms of reference (TOR) focus on establishing DSS. This TOR is simultaneously interconnected with upgrading the Disaster Management Centre (DMC) facilities to improve the community response.

A key component of the project is the design and implementation of a Decision Support System (**DSS**). The **DSS** will provide a centralized platform to integrate hazard, risk, and socioeconomic data, enabling timely and informed decision-making. This system aims to improve situational awareness, optimize resource allocation, and enhance coordination among agencies to adapt and mitigate disaster impacts effectively.

The DSS will feature advanced technologies, including real-time geospatial analytics, predictive modelling, and AI-driven insights. It will serve as a critical tool for anticipating climate risks, supporting emergency responses, and fostering long-term resilience in vulnerable communities.

This initiative represents a significant step towards aligning Sri Lanka's disaster management capabilities with international best practices, ensuring a proactive and data-driven approach to disaster preparedness and response. The Decision Support System provides a contextual analysis of a variety of hazards, risks and vulnerabilities, and socioeconomic information to support informed decision-making.

One of the key challenges in disaster response is to ensure that timely information reaches related agencies and first responders before they make critical decisions. The first few hours following a disaster are when key decisions are made about decision assessment and resource allocation. Without timely warnings and information, rescuers lose critical time for important tasks such as evacuation, locating clusters of probable survivors, and, more generally, the optimization of response and recovery options.

A smart geospatial platform performs real-time collection, management, analysis, distribution, and visualization of information for enhanced situational awareness. A smart platform can visually display the disaster and its location accurately in real-time, hence users can more rapidly understand the disaster's distribution and predicted trajectory. This real-time stream of critical information populates the optimisation/simulation engine which increases the cognitive abilities of decision-makers when faced with disasters of large magnitude and uncertainty.

This will serve as the digital interface for collaboration among all primary agencies and other stakeholders at the national and local levels; enabling the development of impact scenarios to

anticipate and respond early to emerging risks associated with climate change and the evolving vulnerabilities of society and the economy; and provide an education and training environment to improve anticipatory action.

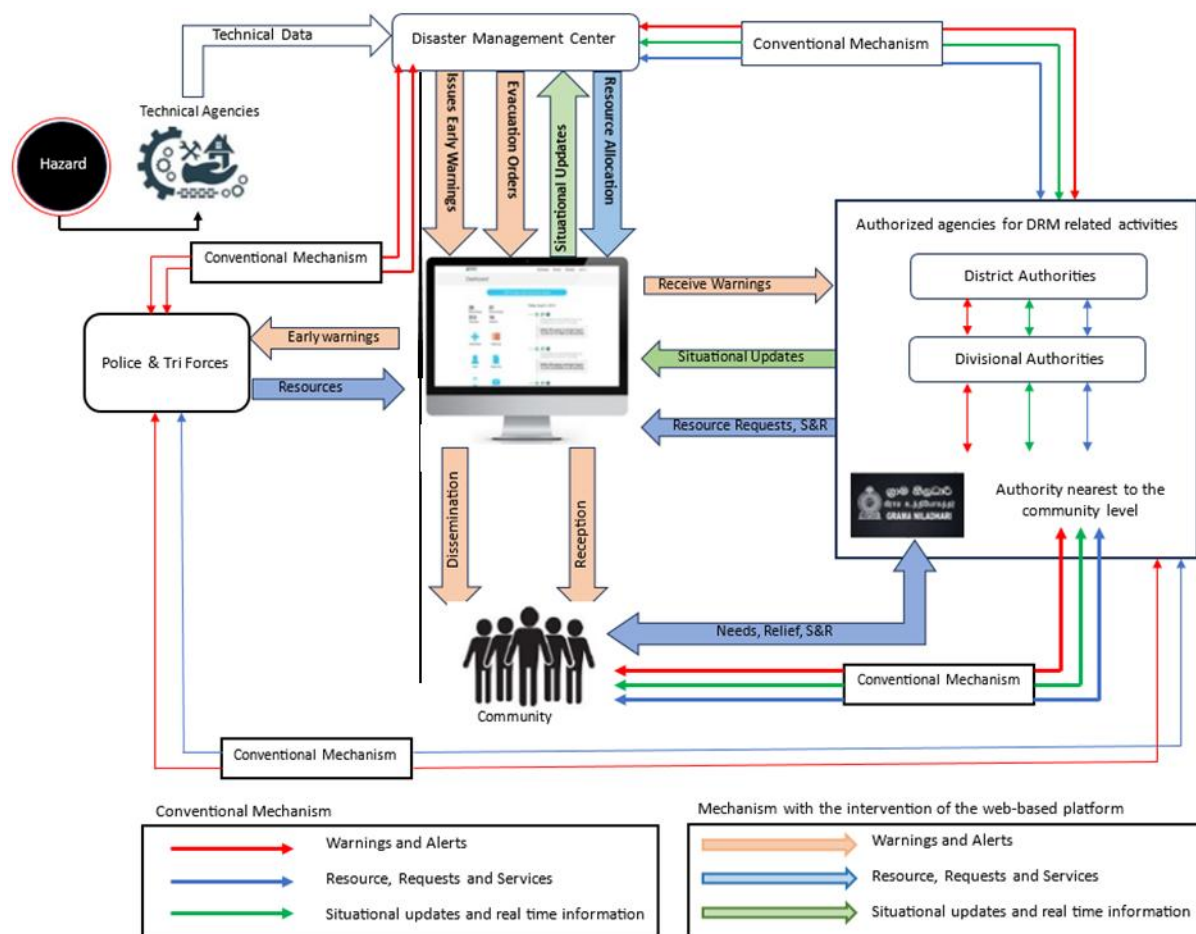


Figure 1 Proposed DSS Flow Chart

36. The Overview of the Project:

This assignment must align with the World Bank's goals of fostering climate resilience and disaster risk reduction as outlined in the Sendai Framework for Disaster Risk Reduction 2015–2030 and the Paris Agreement. By leveraging advanced technologies such as predictive analytics, AI-driven models, and geospatial visualization, the Decision Support System (DSS) will strengthen institutional capacity and community preparedness. The system aims to minimize disaster impacts, safeguard vulnerable populations, and promote sustainable development by integrating the global best practices for disaster resilience into Sri Lanka's national framework.

This approach ensures the project contributes to the World Bank's overarching mission of reducing poverty and building shared prosperity in a sustainable manner.

Objectives of the Project:

- a. Monitor real-time parameters against the standard environmental parameters in Sri Lanka,
- b. Integrate information/ data flows related to predicting disasters for issuing early warnings.
- c. Perform as a high-level operational ICT platform for receiving and sharing/ dissemination of information, data, and functions of different stakeholders
- d. Capture the pre-deployment project activity that attracts Subject Matter Expert (SME) knowledge that must be sorted during multiple project phases.
- e. Integrate real-time and historical environmental data for predictive analytics and risk management.
- f. A real-time data dashboard for risk/data visualization and quick decision-making.
- g. Incorporate predictive models for anticipatory actions and decision support.
- h. Implement a software to modular, and plug-able architecture for scalability.
- i. Strengthen resource management through enterprise resource Planning (ERP) systems for Operational, logistics, Planning, financial and Asset tracking.
- j. Capable of supporting seamless communication and integration with Unmanned Aerial Vehicle -Software Define Networks (UAV-SDN), IOT sensors, and other field data collection tools.
- k. Enhance situational awareness through GIS visualizations.
- l. Community-driven and User-friendly software.
- m. All stakeholders/public visualization and feedback mechanism.

Role of the DSS during a disaster

The DSS system will acquire and process the data received from the agencies, and process according to a predefined set of rules to assist and automate/ coordinate a range of corrective measures taken by the DMC including notification, alerting functions, escalations, and coordination.

Key Function of the DSS

A. Risk Identification :

- a. DSS will perform the anticipatory action by predicting risks based on the agency data (Both historical data, and real-time data)

B. Issue Reporting and Status monitoring :

- b. DSS will aggregate the relevant stakeholders and service providers who will be part of the situation management team formed to manage a current situation, and coordinate communication via a streamlined approach.
- c. DSS will track the progress, measure actions against pre-agreed SLAs (Service Level Agreements), escalate to ensure the actions taken are reported to the relevant parties, and produce required reporting to assist with the closure of the situation.

B. Continuous Improvements:

- a. DSS will provide Analytical reporting on case performance, and how SLAs with stakeholders, can be further tuned to optimize the internal processes, and the DSS system's pre-defined decision rules.
- b. DSS will also integrate several internal processes executed by the Disaster Management Center to ensure the seamless transition of information between divisions to improve communication, effective management of information, and after-response times.

C. Modular Architecture:

- a. The DSS will adopt a world-class architecture. *It is required to follow Digital Public standards.*
- b. **Containerized System:** Containerized software system using such that the system is an Operating System (OS) and on-premises hosting system.
- c. **Front End Content Management:** Highly secure and modular framework.
- d. **Backend ERP:** Software for resource planning, fiscal management, and operational workflows.
- e. **GIS Mapping:** Data and information visualization facilities should be in cooperation.
- f. **Streaming Integration:** Real-time data collection and integration facilities.
- g. **Visualization:** Advanced dashboards for real-time reporting and situational awareness using Data Visualization Frameworks (DVF)

D. Predictive Analytics status

- a. Predictive Risk Analysis and Early Warning: Machine learning models for disaster risk detection.
- b. **Resource Optimization:** Automating the allocation of resources based on data-driven insights.
- c. Automated reporting, data summarization, and communication with field responders.
- d. **Simulation and Forecasting:** Simulations help estimate the impact of potential disasters under various conditions.

E. Enhanced Communication and Security

- a. **UAV-SDN Integration:** Integration of UAVs and Software-Defined Networking (SDN) for field connectivity.
- b. **Cybersecurity Measures:** Existing and next-generation security system and monitoring tools to protect system integrity.
- c. **Resilience:** Ensure communication and operational continuity.

Environmental Status Data from the Agencies, and Staff

The information that will be integrated will primarily be received from technical agencies such as the Department of Meteorology (DoM), the Irrigation Department (ID), the National Building Research Organization (NBRO) etc. Around 50 agencies will be involved in the system based on the National Emergency Operation Plan (NEOP) and NEOP is freely available to visit by the consultant at www.dmc.gov.lk. The consultant shall assess the mission requirement of each agency and accommodate that information and ongoing activities for direct numerical control (DNC) management. Vulnerability assessment and data sets stated below are available at DMC, and consultants can visit those documents.

Data sets available at DMC;

1. Disinventar- historical data
2. Hazard profile
3. Early warning messages./ situation reports/ warning signs

The DMC's staff based on their delegation levels will also be able to provide data manually into the DSS system, which will then be used to update the status of an ongoing situation or for usual ongoing risk management purposes. DSS will be operated as a standalone system which is operated and maintained by the DMC interconnected with other technical agencies and relevant stakeholders.

The DSS will be configured periodically to adjust the information processing rules, and actions as the agencies and the environmental parameters change.

DSS will also communicate with the agencies concerning the information received periodically for ongoing risk assessments and will assess the information received during a situation; and will provide analytical predictions and recommendations on continuous improvements.

Response teams and 3rd party service providers.

DSS will coordinate efforts using effective communication, based on predefined rules, and on-demand requests from Situation Assessment officers. The Communication pathways, workflow sequences, and escalations will also be part of the SLAs recorded in the DSS system's rules engine, which will ensure appropriate service providers, and their contingency resources are contacted.

Feedback from ground staff, for real-time monitoring, and action.

DSS will receive a range of information from its regional/national/local operations teams, and offices. The information types and the actions taken by the DSS will ensure the system's

flexibility to adapt and respond fast and provide up-to-date information to the DSS system's automated decision system, and to the officers monitoring a situation or a risk.

Periodic review of the feedback process, and how the responses are vetted, and actioned will also be done in conjunction with the DMC, and its regional operators to improve and further uphold the ongoing SLAs.

Project Technology Assessment

Currently, the DMC under CResMPA aegis, is conducting a project to establish the current technological capabilities and operational procedures of the DMC with the aim of improving and refurbishing both the ICT and Civil infrastructures of the DMC and the 24 District DMC's. In collaboration with this project, the initial inception and conceptual study of the DSS will establish the changes that need to be done at the agencies to meet the DSS target technology architecture.

DSS systems capability, the types of decisions it will automate, and its operational capabilities DMC will have to be mapped as part of the technology assessment to ensure the appropriate data input types, timelines, and administrative functions are understood.

The system must incorporate advanced technologies, Artificial intelligence (AI) based on Data Science Techniques and Large Language Models (LLM). The system will be designed with a modular open-source architecture such that it can be easily extended in the future. The system will also include robust ERP and GIS backend systems to ensure scalability, efficiency, and compliance with international best practices.

The Large Language Model (LLM) or a Machine Language-based Rules Engine will be configured with predefined rules to action when risks or issues are detected. The definition of risk and issues based on each type of input from agencies needs to be mapped and tested to ensure appropriate actions, notifications and workflow options have been adopted by the **DSS**. The rules engine also needs to operate in a robust and agile manner when errors, and/ or unforeseen risks are encountered.

DSS technology assessment needs to ensure the outputs of the DSS system can be appropriately delivered to all intended parties. This involves an assessment of the recipient's technological capability, the technological knowledge of the operational personnel, and a verification methodology to ensure critical information has been correctly received and understood.

The DSS Ecosystem needs to be assessed to ensure all stakeholder groups are fully onboard and contribute to the functional and Operational Continuity Plan (OCP) of the target operating model of the DSS.

Disaster Recovery (DR), and OCP must be done during this inception phase to identify the critical functions that need to be established to ensure operations can continue at all DMC centers, and at the agencies where the DSS receive its critical information.

All tasks described in this TOR, will be carried out in close consultation with DG DMC and staff and, the Project Coordination Team (PCT).

Stakeholders will have clearly defined responsibilities to ensure effective inter-agency coordination. The Disaster Management Center (DMC) will act as the primary coordinating body, overseeing the development, implementation, and operation of the DSS. The Department of Meteorology (DoM), Irrigation Department (ID), and National Building Research

Organization (NBRO) will provide real-time and historical data inputs critical for predictive analytics and situational awareness. Regional and district-level disaster management authorities will be responsible for implementing DSS-driven recommendations and ensuring community-level preparedness. The Ministry of Defence will facilitate high-level coordination and integration across national security and emergency response agencies. All stakeholders will participate in periodic review meetings to ensure alignment with project goals, address implementation challenges, and adapt strategies based on emerging risks and opportunities. Clear communication protocols will be established to enhance collaboration and streamline workflows across agencies.

Scope of Work and Tasks

The total duration of the contract would be 64 weeks.

The work of the consultant shall consider the following areas:

- A. Review existing systems and resources of DMC to identify the gaps and weaknesses to update the existing schematic (concept) and requirements in line with the TOR.
- B. Overview of the existing systems and outputs of other relevant stakeholders to ensure seamless communication from upstream to downstream.
- C. Provide total solutions for the DSS including the following not limited to.
 - i. The consultant shall prepare a comprehensive DSS architectural and engineering plan that facilitates decision-making by emergency and disaster management stakeholders and communities. It enables enriched scenario planning and supports the strategic, tactical, and operational decisions that arise in emergency and disaster events. The platform facilitates the real-time collection of Risk-Vulnerability-Exposure-data, Management, analysis, distribution, and visualization of data and information for enhanced situational awareness at the different administrative levels. Ensure centralized repositories unify multi-source data management. The platform should have data layers preloaded with the solution relevant to disaster management.
 - ii. Data interoperability between agencies must be facilitated through DMC data platform, Ensuring compatibility of data usage across different formats.
 - iii. Integration of location-based data for mapping hazards and vulnerable areas and Geospatial Information Systems (GIS) should be facilitated.
 - iv. Consultant shall provide Impact-based Early Warning generation, Risk visualization, Last-mile Early Warning dissemination system with common alerting protocol (CAP), Public communication through the call center, and Emergency response coordination, to enable comprehensive understanding and optimized solutions for the DSS platform. The solution should feature predictive modelling for natural phenomena, risk assessment tools to estimate impacts on populations and infrastructure and early warning systems with location-based public alerts and real-time updates
 - v. The solution should Include decision-making tools with scenario analysis for evaluating disaster response outcomes, resource allocation modules for critical resources, and visualization tools for rapid situational assessment.

- vi. The system should provide communication and collaboration tools for synchronizing efforts, along with community engagement tools for disaster management.
- vii. Consultant shall assess the ICT facilities and communication facilities of DMC (Software, Hardware) and recommend a total solution to achieve an effective, reliable, sustainable system for DSS with an Early Warning dissemination mechanism. Expected dispatch speed: minimum of 0.5 million per minute.
- viii. Include operational support modules for real-time disaster response management, and unified oversight, and management tools for tracking and coordinated transportation.
- ix. Stakeholder management and emergency communication, Disaster relief information, reporting local incidents, providing updates on requests, Information on evacuations, generation of situational reports, and continuous communication from the public to support the DSS systems.
- x. As part of Relief and Recovery Planning, Systems to manage long-term recovery efforts and reconstruction by Data gathering and reporting should be included.
- xi. The system should facilitate real-time updates and access by field operatives and citizens, featuring geotagged data updates, tracking, notifications, offline data collection, route optimization for rescue and relief. Role-based dashboards with customizable interfaces should cater to diverse users.
- xii. Consultant shall prepare a coordination plan with officials in DMC, District authorities, Divisional authorities of other related authorities, and Village level officials and tri-forces, police.
- xiii. Maintain knowledge repositories and Include tools for disaster preparedness.
- xiv. The system should enable public information dispatch and support data from crowd feedback to identify disasters. It should also allow the public to upload data /information and provide feedback.
- xv. The system should enable disaster warnings via TV broadcasters and through telecom service providers, with mechanisms to track news delivery and confirm receipt by GNs, first responders, and the public. Means to assess the effectiveness of alerts and mitigation plans should be provided.
- xvi. The system must address all disasters outlined in the DMC framework, connect with all relevant agencies, gather data, and facilitate communication and integration with existing and new agency data sources.
- xvii. Consultant shall develop a user manual to share with the operational-level mechanisms.
- xviii. The consultant shall complete a pilot run of the DSS project with the participation of authorities' operational-level officials of the DMC, and the responsible officers from each technical agency (Meteorology Department, Irrigation Department, National Building Research Organization (NBRO), and other relevant technical agencies.
- xix. After concluding the pilot studies, a review will be done to identify the possible improvements to the platform. This review will consist of a community survey to track their opinion on the proposed solution and get their feedback for further improvements.

- xx. The consultant shall actively work with DMC staff to develop a DSS platform by monitoring all the above objectives and a results-based framework for the DMC component of the CResMPA project.
- xxi. The proposed application should be preferably a locally developed/customised solution, a locally hosted solution and should consist of a centralized spatial database server with preloaded data layers on a reliable and secure map.
- xxii. The consultant shall demonstrate the conceptual framework to be aware of the road map, government arrangements, data flow, early warning and feedback mechanism, and other deliverables and tasks.
- xxiii. It should comprise but not be limited to facilities such as. Simultaneous multi-user access through any internet browser, Access levels, Dashboard customization for levels, Centralized device management, and Web Services extended by browser-side APIs. The system should support, interaction with users, support Geoprocessing and Geolocation IP Addresses, Publish raster, vector and tabular data, and reliable and secure map for API management.
- xxiv. The platform should include built-in tools for manipulating GIS and base maps, using reliable and secure maps as the base map. It must provide preloaded data layers. Features should include cartographic inquiry, asset, staff and citizen management and spatial and non-spatial layer management and editing of geometric data and attributes.
- xxv. The Platform should be capable of GIS base analytical functions, Location wise behavior, Proximity, Statistical analysis, Weather Analysis, Tracking Analysis, Planning the route for recoveries, and Data Analysis through customized dashboards
- xxvi. The Platform should be capable of exporting the map information from Excel, XML, PDF, GeoJSON and KML formats allowing users to print the map in Jpeg formats and be capable of generating different types of reports.
- xxvii. Basic GIS functionalities such as combining spatial and data queries should be supported.
- xxviii. The system should be capable of multiple users' simultaneous access, with the ability to upload photos in real-time, display WebGIS application in real-time, auto display data location with available items.
- xxix. An agreement on the server maintenance and other costs incurred overall of the platform should be outlined by the consultant for a minimum period of eight years after the full implementation of the project.
- xxx. The consultant shall prepare the required specifications for goods, works, and services for DSS operations based on the World Bank guidelines.
- xxxi. The consultant shall install, furnish, commission and operationalize, the software components and hardware equipment for smooth operation.
- xxxii. The consultant shall hand over all software licenses and authentication to the DMC without any other payment and hidden agenda
- xxxiii. High Availability and Disaster Recovery: The system must ensure high availability (99.999% uptime or greater) through failover clustering and load balancing. Additionally, it must include a comprehensive Disaster Recovery (DR) plan with defined

Recovery Time Objectives (RTO) and Recovery Point Objectives (RPO) to maintain operational continuity during system outages or disasters.

- xxxiv. Proven expertise in AI/ML implementation, ERP system integration, and GIS-based visualization.
 - xxxv. Data Integration and Real-Time Analytics: The system must support robust data integration through standardized to seamlessly ingest real-time and historical data from diverse sources. The solution should include AI/ML-powered analytics modules to provide predictive insights and actionable intelligence for effective decision-making.
 - xxxvi. The vendor should demonstrate their capabilities through implementations and data visualization achieved in a similar project.
 - xxxvii. Configurable Rules Engine with Automated Workflows: The solution should feature a configurable rules engine that allows the creation of dynamic thresholds and workflows. The system must include an automated escalation mechanism that triggers real-time notifications or corrective actions based on user-defined conditions.
- D. Consultant shall prepare all necessary bidding documents including specifications for Servers, network facilities, storage and any other hardware requirement upon this DSS project for eight years.
 - E. Consultant shall provide all necessary training and hands-on training on DSS.
 - F. The consultant shall provide 8 years warranty for DSS software including updated versions and 8 years warranty for hardware and all accessories.

Performance Standards

To ensure the success of the Decision Support System (DSS) and its alignment with the project objectives, a set of performance standards will be implemented. These standards will incorporate Key Performance Indicators (KPIs) to measure system efficiency, accuracy, and stakeholder satisfaction.

System Efficiency

- A. **Uptime:** The DSS should achieve at least 99.9% system availability, minimizing downtime during critical periods.
- B. **Response Time:** Data processing and system response times for real-time analytics must not exceed 2 seconds for most queries.
- C. **Scalability:** The system should handle increasing data loads without performance degradation, demonstrated by stress testing at 150% of expected peak usage. (At peak load on the system, system utilization should not cross 66% level)

Accuracy of Predictive Analytics

- D. **Forecast Precision:** Predictive models for floods, landslides, and other hazards must achieve at least 85% accuracy in identifying potential risks.
- E. **False Alarm Rate:** Maintain a false alarm rate of less than 5%, ensuring reliable alerts that do not overwhelm response teams.

- F. **Validation Metrics:** Use statistical measures such as precision, recall, F1 score, and RMSE (Root Mean Square Error) to validate predictive models against historical data.

Stakeholder Satisfaction

- G. **Training Effectiveness:** At least 90% of trained personnel should demonstrate proficiency in using the DSS, assessed through post-training evaluations.
- H. **User Feedback:** Achieve a stakeholder satisfaction rate of at least 85%, based on surveys assessing ease of use, system reliability, and overall effectiveness.
- I. **Community Engagement:** Positive feedback from community representatives during pilot testing and periodic reviews, with specific emphasis on the usability of early warning systems and disaster preparedness tools.

Monitoring and Review

Performance metrics will be reviewed monthly during progress reporting and after major system updates or disaster response events. These KPIs will guide continuous improvement, ensuring that the DSS evolves to meet operational needs and global disaster resilience standards.

37. Deliverables/ Tasks**38. Deliverable 1/Task 1: Inception report including detailed project schedule (6 weeks)**

The consultant would conduct a full-scale Service Requirement gathering to finalize the need assessment for the development of the DSS for each stakeholder group. Requirement gathering would cover current systems, bottlenecks and wish lists to evaluate during the review stage.

39. The consultant will provide an overview of the entire assignment including a work plan and detailed project schedule. This task is to be completed within 6 weeks from the commencement of services.**Inception Report:**

The consultant's work plan and team organization, assignment of functions for Consultant's personnel, including any changes or additions, agreed upon during negotiations on the signing of the Contract. This report must also clearly specify all risks and issues, which may negatively affect Project deadlines and the effective execution of all works.

Risk Matrix and Mitigation Strategies

As part of the Inception Report, a comprehensive risk matrix will be developed to identify potential challenges, assess their impact and likelihood, and outline mitigation strategies. The risk matrix will focus on ensuring project success by proactively addressing possible obstacles. **A sample matrix is provided below for reference purposes.**

Risk	Likelihood	Impact	Mitigation Strategy
Data Security Breaches	High	High	Implement robust cybersecurity measures, including AES-256 encryption and firewalls. Conduct regular vulnerability assessments and penetration testing.
Delays in Deliverables	Medium	High	Establish clear timelines, monitor progress through monthly reports, and conduct frequent status meetings with stakeholders.
Inconsistent Data Quality	High	Medium	Develop data validation protocols, provide training to data providers, and ensure continuous feedback loops for data accuracy.
Stakeholder Misalignment	Medium	High	Conduct regular coordination meetings, define roles and responsibilities clearly, and implement an escalation process for resolving conflicts.
System Scalability Issues	Low	High	Test the system under peak load conditions during development and ensure a modular, scalable architecture.
Lack of User Adoption	Medium	Medium	Conduct extensive user training, create user-friendly interfaces, and gather feedback during pilot runs to address usability issues.
Technological Challenges	Low	Medium	Perform a technology assessment during the inception phase to identify gaps and plan for upgrades where needed.

Natural Disruptions	Medium	High	Develop a Disaster Recovery (DR) plan, including backup systems and continuity protocols for critical operations.
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The risk matrix will be reviewed and updated periodically throughout the project lifecycle.

Deliverable 2/Task 2: Conceptual framework including technology architecture, and Schematic sketches with governance (10 weeks)

Review and update Schematic and Finalize Design and Development

Review of Schematic (Concept): The consultant shall review the schematic systems of DSS. After identifying the required details of the DSS, the consultant shall prepare an action plan for the entire DSS including sketches and diagrams, to develop the schematic and reach an agreement with DMC.

Legal assignments for data/information sharing:

Preparation of MOUs, SLAs and stakeholder agreements.

All relevant MOUs, SLAs, stakeholder agreements, and current best practices and SOPs should be coordinated and signed by the DMC. Those relevant papers and documents should be prepared by the consultant. (this activity should be in line with the DM Act, NDMP, NEOP, DM policy, and Institutional DM plans)

Contract Management

Preparation of bidding documents.

The consultant shall prepare the Bid documents, and specifications for goods, works and services based on the World Bank guidelines. Contract management including involvement in pre-bid meetings and reviews, bid evaluation review, and supervision of numerous contracts. The consultant will undertake all activities related to bid document preparation for the contractor(s). This will be coordinated by the Project Coordinating Team with the assistance of DMC. These activities include 1) pre-bid meetings and responses; 2) bid evaluation, review, and contract negotiations.

40. Deliverable 3/Task 3 and 3.1: Design Development and Build up the DSS software with ICT support and Design Development and Build up the mobile API. (30 Weeks)

Based on the Task 2 deliverable, the consultant shall deliver detailed technology architecture, engineering design drawings and high-level architectural designs for DSS and develop the software product.

41. Deliverable 4/Task 4: Review the communications network with early warning systems for integration with DSS: (4 weeks)

The consultant shall review the current communications network and prepare a plan to integrate the Early Warning dissemination (CAP) system into DSS.

Deliverable 5/Task 5: Data/ Information Management: (4 weeks)

Data collection, entry, validation, and data banking:

The consultant shall undertake all activities related to the data management and design schematic diagrams, and specifications, for related services. Data protection by data breaching. The DMC will coordinate this task based on the requirement.

42. Deliverable 6/Task 6: Operationalized the DSS and Testing: (4 weeks)

The consultant shall assist DMC in operationalizing DSS. Finally commissioning of the respective solutions and 5 years (Five) maintenance and ensure long-term sustainability of the API DSS solution.

43. Project Reporting (compulsory)

44. Monthly and Periodic Progress Reports:

Progress on mitigation strategies will be tracked in monthly reports to ensure risks are effectively managed and do not hinder project outcomes. This proactive approach will help maintain project alignment with World Bank requirements and ensure smooth implementation. The consultant shall prepare of monthly progress report.

Monthly Reports:

The monthly reports should include:

- Description of Project progress in general, problems, and measures to solve them
- Detailed description of Consultant's executed work
- Recommendations on the organization of work for the next reporting period

Analytical Reports

- Technical specifications and other relevant documents.

Final Report:

The final report on the performance results of the project should be prepared based on previous reports, with an analysis of execution and interrelation of individual components. This report should include:

- A. General description of all executed work.
- B. Detailed description of the consultant's work performed during the project implementation.
- C. Through performance testing reports, user feedback, and iterative improvements, the consultant shall analysis of performed upgrades and recommendations for future activities to ensure ongoing operational effectiveness of the DSS systems.

All reports, draft reports, and documentation, related to the execution of bidding procedures under World Bank requirements (technical requirements, technical specifications, bidding documentation packages, evaluation, and other reports - as stated above), should be prepared in English.

The final report will be prepared by the Consultant in the English language in hard copies (the number of copies decided by the PCT based on the number of technical review committee members) and in electronic format.

Deliverable 7 /Task 7: Completion Reports including Operational Manuals, source codes and as build drawing:

The consultant shall prepare of final project completion report with operational manuals.

Deliverables

All deliverables shall be prepared in the English language and provided in hard copies and electronic format. All data and analysis developed in the context of this assignment will be provided to the government in an open electronic format (graphics and design reports, etc.) and will be the property of the government. Tasks should be completed within 64 weeks months after contract signing.

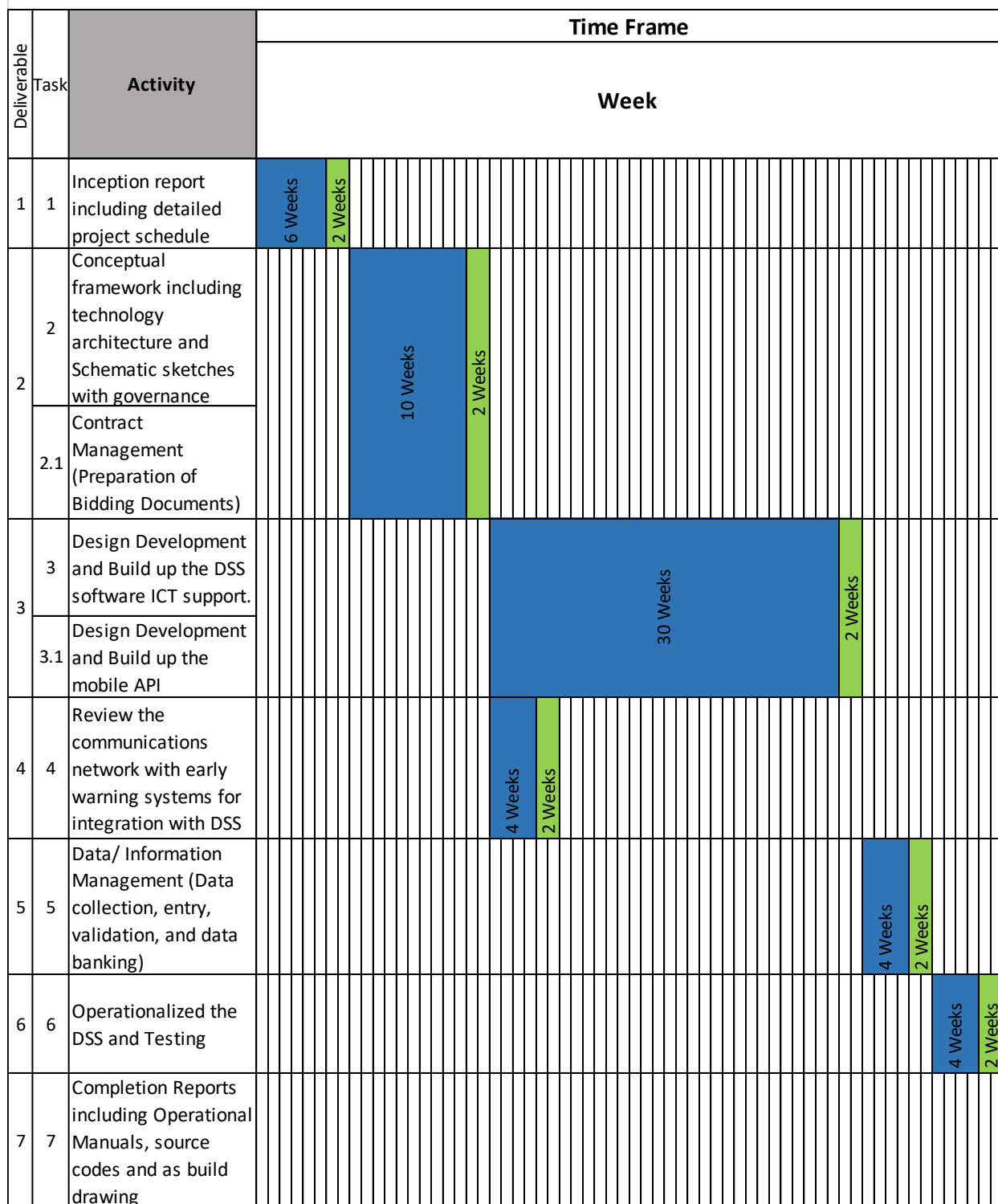
Deliverable	Task	Output	Time Schedule
1	1	Inception report including detailed project schedule	6 weeks after the commencement of services. (Accepted within 2 weeks)
2	2	Conceptual framework including technology architecture and Schematic sketches with governance	10 weeks from the acceptance of the Inception Report. (Accepted within 2 weeks)
	2.1	Contract Management (Preparation of bidding document)	
3	3	Design Development and Build up the DSS software ICT support.	30 weeks from acceptance of deliverable 2. (Accepted within 2 weeks)
	3.1	Design Development and Build up the mobile API	
4	4	Review the communications network with early warning systems for integration with DSS	4 weeks from acceptance of deliverable 2. (Accepted within 2 weeks)
5	5	Data/ Information Management (Data collection, entry, validation, and data banking)	4 weeks from acceptance of Task 3. (Accepted within 2 weeks)
6	6	Operationalized the DSS and Testing	4 weeks from completion of Task 5. (Accepted within 2 weeks)

7	7	Completion Reports including Operational Manuals, source codes and as build drawing	The completion report shall be submitted 2 Weeks after testing and operationalization of the software and the Operational Manual.
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Note- Endorsement of the reporting document and deliverable is performed by the Project Director within 2 weeks from the submission of documents to the PCT. The consultant shall perform the task and deliverables on a rolling schedule.

(Provide a clear Gantt chart for visual clarity. And include a detailed financial section specifying payment linked to milestones. This can be specified in percentages of the total bid amount.)

Gantt Chart for Deliverables and Tasks



Time Shedule

Acceptance Period

General Requirements of the Consultant

To align with global standards set by organizations and the World Bank.

the Consultant

- A. The consultant should have fair knowledge in the assessment and analysis of natural disasters within Sri Lanka - experience working with the government of Sri Lanka and DRR activities would be highly beneficial.
- B. The consultant should work full-time to achieve the objectives within the consultancy period.
- C. The consultant should have close coordination with the ongoing CResMPA (SLMO/CRES/DMC/C/QCBS/41-1) project in the DMC to facilitate the infrastructure and further planning activities and also to avoid any miscommunications.
- D. The consultant shall Manage/Support the front and back-end Software and hardware (Architecture) to overcome any issues related to warranty, technical defaults, hardware replacement and matters related to the software and hardware operational, maintenance, and troubleshooting of DSS.
- E. The consultant Should provide post-deployment system support and include a roadmap for future upgrades
- F. The system will be transferred to DMC after ensuring the functionality and there will be no license or subscription for DMC to the system.
- G. The software programming related documents and related coding should be submitted to the DMC at the end of the project period.

Software Development Life Cycle

The software development life cycle (SDLC), is a structured process used to design, develop, test, and deploy software applications. To achieve the objectives of this project, the consultant should have the following staff with experience.

Consultant Selection Criteria

To align with SL guidelines and the World Bank the following criteria will be used to evaluate consultant proposals:

45. Technical Experience and Expertise

Personnel

1. Planning and Requirement Analysis

Objective: Determine the project's goals and gather requirements.

Activities: Feasibility study, project planning, and defining the software requirements.

Professionals Involved:**Project Manager/Team Leader:**

Responsibilities: Project managers monitor the implementation of defined processes and frameworks. The project manager ensures that they follow its methodology. Aside from the SDLC, they ensure that processes in terms of communication and assignments are well-established. Data and information gathering, analysis, and analysis of detailed requirements. Preparation of specifications, user stories, use cases, and process flows. Ensure the requirements align with business goals and are clearly understood by the development team. Overall coordination, planning and overseeing the project timeline and resources to achieve project objectives.

Qualifications: With at least 15 years experience managing IT-related projects. Must have proven experience in agile software development methods and understanding of new Development and Operational processes with relevant project management qualifications. PMP certification for project management.

Involvement: Acts as a liaison between business stakeholders and the technical team, ensuring that all parties have a mutual understanding of the project scope

Business Analyst:

Responsibilities: The BA's job is to take in all requests, figure out why people have made them, evaluate and rank the results of that analysis, and then assign priorities to the requests. A BA's ability to think critically is a key for determining which features are most important to the business and what can be dropped.

Qualifications: With at least 8 years of experience in business analysis. A business analyst has to understand clients' needs and analyze the company's specifics and processes. It's the way to make sure that the project delivery is to be achieved. Understanding of new Development and Operational processes with relevant project management qualifications. IIBA Certification in software product development.

Involvement: Acts as a liaison between business stakeholders and the technical team, ensuring that all parties have a mutual understanding of the project scope.

AI/ML Specialist:

Responsibilities: Based on required specifications, lead program teams to develop the machine learning / Large Language models to be used in predictive analytics for the DSS

Qualifications: 5+ years' experience in developing predictive analytics and machine learning models. A postgraduate degree such as an MSc in AI, Data Science, ML or Analytics is preferred from a globally recognized university.

Subject Specialist:

Responsibilities: Providing domain-specific expertise to ensure accurate modelling of disaster scenarios and validating the relevance and reliability of

system outputs. They collaborate with technical teams to align system functionality with real-world disaster management needs.

Qualifications: 05+ years of experience as an executive managing in the Climate Resiliency or Disaster Management domains.

GIS Specialist:

Responsibilities: Integrating geospatial data into the decision support system, ensuring accurate mapping and spatial analysis for disaster management. They develop and maintain GIS layers, tools, and visualizations to support decision-making during disaster scenarios.

Qualifications: 5+ years of Proficiency in GIS/QGIS and geospatial analysis.

Front End Specialist:

Responsibilities : Designing and developing user-friendly interfaces for the decision support system, ensuring seamless interaction and accessibility. They focus on creating intuitive dashboards and visual elements to effectively present disaster management data.

Qualifications: 5+ years of Proficiency in developing robust and secure front-end web applications using industry-standard open-source content management systems (CMS).

Documentation Writer:

Responsibilities : Creating clear, comprehensive, and user-friendly documentation for the decision support system, including user guides, technical manuals, and training materials. They ensure all stakeholders can effectively understand and utilize the system's features and workflows.

Qualifications: 5+ years of proficiency in creating API documentation and user manuals

Vulnerability Assessment & Penetration Testing (VAPT):

Responsibilities: Identifying and addressing security vulnerabilities in the decision support system to ensure robust protection against cyber threats. They conduct regular penetration tests and provide recommendations to enhance system resilience for disaster management operations.

Qualifications: 5+ years of proven proficiency in Vulnerability Assessment & Penetration Testing.

A minimum of B.Sc. in IT, ICT or other relevant subject matter from a recognized Sri Lankan or accredited foreign university (with the University Grants Commission) is necessary for all the key personnel.

2. Design

Objective: Create the architecture and detailed design of the software.

Activities: System and software design, including database design, user interface design, and API design.

Professionals Involved:

Software Architect:

Responsibilities: Provides oversight during development, ensuring that the implementation aligns with the architectural design and standards.

Qualifications: 15+ years of proven proficiency in software architecture and design. BSc in Computer Science or Higher qualifications.

Involvement: Reviews code and guides developers to ensure that the architecture is correctly implemented.

Software Engineers :

Responsibilities: Implements the software system on the design specifications, ensuring responsiveness and user interactivity.

Qualifications: 8+ years of proven proficiency in Experience in Programming Languages, Frameworks and Libraries, Software Development Lifecycle (SDLC), API Development. Testing and Debugging. BSc in Computer Science or Higher qualifications.

Involvement: Writes code for the application, with integrated development environments (IDEs) and development of the systems and APIs according to design.

Front-End Developers:

Responsibilities: Implements the user interface based on the design specifications, ensuring responsiveness and user interactivity.

Qualifications: 6+ years of proven proficiency in Experience with modern front-end frameworks and UI/UX principles. BSc in Computer Science or Higher qualifications.

Involvement: Writes code for the client-side of the application, integrating with back-end services, as necessary.

Back-End Developers/ Mobile API developer:

Responsibilities: Develops server-side logic, creates, and manages databases, and ensures seamless integration between the front-end and back-end.

Qualifications: 8+ years of proven proficiency in Experience with Frameworks, DBs , APIs, Security, testing and debugging. BSc in Computer Science or Higher qualifications.

Involvement: Works on the business logic, Mobile APIs, and data management, ensuring that the application functions as intended.

DevOps Engineers:

Responsibilities: Sets up and manages development environments, automates build processes, and integrates continuous integration/continuous deployment (CI/CD) pipelines.

Qualifications: 6+ years of proven proficiency in Experience with Programming and Scripting, CI/CD Pipelines, Containerization and Orchestration, Security, and Automation. BSc in Computer Science or Higher qualifications.

Involvement: Ensures that the development process is smooth, and that code is regularly tested and deployed in a consistent manner.

Data Engineers

Responsibilities: Designs data architecture, including data pipelines, storage solutions, and integration with various data sources. Ensures that data is collected, processed, and stored efficiently and securely.

Qualifications: 10+ years of proven proficiency in Experience with Data Warehousing and ETL Tools, Databases, Data Pipelines and Workflow Automation, Data Modeling and Architecture, BSc in Data Engineering or equivalent or higher qualifications.

Involvement: Works with the software architect and developers to design data models and pipelines that align with the system architecture. Provides input on data-related requirements and challenges.

Geospatial Consultant

Responsibilities: Design geospatial components of the software, such as mapping features, spatial data handling, and integration with geographic information systems (GIS).

Qualifications: 15+ years of proven proficiency in Experience with GIS Software Expertise, Spatial Data Analysis, Programming and Scripting, Web Mapping and Domain Knowledge. BSc in Computer Science and Masters qualification or higher qualifications.

Involvement: Collaborates with the software architect and UI/UX designer to integrate geospatial data and functionality into the system design. Provides technical guidance on handling geospatial data and optimizing spatial analysis.

3. Implementation (Coding)

Objective: Convert the design into a functional software application.

Activities: Writing code, developing the user interface, and implementing the backend.

Professionals Involved:

Software Architect

Responsibilities: Provide oversight during development, ensuring that the implementation aligns with the architectural design and standards.

Involvement: Reviews code and guides developers to ensure that the architecture is correctly implemented.

Software Engineers :

Responsibilities: Implements the software system on the design specifications, ensuring responsiveness and user interactivity.

Involvement: Writes code for the application, with integrated development environments (IDEs) and development of the systems and APIs according to design.

Front-End Developers (Varying Experience/Expertise – Senior/Junior Engineers)

Responsibilities: Implements the user interface based on the design specifications, ensuring responsiveness and user interactivity.

Involvement: Writes code for the client side of the application, integrating with back-end services and ensuring a seamless user experience.

Back-End Developers (Varying Experience/Expertise – Senior/Junior Engineers)

Responsibilities: Develops server-side logic, creates, and manages databases, and ensures seamless integration between the front-end and back-end.

Involvement: Works on the business logic, APIs, and data management, ensuring that the application functions as intended.

Data Engineers

Responsibilities: Develops data pipelines, storage solutions, and data processing frameworks to handle large volumes of data. Ensures data integrity, security, and performance.

Involvement: Works closely with back-end developers to integrate data pipelines with the overall system. Develops ETL (Extract, Transform, Load) processes and optimizes database performance.

DevOps Engineers

Responsibilities: Sets up and manages development environments, automates build processes, and integrates continuous integration/continuous deployment (CI/CD) pipelines.

Involvement: Ensures that the development process is smooth, and that code is regularly tested and deployed in a consistent manner.

Project Manager/ Team Leader

Responsibilities: Reviews the test results to ensure that the product meets the acceptance criteria and is ready for deployment.

Involvement: Collaborates with QA and development teams to ensure that all critical issues are resolved before deployment.

Geospatial Engineer

Responsibilities: Implements geospatial features, including mapping functionalities, spatial data processing, and integration with geographic information systems (GIS).

Qualifications: 15+ years of proven proficiency in Experience with GIS Software Expertise, Spatial Data Analysis, Programming and Scripting, Web Mapping and Domain Knowledge . BSc in Computer Science and Masters qualification or higher qualifications.

Involvement: Collaborates with front-end and back-end developers to integrate geospatial data into the application. Develops custom geospatial algorithms and ensures the accurate display and processing of spatial information.

4. Testing

Objective: Ensure the software is free of defects and meets the requirements.

Activities: Unit testing, integration testing, system testing, and user acceptance testing.

Professionals Involved:

Quality Assurance (QA) Engineers

Responsibilities: Tests the software for defects, performance issues, and overall quality, using both manual and automated testing methods.

Qualifications: 10+ years of proven proficiency in Experience with Software Quality Assurance (QA) with knowledge on Testing Tools, Automation frame works, bug tracking etc. . BSc in Computer Science or equivalent or higher qualifications. ISTQB CTAL certifications.

Involvement: Executes test cases, reports bugs, and works with developers to resolve issues.

Front-End and Back-End Developers

Responsibilities: Conduct unit testing on the code they have written and collaborate with QA to fix identified bugs.

Qualifications: 8+ years of proven proficiency in Experience with Frameworks, DBs, APIs, Security, testing and debugging. BSc in Computer Science or Higher qualifications.

Involvement: Writes tests for their code, responds to bug reports, and refines the software based on testing feedback.

Data Engineers

Responsibilities: Ensures that data pipelines and storage solutions are thoroughly tested for performance, reliability, and scalability. Validates that the data processing workflows function as expected.

Qualifications: 10+ years of proven proficiency in Experience with Data Warehousing and ETL Tool, Databases, Data Pipelines and Workflow Automation, Data Modeling and Architecture. BSc in Data Engineering or equivalent or higher qualifications.

Involvement: Collaborates with QA to test data integrity, performance, and the effectiveness of Extract, Transport, and Load (ETL) processes. Identifies and resolves data-related issues.

DevOps Engineers

Responsibilities: Manages the testing environment and CI/CD pipelines, ensuring that automated tests are run as part of the deployment process.

Qualifications: 6+ years of proven proficiency in Experience with Programming and Scripting, CI/CD Pipelines, Containerization and Orchestration, Security, and Automation. BSc in Computer Science or Higher qualifications.

Involvement: Facilitates the running of tests and ensures that the environment is properly configured for accurate testing.

Security Specialist

Responsibilities: Conduct security testing to identify vulnerabilities and ensure the software is secure.

Qualifications: 10+ years of proven proficiency in Experience with Security tools, Encryption and Authentication, Compliance Standards. Cloud Security and Penetration testing and Governance. BSc in Computer Science / Cyber Security or higher qualifications. CISSP Certification.

Involvement: Performs penetration testing and reviews the software for potential security issues.

Project Manager/ Team Leader

Responsibilities: Reviews the test results to ensure that the product meets the acceptance criteria and is ready for deployment.

Involvement: Collaborates with QA and development teams to ensure that all critical issues are resolved before deployment.

5. Deployment

Objective: Release the software to users.

Activities: Deployment planning, environment setup, and actual deployment.

Professionals Involved:

DevOps Engineers

Responsibilities: Manages the deployment process, including setting up the production environment, automating the deployment, and ensuring that the software is released smoothly.

Involvement: Executes the deployment, monitors the release, and handles any issues that arise during deployment.

Software Architect

Responsibilities: Oversees the deployment to ensure that the software performs as expected in the live environment and adheres to architectural standards.

Involvement: Provides guidance during deployment and may assist in resolving any technical challenges.

Front-End/Back-End Developers

Responsibilities: Supports the deployment by managing server-side configurations, database migrations, and backend infrastructure.

Involvement: Prepares the backend systems for deployment and ensures they integrate seamlessly with the rest of the environment.

Data Engineers

Responsibilities: Manages the deployment of data pipelines and storage systems, ensuring data flows correctly and that all data components are fully operational in the production environment.

Involvement: Monitors data processing in the live environment, resolving any issues that arise with data handling or ETL processes during deployment.

QA Engineers

Responsibilities: Conducts the final acceptance testing in the production environment to ensure the software is functioning as expected post-deployment.

Involvement: Validates the deployed software and reports any issues that might have occurred during the transition to production.

Project Manager/ Team Leader

Responsibilities: Reviews the deployed product to ensure it meets business requirements and is ready for end-users.

Involvement: Signs off on the release, making the final decision to move the software into production.

6. Maintenance and Operations

Objective: Provide ongoing support, fix issues, and enhance the software.

Activities: Bug fixing, performance tuning, and adding new features.

46. Projected Man Months (MM) Requirement.

S/N	Position	Qualification requirement
		1. Planning and Requirement Analysis
1	Project/ Business Analyst: (6MM) 2 Nos.	With at least 8 years of experience in business analysis. A business analyst has to understand clients' needs and analyze the company's specifics and processes. It's the way to make sure that the project delivery is to be achieved. Understanding of new Development and Operational processes with relevant project management qualifications. IIBA Certification in software product development.
2	Team leader / Project Manager: (16MM) 1 Nos.	15+ years of proven proficiency in software architecture and design, Design and Architecture Patterns, API Design, Scalability and Performance Optimization. BSc in Computer Science or Higher qualifications.
		2. Design
3	System Architect: (4MM) 1 Nos.	15+ years of proven proficiency in software architecture and design. BSc in Computer Science or Higher qualifications.
4	UI/UX Designer: (8MM) 3 Nos.	6+ years of proven proficiency in Experience with modern front-end frameworks and UI/UX principles. BSc in Computer Science or Higher qualifications.
5	Database Administrator (DBAs): (4MM) 2 Nos.	10+ years of proven proficiency in Experience with Data Warehousing and ETL Tool, Databases, Data Pipelines and Workflow Automation, Data Modeling and Architecture. BSc in Data Engineering or equivalent or higher qualifications.
6	API Designers: (3MM) 1 Nos.	6+ years of proven proficiency in Experience in Programming Languages, Frameworks and Libraries, Software Development Lifecycle (SDLC), API Development. Testing and Debugging. BSc in Computer Science or Higher qualifications.
		3. Implementation (Coding)
7	Software Developer: (16MM) 6 Nos.	6+ years of proven proficiency in Experience in Programming Languages, Frameworks and Libraries, Software Development Lifecycle (SDLC), API Development. Testing and Debugging. BSc in Computer Science or Higher qualifications.
8	Frontend Developer: (12MM)	6+ years of proven proficiency in Experience with modern front-end frameworks and UI/UX principles. BSc in Computer Science or Higher qualifications.

	3 Nos.	
9	Backend Developers: (12MM) 3 Nos.	8+ years of proven proficiency in Experience with Frameworks, DBs , APIs, Security, testing and debugging. BSc in Computer Science or Higher qualifications.
10	Data Engineers : (8MM) 3 Nos.	10+ years of proven proficiency in Experience with Data Warehousing and ETL Tools, Databases, Data Pipelines and Workflow Automation, Data Modeling and Architecture . BSc in Data Engineering or equivalent or higher qualifications.
		4. Testing
11	Quality Assurance (QA) Engineer: (4MM) 1 No.	10+ years of proven proficiency in Experience with Software Quality Assurance (QA) with knowledge on Testing of Tools, Automation frameworks, bug tracking etc. BSc in Computer Science or equivalent or higher qualifications. ISTQB CTAL certifications.
12	Tester: (6MM) 3 Nos.	3+ years of proven proficiency in operational work on ICT and Software systems testing. BSc in Computer Science or Higher qualifications.
		5. Deployment
13	DevOps Engineer: (8MM) 4 Nos.	6+ years of proven proficiency in Experience with Programming and Scripting, CI/CD Pipelines, Containerization and Orchestration, Security, and Automation. BSc in Computer Science or Higher qualifications
14	System Administrator: (8MM) 3 Nos.	3+ years of proven proficiency in operational work on ICT systems administration. BSc in Computer Science or Higher qualifications.
		6. Maintenance and Operations
15	Service Agreement for eight years.	yes
		7. API-Specific Considerations:
16	API Designer: (6MM) 2 Nos.	6+ years of proven proficiency in Experience in Programming Languages, Frameworks and Libraries, Software Development Lifecycle (SDLC), API Development. Testing and Debugging. BSc in Computer Science or Higher qualifications.

17	Backend Developer: 3 Nos	8+ years of proven proficiency in Experience with Frameworks, DBs , APIs, Security, testing and debugging. BSc in Computer Science or Higher qualifications.
18	Security Specialist: (6MM) 2 Nos.	10+ years of proven proficiency in Experience with Security tools, Encryption and Authentication, and Compliance Standards. Cloud Security and Penetration Testing and Governance. BSc in Computer Science / Cyber Security or higher qualifications. CISSP Certification.
19	Documentation Writer: (3MM) 1 Nos.	5+ years of proficiency in creating API documentation and user manuals. BSc or equivalent qualification in the related field.
		8. Non-Key Experts:
20	Data Entry Operators (6MM)	1+ years of proficiency and experience in data entry operations and data collection.
21	Data Collectors (6MM)	1+ years of proficiency and experience in data entry operations and data collection
		9. Overhead Cost
22	Training and Awareness (6MM)	Provide all relevant training for new assignments.
23	Development of Operational Manual (3 MM)	Development, and printing of hard copies for relevant stakeholders and DDMCUs
24	Network Facilities	Provide all network diagrams, Hard and soft copies.

Collaboration and Communication

Throughout the SDLC, collaboration and communication are critical. By involving the right professionals at each stage and ensuring effective communication and collaboration, the software development cycle can be executed efficiently, resulting in high-quality API software.

Collaborative Tools and Platforms for Effective Communication in the SDLC

To facilitate seamless collaboration and communication throughout the software development life cycle (SDLC) of the Decision Support System (DSS), a range of advanced tools and platforms will be employed. These tools ensure efficient coordination among stakeholders, real-time updates, and streamlined workflows.

Communication and Collaboration

- A. For real-time messaging, video conferencing, and file sharing, ensuring quick decision-making and effective coordination among agencies and team members.
- B. For virtual meetings, stakeholder consultations, and training sessions, especially for geographically dispersed teams.

- C. Visual collaboration on system architecture, workflow designs, and brainstorming sessions.

Project Management

- D. For agile project management, including sprint planning, task tracking, and issue resolution.
- E. For task allocation, progress tracking, and collaboration on project deliverables.
- F. For detailed project scheduling, resource management, and Gantt chart creation.

Document Sharing and Version Control

- G. For centralized document storage, ensuring version control and collaborative editing of project documentation.
- H. As a knowledge-sharing platform to document decisions, workflows, and project progress.

System Development and Testing

- I. For collaborative source code management, version control, and peer reviews.
- J. For continuous integration and deployment (CI/CD) pipelines to streamline development and testing processes.
- K. For managing test cases, tracking test results, and reporting on system quality.

Feedback and Reporting

- L. For tracking feedback from stakeholders, managing issue logs, and generating status reports.
- M. For creating visual dashboards to present project metrics, progress, and analytics in an accessible format.

Stakeholder Engagement

- N. For real-time surveys, polls, and feedback collection during workshops or consultations.
- O. For structured feedback collection and analysis post-training sessions or project milestones.

Data Sharing and Visualization

- P. For geospatial data visualization and mapping, enabling collaborative disaster risk assessment and resource planning.
- Q. For real-time data streaming and integration across stakeholder systems, ensuring up-to-date situational awareness.

Security and Access Control

- R. For secure identity management and access control, ensuring only authorized personnel can access specific systems or data.

Workflow Automation

- S. For integrating various tools and automating repetitive tasks, such as status updates and email notifications.

Feedback and Continuous Improvement

- T. To gather feedback on tool usage, stakeholder satisfaction, and areas for improvement.

By leveraging these collaborative tools and platforms, the project will ensure efficient communication, minimize delays, and promote transparency throughout the SDLC. This approach will foster alignment among diverse stakeholders, contributing to the successful implementation of the DSS.

Implementation Arrangements

The consultant will be hired on behalf of the DMC by the PCT. The DMC will provide:

- A. Office space including normal office furniture in the DMC premises in Colombo to facilitate close collaboration between DMC staff and the consultant, to prepare documentation, and any other work related to the assignment.
- B. DMC will provide all required liaison (DPD-DMC), documents, correspondence, and any other information relating to the project and deemed necessary for accomplishing the assignment.
- C. No transport facilities will be provided to the consultant, the consultant will arrange their transportation for their work.

Consultant's Responsibilities

The consultant will use accepted financial, administrative (legal), and management practices and will be accountable to the DMC/PCT following the terms of the tender and contract.

For commitment and proper interaction of all individual components of the system to be designed and supervised by the consultant, here defined as the General Consultant for clarity, the following official statement must be issued for all requests for proposals and invitation documents:

"All activities of selected subcontractors under the current tender are subject to monitoring, control, and audit by the DMC/PCT. The General Consultant will be assisting the DMC and CResMPA PCT in the execution of this assignment. Accordingly, the supplier/subcontractor must comply with the monitoring and audit procedures to be determined by the DMC and CResMPA PCT and General Consultant".

The above-listed aspects should ensure necessary actions on the execution of the integration of the system. Subcontractors will be subject to periodic checks of work performed, reports, and procured goods and services for their conformity with system requirements and specifications.

Additional Reporting Requirements

To ensure consistency and clarity in communication, standardized reporting formats will be utilized for all deliverables. These formats will include templates for inception, progress, and final reports, specifying required sections such as objectives, methodologies, findings,

challenges, and recommendations. Each report will follow a uniform structure, including an executive summary, detailed narrative sections, visual aids (e.g., graphs, charts, and maps), and appendices for supplementary information. These templates will be shared with all stakeholders at the outset of the project to streamline documentation processes and ensure alignment with World Bank standards for transparency and accountability. Additionally, all reports will be prepared in both hard and electronic copies, ensuring accessibility and ease of review.

47. Expected Deliverables and Outputs and Approval of Reporting Documents and Final Reports

- A. Approval of Reporting documents and deliverables is performed according to the following procedure:
- B. Endorsement of Reporting documents and deliverables is performed by the Project Director (PD) within 2 weeks from the handover of Reporting documents to PCT.
- C. Approval of Final Reports is performed by the Project Director within 2 weeks from the handover of Final Reports to PCT.

Monitoring and Evaluation (M&E) Plan

A comprehensive Monitoring and Evaluation (M&E) plan will be developed to track the progress and effectiveness of the Decision Support System (DSS) project. This plan will include specific indicators to measure outputs, outcomes, and impacts, ensuring accountability and alignment with project objectives.

PART II

Section 8. Conditions of Contract and Contract Forms

Foreword

1. Part II includes two types of standard Contract forms for Consulting Services (a Time-Based Contract and a Lump-Sum Contract) that are based on the contract forms included in the harmonized Request for Proposals (RFP) (Master Document for Selection of Consultants prepared by participating Multilateral Development Banks (MDBs).
2. **Time-Based Contract.** This type of contract is appropriate when it is difficult to define or fix the scope and the duration of the services, either because they are related to activities carried out by others for which the completion period may vary, or because the input of the consultants required for attaining the objectives of the assignment is difficult to assess. In time-based contracts the Consultant provides services on a timed basis according to quality specifications, and Consultant's remuneration is determined on the basis of the time actually spent by the Consultant in carrying out the Services and is based on (i) agreed upon unit rates for the Consultant's experts multiplied by the actual time spent by the experts in executing the assignment, and (ii) reimbursable expenses using actual expenses and/or agreed unit prices. This type of contract requires the Client to closely supervise the Consultant and to be involved in the daily execution of the assignment.
3. **Lump-Sum Contract.** This type of contract is used mainly for assignments in which the scope and the duration of the Services and the required output of the Consultant are clearly defined. Payments are linked to outputs (deliverables) such as reports, drawings, bill of quantities, bidding documents, or software programs. Lump-sum contracts are easier to administer because they operate on the principle of a fixed price for a fixed scope, and payments are due on clearly specified outputs and milestones. Nevertheless, quality control of the Consultant's outputs by the Client is paramount.
4. The templates are designed for use in assignments with consulting firms and shall not be used for contracting of individual experts. These standard Contract forms are to be used for complex and/or large value assignments, and/or for contracts above US\$300,000 equivalent or more unless otherwise approved by the Bank..

LUMP-SUM FORM OF CONTRACT

STANDARD FORM OF CONTRACT

Consultant's Services
Lump-Sum

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CONTRACT FOR CONSULTANT’S SERVICES

Lump-Sum

Project Name: Climate Resilience Multi-Phase Programmatic Approach (CResMPA)

Loan No.: IBRD-89960

Contract No. SLMOI/CRES/DMC/C/QCBS/137

Assignment Title: Consultant Service for designing and developing a Decision Support System (DSS) to enhance Emergency Preparedness and Response for Disaster Risk Reduction
between

Climate Resilience Multi-Phase Programmatic Approach (CResMPA)

And

[Name of the Consultant]

Dated: _____

I. Form of Contract

LUMP-SUM

This CONTRACT (hereinafter called the “Contract”) is made the *[number]* day of the month of *[month]*, *[year]*, between, on the one hand, Project Director - Climate Resilience Multiphase Programmatic Approach (CResMPA) (hereinafter called the “Client”) and, on the other hand, *[name of Consultant]* (hereinafter called the “Consultant”).

*[If the Consultant consist of more than one entity, the above should be partially amended to read as follows: “...(hereinafter called the “Client”) and, on the other hand, a Joint Venture (name of the JV) consisting of the following entities, each member of which will be jointly and severally liable to the Client for all the Consultant’s obligations under this Contract, namely, *[name of member]* and *[name of member]* (hereinafter called the “Consultant”).]*

WHEREAS

- (a) the Client has requested the Consultant to provide certain consulting services as defined in this Contract (hereinafter called the “Services”);
- (b) the Consultant, having represented to the Client that it has the required professional skills, expertise and technical resources, has agreed to provide the Services on the terms and conditions set forth in this Contract;
- (c) the Client has received a loan from the International Bank for Reconstruction and Development (IBRD) toward the cost of the Services and intends to apply a portion of the proceeds of this loan to eligible payments under this Contract, it being understood that (i) payments by the Bank will be made only at the request of the Client and upon approval by the Bank; (ii) such payments will be subject, in all respects, to the terms and conditions of the loan agreement, including prohibitions of withdrawal from the loan account for the purpose of any payment to persons or entities, or for any import of goods, if such payment or import, to the knowledge of the Bank, is prohibited by the decision of the United Nations Security council taken under Chapter VII of the Charter of the United Nations; and (iii) no party other than the Client shall derive any rights from the loan agreement or have any claim to the loan proceeds;

NOW THEREFORE the parties hereto hereby agree as follows:

1. The following documents attached hereto shall be deemed to form an integral part of this Contract:
 - (a) The General Conditions of Contract (including Attachment 1 “Fraud and Corruption”);
 - (b) The Special Conditions of Contract;

(c) Appendices:

Appendix A: Terms of Reference

Appendix B: Key Experts

Appendix C: Breakdown of Contract Price

Appendix D: Form of Advance Payments Guarantee

Appendix E: Code of Conduct for Experts

Appendix F: Sexual exploitation and Abuse (SEA) and/or Sexual Harassment (SH) Performance Declaration

In the event of any inconsistency between the documents, the following order of precedence shall prevail: the Special Conditions of Contract; the General Conditions of Contract, including Attachment 1; Appendix A; Appendix B; Appendix C; Appendix D; Appendix E; and Appendix F. Any reference to this Contract shall include, where the context permits, a reference to its Appendices.

2. The mutual rights and obligations of the Client and the Consultant shall be as set forth in the Contract, in particular:

- (a) the Consultant shall carry out the Services in accordance with the provisions of the Contract; and
- (b) the Client shall make payments to the Consultant in accordance with the provisions of the Contract.

IN WITNESS WHEREOF, the Parties hereto have caused this Contract to be signed in their respective names as of the day and year first above written.

For and on behalf of *[Name of Client]*

[Authorized Representative of the Client – name, title and signature]

For and on behalf of *[Name of Consultant or Name of a Joint Venture]*

[Authorized Representative of the Consultant – name and signature]

[For a joint venture, either all members shall sign or only the lead member, in which case the power of attorney to sign on behalf of all members shall be attached.]

For and on behalf of each of the members of the Consultant *[insert the Name of the Joint Venture]*

[Name of the lead member]

[Authorized Representative on behalf of a Joint Venture]

[add signature blocks for each member if all are signing]

II. General Conditions of Contract

A. GENERAL PROVISIONS

1. Definitions

- 1.1. Unless the context otherwise requires, the following terms whenever used in this Contract have the following meanings:
- (a) **“Applicable Law”** means the laws and any other instruments having the force of law in the Client’s country, or in such other country as may be specified in the **Special Conditions of Contract (SCC)**, as they may be issued and in force from time to time.
 - (b) **“Bank”** means the International Bank for Reconstruction and Development (IBRD) or the International Development Association (IDA).
 - (c) **“Borrower”** means the Government, Government agency or other entity that signs the financing agreement with the Bank.
 - (d) **“Client”** means the implementing agency that signs the Contract for the Services with the Selected Consultant.
 - (e) **“Client’s Personnel”** refers to the staff, labor and other employees (if any) of the Client engaged in fulfilling the Client’s obligations under the Contract; and any other personnel identified as Client’s Personnel, by a notice from the Client to the Consultant.
 - (f) **“Consultant”** means a legally-established professional consulting firm or entity selected by the Client to provide the Services under the signed Contract.
 - (g) **“Contract”** means the legally binding written agreement signed between the Client and the Consultant and which includes all the attached documents listed in its paragraph 1 of the Form of Contract (the General Conditions (GCC), the Special Conditions (SCC), and the Appendices).
 - (h) **“Day”** means a working day unless indicated otherwise.
 - (i) **“Effective Date”** means the date on which this Contract comes into force and effect pursuant to Clause GCC 11.
 - (j) **“Experts”** means, collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-consultant or JV member(s) assigned by the Consultant to perform the Services or any part thereof under the Contract.
 - (k) **“Foreign Currency”** means any currency other than the currency of the Client’s country.

- (l) **“GCC”** means these General Conditions of Contract.
- (m) **“Government”** means the government of the Client’s country.
- (n) **“Joint Venture (JV)”** means an association with or without a legal personality distinct from that of its members, of more than one entity where one member has the authority to conduct all businesses for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.
- (o) **“Key Expert(s)”** means an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose Curricula Vitae (CV) was taken into account in the technical evaluation of the Consultant’s proposal.
- (p) **“Local Currency”** means the currency of the Client’s country.
- (q) **“Non-Key Expert(s)”** means an individual professional provided by the Consultant or its Sub-consultant to perform the Services or any part thereof under the Contract.
- (r) **“Party”** means the Client or the Consultant, as the case may be, and **“Parties”** means both of them.
- (s) **“SCC”** means the Special Conditions of Contract by which the GCC may be amended or supplemented but not over-written.
- (t) **“Services”** means the work to be performed by the Consultant pursuant to this Contract, as described in Appendix A hereto.
- (u) **“Sexual Exploitation and Abuse” “(SEA)”** means the following:

Sexual Exploitation is defined as any actual or attempted abuse of position of vulnerability, differential power or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another.

Sexual Abuse is defined as the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

- (v) **“Sexual Harassment” “(SH)”** is defined as unwelcome sexual advances, requests for sexual favors, and other verbal

or physical conduct of a sexual nature by the Experts with other Experts or Client's Personnel.

- (w) **"Sub-consultants"** means an entity to whom/which the Consultant subcontracts any part of the Services while remaining solely liable for the execution of the Contract.
- (x) **"Third Party"** means any person or entity other than the Government, the Client, the Consultant or a Sub-consultant.

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| 2. Relationship between the Parties | 2.1. Nothing contained herein shall be construed as establishing a relationship of master and servant or of principal and agent as between the Client and the Consultant. The Consultant, subject to this Contract, has complete charge of the Experts and Sub-consultants, if any, performing the Services and shall be fully responsible for the Services performed by them or on their behalf hereunder. |
| 3. Law Governing Contract | 3.1. This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law. |
| 4. Language | 4.1. This Contract has been executed in the language specified in the SCC , which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract. |
| 5. Headings | 5.1. The headings shall not limit, alter or affect the meaning of this Contract. |
| 6. Communications | <p>6.1. Any communication required or permitted to be given or made pursuant to this Contract shall be in writing in the language specified in Clause GCC 4. Any such notice, request or consent shall be deemed to have been given or made when delivered in person to an authorized representative of the Party to whom the communication is addressed, or when sent to such Party at the address specified in the SCC.</p> <p>6.2. A Party may change its address for notice hereunder by giving the other Party any communication of such change to the address specified in the SCC.</p> |
| 7. Location | 7.1. The Services shall be performed at such locations as are specified in Appendix A hereto and, where the location of a particular task is not so specified, at such locations, whether in the Government's country or elsewhere, as the Client may approve. |

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| 8. Authority of Member in Charge | 8.1. | In case the Consultant is a Joint Venture, the members hereby authorize the member specified in the SCC to act on their behalf in exercising all the Consultant's rights and obligations towards the Client under this Contract, including without limitation the receiving of instructions and payments from the Client. |
| 9. Authorized Representatives | 9.1. | Any action required or permitted to be taken, and any document required or permitted to be executed under this Contract by the Client or the Consultant may be taken or executed by the officials specified in the SCC . |
| 10. Fraud and Corruption | 10.1. | The Bank requires compliance with the Bank's Anti-Corruption Guidelines and its prevailing sanctions policies and procedures as set forth in the Bank's Sanctions Framework, as set forth in Attachment 1 to the GCC. |
| a. Commissions and Fees | 10.2. | The Client requires the Consultant to disclose any commissions, gratuities or fees that may have been paid or are to be paid to agents or any other party with respect to the selection process or execution of the Contract. The information disclosed must include at least the name and address of the agent or other party, the amount and currency, and the purpose of the commission, gratuity or fee. Failure to disclose such commissions, gratuities or fees may result in termination of the Contract and/or sanctions by the Bank. |

B. COMMENCEMENT, COMPLETION, MODIFICATION AND TERMINATION OF CONTRACT

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| 11. Effectiveness of Contract | 11.1. | This Contract shall come into force and effect on the date (the "Effective Date") of the Client's notice to the Consultant instructing the Consultant to begin carrying out the Services. This notice shall confirm that the effectiveness conditions, if any, listed in the SCC have been met. |
| 12. Termination of Contract for Failure to Become Effective | 12.1. | If this Contract has not become effective within such time period after the date of Contract signature as specified in the SCC , either Party may, by not less than twenty two (22) days written notice to the other Party, declare this Contract to be null and void, and in the event of such a declaration by either Party, neither Party shall have any claim against the other Party with respect hereto. |

- 13. Commencement of Services** 13.1. The Consultant shall confirm availability of Key Experts and begin carrying out the Services not later than the number of days after the Effective Date specified in the **SCC**.
- 14. Expiration of Contract** 14.1. Unless terminated earlier pursuant to Clause GCC 19 hereof, this Contract shall expire at the end of such time period after the Effective Date as specified in the **SCC**.
- 15. Entire Agreement** 15.1. This Contract contains all covenants, stipulations and provisions agreed by the Parties. No agent or representative of either Party has authority to make, and the Parties shall not be bound by or be liable for, any statement, representation, promise or agreement not set forth herein.
- 16. Modifications or Variations** 16.1. Any modification or variation of the terms and conditions of this Contract, including any modification or variation of the scope of the Services, may only be made by written agreement between the Parties. However, each Party shall give due consideration to any proposals for modification or variation made by the other Party.
- 17. Force Majeure**
- a. Definition** 17.1. For the purposes of this Contract, “Force Majeure” means an event which is beyond the reasonable control of a Party, is not foreseeable, is unavoidable, and makes a Party’s performance of its obligations hereunder impossible or so impractical as reasonably to be considered impossible under the circumstances, and subject to those requirements, includes, but is not limited to, war, riots, civil disorder, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, lockouts or other industrial action confiscation or any other action by Government agencies.
- 17.2. Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or such Party’s Experts, Sub-consultants or agents or employees, nor (ii) any event which a diligent Party could reasonably have been expected to both take into account at the time of the conclusion of this Contract, and avoid or overcome in the carrying out of its obligations hereunder.
- 17.3. Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

b. No Breach of Contract 17.4. The failure of a Party to fulfill any of its obligations hereunder shall not be considered to be a breach of, or default under, this Contract insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event has taken all reasonable precautions, due care and reasonable alternative measures, all with the objective of carrying out the terms and conditions of this Contract.

c. Measures to be Taken 17.5. A Party affected by an event of Force Majeure shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall take all reasonable measures to minimize the consequences of any event of Force Majeure.

17.6. A Party affected by an event of Force Majeure shall notify the other Party of such event as soon as possible, and in any case not later than fourteen (14) calendar days following the occurrence of such event, providing evidence of the nature and cause of such event, and shall similarly give written notice of the restoration of normal conditions as soon as possible.

17.7. Any period within which a Party shall, pursuant to this Contract, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.

17.8. During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consultant, upon instructions by the Client, shall either:

(a) demobilize, in which case the Consultant shall be reimbursed for additional costs they reasonably and necessarily incurred, and, if required by the Client, in reactivating the Services; or

(b) continue with the Services to the extent reasonably possible, in which case the Consultant shall continue to be paid under the terms of this Contract and be reimbursed for additional costs reasonably and necessarily incurred.

17.9. In the case of disagreement between the Parties as to the existence or extent of Force Majeure, the matter shall be settled according to Clauses GCC 49 & 50.

18. Suspension

18.1. The Client may, by written notice of suspension to the Consultant, suspend part or all payments to the Consultant hereunder if the Consultant fails to perform any of its obligations under this Contract, including the carrying out of the Services, provided that such notice of suspension (i) shall specify the nature of the failure, and (ii) shall request the

Consultant to remedy such failure within a period not exceeding thirty (30) calendar days after receipt by the Consultant of such notice of suspension.

19. Termination

19.1. This Contract may be terminated by either Party as per provisions set up below:

a. By the Client

19.1.1. The Client may terminate this Contract in case of the occurrence of any of the events specified in paragraphs (a) through (f) of this Clause. In such an occurrence the Client shall give at least thirty (30) calendar days' written notice of termination to the Consultant in case of the events referred to in (a) through (d); at least sixty (60) calendar days' written notice in case of the event referred to in (e); and at least five (5) calendar days' written notice in case of the event referred to in (f):

- (a) If the Consultant fails to remedy a failure in the performance of its obligations hereunder, as specified in a notice of suspension pursuant to Clause GCC 18;
- (b) If the Consultant becomes (or, if the Consultant consists of more than one entity, if any of its members becomes) insolvent or bankrupt or enter into any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary;
- (c) If the Consultant fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause GCC 50.1;
- (d) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days;
- (e) If the Client, in its sole discretion and for any reason whatsoever, decides to terminate this Contract;
- (f) If the Consultant fails to confirm availability of Key Experts as required in Clause GCC 13.

19.1.2. Furthermore, if the Client determines that the Consultant has engaged in Fraud and Corruption in competing for or in executing the Contract, then the Client may, after giving fourteen (14) calendar days written notice to the Consultant, terminate the Consultant's employment under the Contract.

- b. By the Consultant**
- 19.1.3. The Consultant may terminate this Contract, by not less than thirty (30) calendar days' written notice to the Client, in case of the occurrence of any of the events specified in paragraphs (a) through (d) of this Clause.
- (a) If the Client fails to pay any money due to the Consultant pursuant to this Contract and not subject to dispute pursuant to Clause GCC 45.1 within forty-five (45) calendar days after receiving written notice from the Consultant that such payment is overdue.
 - (b) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days.
 - (c) If the Client fails to comply with any final decision reached as a result of arbitration pursuant to Clause GCC 50.1.
 - (d) If the Client is in material breach of its obligations pursuant to this Contract and has not remedied the same within forty-five (45) days (or such longer period as the Consultant may have subsequently approved in writing) following the receipt by the Client of the Consultant's notice specifying such breach.
- c. Cessation of Rights and Obligations**
- 19.1.4. Upon termination of this Contract pursuant to Clauses GCC 12 or GCC 19 hereof, or upon expiration of this Contract pursuant to Clause GCC 14, all rights and obligations of the Parties hereunder shall cease, except (i) such rights and obligations as may have accrued on the date of termination or expiration, (ii) the obligation of confidentiality set forth in Clause GCC 22, (iii) the Consultant's obligation to permit inspection, copying and auditing of their accounts and records set forth in Clause GCC 25 and to cooperate and assist in any inspection or investigation, and (iv) any right which a Party may have under the Applicable Law.
- d. Cessation of Services**
- 19.1.5. Upon termination of this Contract by notice of either Party to the other pursuant to Clauses GCC 19a or GCC 19b, the Consultant shall, immediately upon dispatch or receipt of such notice, take all necessary steps to bring the Services to a close in a prompt and orderly manner and shall make every reasonable effort to keep expenditures for this purpose to a minimum. With respect to documents prepared by the Consultant and equipment and materials furnished by the

Client, the Consultant shall proceed as provided, respectively, by Clauses GCC 27 or GCC 28.

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| <p>e. Payment upon Termination</p> | <p>19.1.6. Upon termination of this Contract, the Client shall make the following payments to the Consultant:</p> <ul style="list-style-type: none"> (a) payment for Services satisfactorily performed prior to the effective date of termination; and (b) in the case of termination pursuant to paragraphs (d) and (e) of Clause GCC 19.1.1, reimbursement of any reasonable cost incidental to the prompt and orderly termination of this Contract, including the cost of the return travel of the Experts. |
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C. OBLIGATIONS OF THE CONSULTANT

20. General

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| <p>a. Standard of Performance</p> | <p>20.1. The Consultant shall perform the Services and carry out the Services with all due diligence, efficiency and economy, in accordance with generally accepted professional standards and practices, and shall observe sound management practices, and employ appropriate technology and safe and effective equipment, machinery, materials and methods. As required in the SCC, the Consultant shall take additional measures to manage cyber security risks related to the Contract. The Consultant shall always act, in respect of any matter relating to this Contract or to the Services, as a faithful adviser to the Client, and shall at all times support and safeguard the Client's legitimate interests in any dealings with the third parties.</p> <p>20.2. The Consultant shall employ and provide such qualified and experienced Experts and Sub-consultants as are required to carry out the Services.</p> <p>20.3. The Consultant may subcontract part of the Services to an extent and with such Key Experts and Sub-consultants as may be approved in advance by the Client. Submission by the Consultant for the Client's approval, for addition of any Sub-consultant not named in the Contract, shall also include the Sub-consultant's declaration in accordance with Appendix F- Sexual exploitation and Abuse (SEA) and/or Sexual Harassment (SH) Performance Declaration. Notwithstanding such approval, the Consultant shall retain full responsibility for the Services.</p> |
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| <p>b. Law Applicable to Services</p> | <p>20.4. The Consultant shall perform the Services in accordance with the Contract and the Applicable Law and shall take all practicable steps to ensure that any of its Experts and Sub-consultants, comply with the Applicable Law.</p> <p>20.5. Throughout the execution of the Contract, the Consultant shall comply with the import of goods and services prohibitions in the Client's country when</p> <ul style="list-style-type: none"> (a) as a matter of law or official regulations, the Borrower's country prohibits commercial relations with that country; or (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in that country. <p>20.6. The Client shall notify the Consultant in writing of relevant local customs, and the Consultant shall, after such notification, respect such customs.</p> |
| <p>21. Conflict of Interest</p> | <p>21.1. The Consultant shall hold the Client's interests paramount, without any consideration for future work, and strictly avoid conflict with other assignments or their own corporate interests.</p> |
| <p>a. Consultant Not to Benefit from Commissions, Discounts, etc.</p> | <p>21.1.1 The payment of the Consultant pursuant to GCC F (Clauses GCC 43 through 47) shall constitute the Consultant's only payment in connection with this Contract and, subject to Clause GCC 21.1.3, the Consultant shall not accept for its own benefit any trade commission, discount or similar payment in connection with activities pursuant to this Contract or in the discharge of its obligations hereunder, and the Consultant shall use its best efforts to ensure that any Sub-consultants, as well as the Experts and agents of either of them, similarly shall not receive any such additional payment.</p> <p>21.1.2 Furthermore, if the Consultant, as part of the Services, has the responsibility of advising the Client on the procurement of goods, works or services, the Consultant shall comply with the Bank's Applicable Regulations, and shall at all times exercise such responsibility in the best interest of the Client. Any discounts or commissions obtained by the Consultant in the exercise of such procurement responsibility shall be for the account of the Client.</p> |

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| <p>b. Consultant and Affiliates Not to Engage in Certain Activities</p> | <p>21.1.3 The Consultant agrees that, during the term of this Contract and after its termination, the Consultant and any entity affiliated with the Consultant, as well as any Sub-consultants and any entity affiliated with such Sub-consultants, shall be disqualified from providing goods, works or non-consulting services resulting from or directly related to the Consultant's Services for the preparation or implementation of the project.</p> |
| <p>c. Prohibition of Conflicting Activities</p> | <p>21.1.4 The Consultant shall not engage, and shall cause its Experts as well as its Sub-consultants not to engage, either directly or indirectly, in any business or professional activities that would conflict with the activities assigned to them under this Contract.</p> |
| <p>d. Strict Duty to Disclose Conflicting Activities</p> | <p>21.1.5 The Consultant has an obligation and shall ensure that its Experts and Sub-consultants shall have an obligation to disclose any situation of actual or potential conflict that impacts their capacity to serve the best interest of their Client, or that may reasonably be perceived as having this effect. Failure to disclose said situations may lead to the disqualification of the Consultant or the termination of its Contract.</p> |
| <p>22. Confidentiality</p> | <p>22.1. Except with the prior written consent of the Client, the Consultant and the Experts shall not at any time communicate to any person or entity any confidential information acquired in the course of the Services, nor shall the Consultant and the Experts make public the recommendations formulated in the course of, or as a result of, the Services.</p> |
| <p>23. Liability of the Consultant</p> | <p>23.1. Subject to additional provisions, if any, set forth in the SCC, the Consultant's liability under this Contract shall be provided by the Applicable Law.</p> |
| <p>24. Insurance to be taken out by the Consultant</p> | <p>24.1. The Consultant (i) shall take out and maintain, and shall cause any Sub-consultants to take out and maintain, at its (or the Sub-consultants', as the case may be) own cost but on terms and conditions approved by the Client, insurance against the risks, and for the coverage specified in the SCC, and (ii) at the Client's request, shall provide evidence to the Client showing that such insurance has been taken out and maintained and that the current premiums therefore have been paid. The Consultant shall ensure that such insurance is in place prior to commencing the Services as stated in Clause GCC 13.</p> |

**25. Accounting,
Inspection and
Auditing**

- 25.1. The Consultant shall keep, and shall make all reasonable efforts to cause its Sub-consultants to keep, accurate and systematic accounts and records in respect of the Services and in such form and detail as will clearly identify relevant time changes and costs.
- 25.2. Pursuant to paragraph 2.2 e. of Attachment 1 to the General Conditions, the Consultant shall permit and shall cause its agents (where declared or not), subcontractors, subconsultants, service providers, suppliers, and personnel, to permit, the Bank and/or persons appointed by the Bank to inspect the site and/or the accounts, records and other documents relating to the procurement process, selection and/or contract execution, and to have such accounts, records and other documents audited by auditors appointed by the Bank. The Consultant's and its Subcontractors' and subconsultants' attention is drawn to Sub-Clause 10.1 (Fraud and Corruption) which provides, inter alia, that acts intended to materially impede the exercise of the Bank's inspection and audit rights constitute a prohibited practice subject to contract termination (as well as to a determination of ineligibility pursuant to the Bank's prevailing sanctions procedures).

**26. Reporting
Obligations**

- 26.1. The Consultant shall submit to the Client the reports and documents specified in **Appendix A**, in the form, in the numbers and within the time periods set forth in the said Appendix.

**27. Proprietary Rights
of the Client in
Reports and
Records**

- 27.1. Unless otherwise indicated in the **SCC**, all reports and relevant data and information such as maps, diagrams, plans, databases, other documents and software, supporting records or material compiled or prepared by the Consultant for the Client in the course of the Services shall be confidential and become and remain the absolute property of the Client. The Consultant shall, not later than upon termination or expiration of this Contract, deliver all such documents to the Client, together with a detailed inventory thereof. The Consultant may retain a copy of such documents, data and/or software but shall not use the same for purposes unrelated to this Contract without prior written approval of the Client.
- 27.2. If license agreements are necessary or appropriate between the Consultant and third parties for purposes of development of the plans, drawings, specifications, designs, databases, other documents and software, the Consultant shall obtain the Client's prior written approval to such agreements, and the Client shall be entitled at its discretion to require recovering

the expenses related to the development of the program(s) concerned. Other restrictions about the future use of these documents and software, if any, shall be specified in the **SCC**.

**28. Equipment,
Vehicles and
Materials**

- 28.1. Equipment, vehicles and materials made available to the Consultant by the Client, or purchased by the Consultant wholly or partly with funds provided by the Client, shall be the property of the Client and shall be marked accordingly. Upon termination or expiration of this Contract, the Consultant shall make available to the Client an inventory of such equipment, vehicles and materials and shall dispose of such equipment, vehicles and materials in accordance with the Client's instructions. While in possession of such equipment, vehicles and materials, the Consultant, unless otherwise instructed by the Client in writing, shall insure them at the expense of the Client in an amount equal to their full replacement value.
- 28.2. Any equipment or materials brought by the Consultant or its Experts into the Client's country for the use either for the project or personal use shall remain the property of the Consultant or the Experts concerned, as applicable.

29. Code of Conduct

- 29.1. The Consultant shall have a Code of Conduct for the Experts. Consultant shall take all necessary measures to ensure that each Expert is made aware of the Code of Conduct including specific behaviors that are prohibited, and understands the consequences of engaging in such prohibited behaviors.
- These measures include providing instructions and documentation that can be understood by the Expert and seeking to obtain that person's signature acknowledging receipt of such instructions and/or documentation, as appropriate.
- The Consultant shall also ensure that the Code of Conduct is visibly displayed in locations where the Services are provided. The posted Code of Conduct shall be provided in languages comprehensible to the Experts and the Client's Personnel.

30. Forced Labor

- 30.1. The Consultant, including its Subconsultants, shall not employ or engage forced labor. Forced labor consists of any work or service, not voluntarily performed, that is exacted from an individual under threat of force or penalty, and includes any kind of involuntary or compulsory labor, such as indentured labor, bonded labor or similar labor-contracting arrangements.

No persons shall be employed or engaged who have been subject to trafficking. Trafficking in persons is defined as the recruitment, transportation, transfer, harboring or receipt of persons by means of the threat or use of force or other forms of coercion, abduction, fraud, deception, abuse of power, or of a position of vulnerability, or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purposes of exploitation.

31. Child Labor

- 31.1. The Consultant, including its Subconsultants, shall not employ or engage a child under the age of 14 unless the national law specifies a higher age (the minimum age).

The Consultant, including its Subconsultants, shall not employ or engage a child between the minimum age and the age of 18 in a manner that is likely to be hazardous, or to interfere with, the child's education, or to be harmful to the child's health or physical, mental, spiritual, moral, or social development.

The Consultant, including its Subconsultants, shall only employ or engage children between the minimum age and the age of 18 after an appropriate risk assessment has been conducted by the Consultant with the Client's consent. The Consultant shall be subject to regular monitoring by the Client that includes monitoring of health, working conditions and hours of work.

Work considered hazardous for children is work that, by its nature or the circumstances in which it is carried out, is likely to jeopardize the health, safety, or morals of children. Such work activities prohibited for children include work:

- (a) with exposure to physical, psychological or sexual abuse;
- (b) underground, underwater, working at heights or in confined spaces;
- (c) with dangerous machinery, equipment or tools, or involving handling or transport of heavy loads;
- (d) in unhealthy environments exposing children to hazardous substances, agents, or processes, or to temperatures, noise or vibration damaging to health; or
- (e) under difficult conditions such as work for long hours, during the night or in confinement on the premises of the employer.

- 32. Non-Discrimination and Equal Opportunity**
- 32.1. The Consultant shall not make decisions relating to the employment or treatment of Experts on the basis of personal characteristics unrelated to inherent job requirements. The Consultant shall base the employment of Experts on the principle of equal opportunity and fair treatment, and shall not discriminate with respect to any aspects of the employment relationship, including recruitment and hiring, compensation (including wages and benefits), working conditions and terms of employment, access to training, job assignment, promotion, termination of employment or retirement, and disciplinary practices.
- Special measures of protection or assistance to remedy past discrimination or selection for a particular job based on the inherent requirements of the job shall not be deemed discrimination. The Consultant shall provide protection and assistance as necessary to ensure non-discrimination and equal opportunity, including for specific groups such as women, people with disabilities, migrant workers and children (of working age in accordance with Clause GCC 31).
- 33. Training of Experts**
- 33.1. The Consultant shall provide appropriate sensitization to the Experts on social aspects of the Contract, including on prohibition of SEA and SH.
- The Consultant shall provide training on SEA and SH, including its prevention, to any of its Experts who has a role to supervise other Experts.

D. CONSULTANT'S EXPERTS AND SUB-CONSULTANTS

- 34. Description of Key Experts**
- 34.1. The title, agreed job description, minimum qualification and estimated period of engagement to carry out the Services of each of the Consultant's Key Experts are described in **Appendix B**.
- 35. Replacement of Key Experts**
- 35.1. Except as the Client may otherwise agree in writing, no changes shall be made in the Key Experts.
- 35.2. Notwithstanding the above, the substitution of Key Experts during Contract execution may be considered only based on the Consultant's written request and due to circumstances outside the reasonable control of the Consultant, including but not limited to death or medical incapacity. In such case, the Consultant shall forthwith provide as a replacement, a person of equivalent or better qualifications and experience, and at the same rate of remuneration.

36. Removal of Experts or Sub-consultants

- 36.1. If the Client finds that any of the Experts or Sub-consultant:
- (a) persists in any misconduct or lack of care;
 - (b) carries out duties incompetently or negligently;
 - (c) fails to comply with any provision of the Contract;
 - (d) based on reasonable evidence, is determined to have engaged in Fraud and Corruption during the execution of the Works; or
 - (e) undertakes behaviour which breaches the Code of Conduct;
- the Consultant shall, at the Client's written request, provide a replacement.
- 36.2. In the event that any of Key Experts, Non-Key Experts or Sub-consultants is found by the Client to be incompetent or incapable in discharging assigned duties, the Client, specifying the grounds therefore, may request the Consultant to provide a replacement.
- 36.3. Any replacement of the removed Experts or Sub-consultants shall possess better qualifications and experience and shall be acceptable to the Client.
- 36.4. Subject to the requirements in Sub-Clause 36.3, and notwithstanding any requirement from the Client to request a replacement, the Consultant shall take immediate action as appropriate in response to any violation of (a) through (e) above. Such immediate action shall include removing (or causing to be removed) from carrying out the Services, any Expert who engages in (a) to (e) above.
- 36.5. The Consultant shall bear all costs arising out of or incidental to any removal and/or replacement of such Experts.

E. OBLIGATIONS OF THE CLIENT**37. Assistance and Exemptions**

- 37.1. Unless otherwise specified in the SCC, the Client shall use its best efforts to:
- (a) Assist the Consultant with obtaining work permits and such other documents as shall be necessary to enable the Consultant to perform the Services.
 - (b) Assist the Consultant with promptly obtaining, for the Experts and, if appropriate, their eligible dependents, all necessary entry and exit visas, residence permits,

exchange permits and any other documents required for their stay in the Client's country while carrying out the Services under the Contract.

- (c) Facilitate prompt clearance through customs of any property required for the Services and of the personal effects of the Experts and their eligible dependents.
- (d) Issue to officials, agents and representatives of the Government all such instructions and information as may be necessary or appropriate for the prompt and effective implementation of the Services.
- (e) Assist the Consultant and the Experts and any Sub-consultants employed by the Consultant for the Services with obtaining exemption from any requirement to register or obtain any permit to practice their profession or to establish themselves either individually or as a corporate entity in the Client's country according to the applicable law in the Client's country.
- (f) Assist the Consultant, any Sub-consultants and the Experts of either of them with obtaining the privilege, pursuant to the applicable law in the Client's country, of bringing into the Client's country reasonable amounts of foreign currency for the purposes of the Services or for the personal use of the Experts and of withdrawing any such amounts as may be earned therein by the Experts in the execution of the Services.
- (g) Provide to the Consultant any such other assistance as may be specified in the **SCC**.

38. Access to Project Site

- 38.1. The Client warrants that the Consultant shall have, free of charge, unimpeded access to the project site in respect of which access is required for the performance of the Services. The Client will be responsible for any damage to the project site or any property thereon resulting from such access and will indemnify the Consultant and each of the experts in respect of liability for any such damage, unless such damage is caused by the willful default or negligence of the Consultant or any Sub-consultants or the Experts of either of them.

39. Change in the Applicable Law Related to Taxes and Duties

- 39.1. If, after the date of this Contract, there is any change in the applicable law in the Client's country with respect to taxes and duties which increases or decreases the cost incurred by the Consultant in performing the Services, then the remuneration and reimbursable expenses otherwise payable to the Consultant under this Contract shall be increased or

decreased accordingly by agreement between the Parties hereto, and corresponding adjustments shall be made to the Contract price amount specified in Clause GCC 39.1

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|--|-------|---|
| 40. Services, Facilities and Property of the Client | 40.1. | The Client shall make available to the Consultant and the Experts, for the purposes of the Services and free of any charge, the services, facilities and property described in the Terms of Reference (Appendix A) at the times and in the manner specified in said Appendix A . |
| 41. Counterpart Personnel | 41.1. | The Client shall make available to the Consultant free of charge such professional and support counterpart personnel, to be nominated by the Client with the Consultant's advice, if specified in Appendix A . |
| | 41.2. | Professional and support counterpart personnel, excluding Client's liaison personnel, shall work under the exclusive direction of the Consultant. If any member of the counterpart personnel fails to perform adequately any work assigned to such member by the Consultant that is consistent with the position occupied by such member, the Consultant may request the replacement of such member, and the Client shall not unreasonably refuse to act upon such request. |
| 42. Payment Obligation | 42.1. | In consideration of the Services performed by the Consultant under this Contract, the Client shall make such payments to the Consultant for the deliverables specified in Appendix A and in such manner as is provided by GCC F below. |

F. PAYMENTS TO THE CONSULTANT

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|-----------------------------|-------|--|
| 43. Contract Price | 43.1. | The Contract price is fixed and is set forth in the SCC . The Contract price breakdown is provided in Appendix C . |
| | 43.2. | Any change to the Contract price specified in Clause GCC 43.1 can be made only if the Parties have agreed to the revised scope of Services pursuant to Clause GCC 16 and have amended in writing the Terms of Reference in Appendix A . |
| 44. Taxes and Duties | 44.1. | The Consultant, Sub-consultants and Experts are responsible for meeting any and all tax liabilities arising out of the Contract unless it is stated otherwise in the SCC . |
| | 44.2. | As an exception to the above and as stated in the SCC , all local identifiable indirect taxes (itemized and finalized at Contract negotiations) are reimbursed to the Consultant or are paid by the Client on behalf of the Consultant. |

- 45. Currency of Payment** 45.1. Any payment under this Contract shall be made in the currency (ies) of the Contract.
- 46. Mode of Billing and Payment** 46.1. The total payments under this Contract shall not exceed the Contract price set forth in Clause GCC 43.1.
- 46.2. The payments under this Contract shall be made in lump-sum instalments against deliverables specified in **Appendix A**. The payments will be made according to the payment schedule stated in the **SCC**.
- 46.2.1 Advance payment: Unless otherwise indicated in the **SCC**, an advance payment shall be made against an advance payment bank guarantee acceptable to the Client in an amount (or amounts) and in a currency (or currencies) specified in the **SCC**. Such guarantee (i) is to remain effective until the advance payment has been fully set off, and (ii) is to be in the form set forth in **Appendix D**, or in such other form as the Client shall have approved in writing. The advance payments will be set off by the Client in equal portions against the lump-sum installments specified in the **SCC** until said advance payments have been fully set off.
- 46.2.2 The Lump-Sum Installment Payments. The Client shall pay the Consultant within sixty (60) days after the receipt by the Client of the deliverable(s) and the cover invoice for the related lump-sum installment payment. The payment can be withheld if the Client does not approve the submitted deliverable(s) as satisfactory in which case the Client shall provide comments to the Consultant within the same sixty (60) days period. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated.
- 46.2.3 The Final Payment. The final payment under this Clause shall be made only after the final report have been submitted by the Consultant and approved as satisfactory by the Client. The Services shall then be deemed completed and finally accepted by the Client. The last lump-sum installment shall be deemed approved for payment by the Client within ninety (90) calendar days after receipt of the final report by the Client unless the Client, within such ninety (90) calendar day period, gives written notice to the Consultant specifying in detail deficiencies in the Services, the final report. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated.
- 46.2.4 All payments under this Contract shall be made to the accounts of the Consultant specified in the **SCC**.

46.2.5 With the exception of the final payment under 46.2.3 above, payments do not constitute acceptance of the whole Services nor relieve the Consultant of any obligations hereunder.

- 47. Interest on Delayed Payments** 47.1. If the Client had delayed payments beyond fifteen (15) days after the due date stated in Clause GCC 46.2.2, interest shall be paid to the Consultant on any amount due by, not paid on, such due date for each day of delay at the annual rate stated in the SCC.

G. FAIRNESS AND GOOD FAITH

- 48. Good Faith** 48.1. The Parties undertake to act in good faith with respect to each other's rights under this Contract and to adopt all reasonable measures to ensure the realization of the objectives of this Contract.

H. SETTLEMENT OF DISPUTES

- 49. Amicable Settlement** 49.1. The Parties shall seek to resolve any dispute amicably by mutual consultation.
- 49.2. If either Party objects to any action or inaction of the other Party, the objecting Party may file a written Notice of Dispute to the other Party providing in detail the basis of the dispute. The Party receiving the Notice of Dispute will consider it and respond in writing within fourteen (14) days after receipt. If that Party fails to respond within fourteen (14) days, or the dispute cannot be amicably settled within fourteen (14) days following the response of that Party, Clause GCC 50.1 shall apply.
- 50. Dispute Resolution** 50.1. Any dispute between the Parties arising under or related to this Contract that cannot be settled amicably may be referred to by either Party to the adjudication/arbitration in accordance with the provisions specified in the SCC.

II. General Conditions

Attachment 1

Fraud and Corruption

(Text in this Attachment shall not be modified)

1. Purpose

1.1 The Bank's Anti-Corruption Guidelines and this annex apply with respect to procurement under Bank Investment Project Financing operations.

2. Requirements

2.1 The Bank requires that Borrowers (including beneficiaries of Bank financing); bidders (applicants/proposers), consultants, contractors and suppliers; any sub-contractors, sub-consultants, service providers or suppliers; any agents (whether declared or not); and any of their personnel, observe the highest standard of ethics during the procurement process, selection and contract execution of Bank-financed contracts, and refrain from Fraud and Corruption.

2.2 To this end, the Bank:

- a. Defines, for the purposes of this provision, the terms set forth below as follows:
 - i. "corrupt practice" is the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party;
 - ii. "fraudulent practice" is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain financial or other benefit or to avoid an obligation;
 - iii. "collusive practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;
 - iv. "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;
 - v. "obstructive practice" is:
 - (a) deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a Bank investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or
 - (b) acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under paragraph 2.2 e. below.

- b. Rejects a proposal for award if the Bank determines that the firm or individual recommended for award, any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/ or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;
- c. In addition to the legal remedies set out in the relevant Legal Agreement, may take other appropriate actions, including declaring misprocurement, if the Bank determines at any time that representatives of the Borrower or of a recipient of any part of the proceeds of the loan engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices during the procurement process, selection and/or execution of the contract in question, without the Borrower having taken timely and appropriate action satisfactory to the Bank to address such practices when they occur, including by failing to inform the Bank in a timely manner at the time they knew of the practices;
- d. Pursuant to the Bank's Anti-Corruption Guidelines and in accordance with the Bank's prevailing sanctions policies and procedures, may sanction a firm or individual, either indefinitely or for a stated period of time, including by publicly declaring such firm or individual ineligible (i) to be awarded or otherwise benefit from a Bank-financed contract, financially or in any other manner;¹ (ii) to be a nominated² sub-contractor, consultant, manufacturer or supplier, or service provider of an otherwise eligible firm being awarded a Bank-financed contract; and (iii) to receive the proceeds of any loan made by the Bank or otherwise to participate further in the preparation or implementation of any Bank-financed project;
- e. Requires that a clause be included in bidding/request for proposals documents and in contracts financed by a Bank loan, requiring (i) bidders (applicants/proposers), consultants, contractors, and suppliers, and their sub-contractors, sub-consultants, service providers, suppliers, agents, personnel, permit the Bank to inspect³ all accounts, records and other documents relating to the procurement process, selection and/or contract execution, and to have them audited by auditors appointed by the Bank.

¹ For the avoidance of doubt, a sanctioned party's ineligibility to be awarded a contract shall include, without limitation, (i) applying for pre-qualification, expressing interest in a consultancy, and bidding, either directly or as a nominated sub-contractor, nominated consultant, nominated manufacturer or supplier, or nominated service provider, in respect of such contract, and (ii) entering into an addendum or amendment introducing a material modification to any existing contract.

² A nominated sub-contractor, nominated consultant, nominated manufacturer or supplier, or nominated service provider (different names are used depending on the particular bidding document) is one which has been: (i) included by the bidder in its pre-qualification application or bid because it brings specific and critical experience and know-how that allow the bidder to meet the qualification requirements for the particular bid; or (ii) appointed by the Borrower.

³ Inspections in this context usually are investigative (i.e., forensic) in nature. They involve fact-finding activities undertaken by the Bank or persons appointed by the Bank to address specific matters related to investigations/audits, such as evaluating the veracity of an allegation of possible Fraud and Corruption, through the appropriate mechanisms. Such activity includes but is not limited to: accessing and examining a firm's or individual's financial records and information, and making copies thereof as relevant; accessing and examining any other documents, data and information (whether in hard copy or electronic format) deemed relevant for the investigation/audit, and making copies thereof as relevant; interviewing staff and other relevant individuals; performing physical inspections and site visits; and obtaining third party verification of information.

III. Special Conditions of Contract

[Notes in brackets are for guidance purposes only and should be deleted in the final text of the signed contract]

Number of GC Clause	Amendments of, and Supplements to, Clauses in the General Conditions of Contract
1.1(a)	The Contract shall be construed in accordance with the law of Democratic Socialist Republic of Sri Lanka.
4.1	The language is: English
6.1 and 6.2	The addresses are: Client : Project Director - Climate Resilience Multi-Phase Programmatic Approach No 11, Jawatta Road, Colombo 05, Sri Lanka Attention : R.B. Bandula Sirimal - Project Director Facsimile : +9411-2058451 E-mail (where permitted): pdcresmpa@gmail.com / Consultant : _____ Attention : _____ Facsimile : _____ E-mail (where permitted) : _____
8.1	<i>[If the Consultant consists only of one entity, state “N/A”; OR If the Consultant is a Joint Venture consisting of more than one entity, the name of the JV member whose address is specified in Clause SCC6.1 should be inserted here.]</i> The Lead Member on behalf of the JV is _____ _____ <i>[insert name of the member]</i>
	Single Entity: <i>If the Consultant consists of only one entity, state “N/A” for all other categories below.</i> Name of Single Entity: _____ <i>[insert name of the entity]</i> Address: _____ <i>[insert address as specified in Clause SCC6.1]</i> Joint Venture (JV):

	<i>If the Consultant is a Joint Venture consisting of more than one entity, list all JV members and designate the Lead Member responsible for contractual obligations.</i> <i>Lead Member on Behalf of the JV:</i> _____ [insert name of the member] <i>Address of Lead Member:</i> _____ <i>[insert address as specified in Clause SCC6.1]</i> <i>Other JV Members</i> <i>Member 1:</i> _____ [insert name and address] <i>Member 2:</i> _____ [insert name and address] <i>[Add additional members as needed]</i> <i>The Lead Member shall have the authority to bind the JV and shall be the primary point of contact with the Client. A copy of the JV agreement outlining roles, responsibilities, and liabilities of each member shall be submitted with the Proposal.</i> Sub-Consultant(s): <i>If the Consultant engages sub-consultants for specific tasks, list all sub-consultants and their roles.</i> <i>Sub-Consultant 1:</i> _____ [insert name, address, and role] <i>Sub-Consultant 2:</i> _____ [insert name, address, and role] <i>[Add additional sub-consultants as needed]</i> <i>The Consultant remains fully responsible for the performance of all sub-consultants.</i>
9.1	The Authorized Representatives are: For the Client: [name, title] _____ For the Consultant: [name, title] _____
11.1	The effectiveness conditions are the following N/A
12.1	Termination of Contract for Failure to Become Effective: The time period shall be one month.
13.1	Commencement of Services: The number of days shall be fourteen (14) days from the date of Notification of Award.

	Confirmation of Key Experts' availability to start the Assignment shall be submitted to the Client in writing as a written statement signed by each Key Expert.
14.1	Expiration of Contract: The time period shall be fifty-six (56) weeks
20.1	The Consultant, including its Sub-consultants/suppliers/service providers shall take all technical and organizational measures necessary to protect the information technology systems and data used in connection with the Contract. Without limiting the foregoing, the Consultant, including its Sub-consultants/ suppliers/ service providers, shall use all reasonable efforts to establish, maintain, implement and comply with, reasonable information technology, information security, cyber security and data protection controls, policies and procedures, including oversight, access controls, encryption, technological and physical safeguards and business continuity/disaster recovery and security plans that are designed to protect against and prevent breach, destruction, loss, unauthorized distribution, use, access, disablement, misappropriation or modification, or other compromise or misuse of or relating to any information technology system or data used in connection with the Contract.
21 b.	The Client reserves the right to determine on a case-by-case basis whether the Consultant should be disqualified from providing goods, works or non-consulting services due to a conflict of a nature described in Clause GCC 21.1.3 Yes

23.1

The following limitation of the Consultant's Liability towards the Client can be subject to the Contract's negotiations:

"Limitation of the Consultant's Liability towards the Client:

(a) Except in the case of gross negligence or willful misconduct on the part of the Consultant or on the part of any person or a firm acting on behalf of the Consultant in carrying out the Services, the Consultant, with respect to damage caused by the Consultant to the Client's property, shall not be liable to the Client:

(i) for any indirect or consequential loss or damage; and

(ii) for any direct loss or damage that exceeds [insert a multiplier, e.g.: one, two, three] times the total value of the Contract;

(b) This limitation of liability shall not

(i) affect the Consultant's liability, if any, for damage to Third Parties caused by the Consultant or any person or firm acting on behalf of the Consultant in carrying out the Services;

(ii) be construed as providing the Consultant with any limitation or exclusion from liability which is prohibited by the [insert "Applicable Law", if it is the law of the Client's country, or insert "applicable law in the Client's country", if the Applicable Law stated in Clause SCC1.1 (b) is different from the law of the Client's country].

[Notes to the Client and the Consultant: Any suggestions made by the Consultant in the Proposal to introduce exclusions/limitations of the Consultant's liability under the Contract should be carefully scrutinized by the Client and discussed with the Bank prior to accepting any changes to what was included in the issued RFP. In this regard, the Parties should be aware of the Bank's policy on this matter which is as follows:

To be acceptable to the Bank, any limitation of the Consultant's liability should at the very least be reasonably related to (a) the damage the Consultant might potentially cause to the Client, and (b) the Consultant's ability to pay compensation using its own assets and reasonably obtainable insurance coverage. The Consultant's liability shall not be limited to less than a multiplier of the total payments to the Consultant under the Contract for remuneration and reimbursable expenses. A statement to the effect that the Consultant is liable only for the re-performance of faulty Services is not acceptable to the Bank. Also, the Consultant's liability should never be limited for loss or damage caused by the Consultant's gross negligence or willful misconduct.

	<i>The Bank does not accept a provision to the effect that the Client shall indemnify and hold harmless the Consultant against Third Party claims, except, of course, if a claim is based on loss or damage caused by a default or wrongful act of the Client to the extent permissible by the law applicable in the Client's country.]</i>
24.1	The insurance coverage against the risks shall be as follows: (a) Professional liability insurance, with a minimum coverage of <i>the total ceiling amount of the Contract</i>; (b) Third Party liability insurance, with a minimum coverage of in accordance with the applicable law in the Client's country; (c) employer's liability and workers' compensation insurance in respect of the experts and Sub-consultants in accordance with the relevant provisions of the applicable law in the Client's country, as well as, with respect to such Experts, any such life, health, accident, travel or other insurance as may be appropriate; and
27.2	The Consultant shall treat all system development sources, including but not limited to source code, system architecture, technical documentation, algorithms, data models, and system blueprints, as strictly confidential. The Consultant shall not disclose, reproduce, distribute, or otherwise make available any part of these proprietary assets to any third party without the prior written consent of the Client. Any unauthorized access, transmission, or use of such confidential information shall constitute a material breach of this agreement. <i>[OR]</i> [The Client shall not use these <i>[insert what applies...documents and software.....]</i> for purposes unrelated to this Contract without the prior written approval of the Consultant.] <i>[OR]</i> [Neither Party shall use these <i>[insert what applies...documents and software.....]</i> for purposes unrelated to this Contract without the prior written approval of the other Party.]

43.1	The Contract price is: _____ <i>[insert amount and currency for each currency as applicable] [indicate: inclusive or exclusive] of local indirect taxes.</i> VAT in respect of this Contract for the Services provided by the Consultant shall be reimbursed by the Client to the Consultant.
44.1 and 44.2	<i>[The Bank leaves it to the Client to decide whether the Consultant (i) should be exempted from indirect local tax, or (ii) should be reimbursed by the Client for any such tax they might have to pay (or that the Client would pay such tax on behalf of the Consultant)]</i> The Client warrants that <i>[choose one applicable option consistent with the ITC 16.3 and the outcome of the Contract’s negotiations (Form FIN-2, part B “Indirect Local Tax – Estimates”):</i> <i>If ITC16.3 indicates a tax exemption status, include the following: “the Consultant, the Sub-consultants and the Experts shall be exempt from”</i> <i>OR</i> <i>If ITC16.3 does not indicate the exemption and, depending on whether the Client shall pay the withholding tax or the Consultant has to pay, include the following:</i> “the Client shall pay on behalf of the Consultant, the Sub-consultants and the Experts,” OR “the Client shall reimburse the Consultant, the Sub-consultants and the Experts”] any indirect taxes, duties, fees, levies and other impositions imposed, under the applicable law in the Client’s country, on the Consultant, the Sub-consultants and the Experts in respect of: (a) any payments whatsoever made to the Consultant, Sub-consultants and the Experts (other than nationals or permanent residents of the Client’s country), in connection with the carrying out of the Services; (b) any equipment, materials and supplies brought into the Client’s country by the Consultant or Sub-consultants for the purpose of carrying out the Services and which, after having been brought into such territories, will be subsequently withdrawn by them; (c) any equipment imported for the purpose of carrying out the Services and paid for out of funds provided by the Client and which is treated as property of the Client; (d) any property brought into the Client’s country by the Consultant, any Sub-consultants or the Experts (other than nationals or

	permanent residents of the Client’s country), or the eligible dependents of such experts for their personal use and which will subsequently be withdrawn by them upon their respective departure from the Client’s country, provided that: (i) the Consultant, Sub-consultants and experts shall follow the usual customs procedures of the Client’s country in importing property into the Client’s country; and (ii) if the Consultant, Sub-consultants or Experts do not withdraw but dispose of any property in the Client’s country upon which customs duties and taxes have been exempted, the Consultant, Sub-consultants or Experts, as the case may be, (a) shall bear such customs duties and taxes in conformity with the regulations of the Client’s country, or (b) shall reimburse them to the Client if they were paid by the Client at the time the property in question was brought into the Client’s country.																																	
46.2	The payment schedule: <table><tr><th>No</th><th>Name of the Deliverable</th><th>Payment % from the Contract Price*</th></tr><tr><td>1</td><td>Advance Payment (Shall be paid against the submission of a bank guarantee)</td><td>20</td></tr><tr><td>2</td><td>Interim Payments</td><td></td></tr><tr><td>2.1</td><td>Inception report including detailed project schedule</td><td>5</td></tr><tr><td>2.2</td><td>Conceptual framework including technology architecture and Schematic sketches with governance, Contract Management</td><td>10</td></tr><tr><td>2.3</td><td>Design Development and Build up the DSS software ICT support.</td><td>15</td></tr><tr><td>2.4</td><td>Review the communications network with early warning systems for integration with DSS</td><td>10</td></tr><tr><td>2.5</td><td>Data/ Information Management (Data collection, entry, validation, and data banking)</td><td>10</td></tr><tr><td>2.6</td><td>Operationalized the DSS and Testing</td><td>10</td></tr><tr><td>2.7</td><td>Completion Reports including Operational Manuals, source codes and as build drawing</td><td>10</td></tr><tr><td>3</td><td>Support and Maintenance for 3 years <u>Note:</u> <u>Payment will be made of quarterly basis</u></td><td>30</td></tr></table>	No	Name of the Deliverable	Payment % from the Contract Price*	1	Advance Payment (Shall be paid against the submission of a bank guarantee)	20	2	Interim Payments		2.1	Inception report including detailed project schedule	5	2.2	Conceptual framework including technology architecture and Schematic sketches with governance, Contract Management	10	2.3	Design Development and Build up the DSS software ICT support.	15	2.4	Review the communications network with early warning systems for integration with DSS	10	2.5	Data/ Information Management (Data collection, entry, validation, and data banking)	10	2.6	Operationalized the DSS and Testing	10	2.7	Completion Reports including Operational Manuals, source codes and as build drawing	10	3	Support and Maintenance for 3 years <u>Note:</u> <u>Payment will be made of quarterly basis</u>	30
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46.2.1	The following provisions shall apply to the advance payment and the advance bank payment guarantee: (1) An advance payment [of 20% from the total amount in foreign currency] [and of 20% from the total amount in local currency] shall be made within 14 days after the receipt of an advance bank payment guarantee by the Client. The advance payment will be set off by the Client in equal portions against deliverables 2.1 to 2.6. (2) The advance bank payment guarantee shall be in the amount and in the currency of the currency(ies) of the advance payment. (3) The bank guarantee will be released when the advance payment has been fully set off.
46.2.4	The accounts are: for foreign currency: <i>[insert account]</i>. for local currency: <i>[insert account]</i>.
47.1	The interest rate shall be calculated from the date by which the payment should have been made up to the date when delayed payment is made at the prevailing rate and interest of 1% over the standing lending facility rate (SLFR) by the Central Bank.
50.1	Disputes shall be settled by arbitration in accordance with the following provisions: 1. <u>Selection of Arbitrators.</u> Each dispute submitted by a Party to arbitration shall be heard by a sole arbitrator or an arbitration panel composed of three (3) arbitrators, in accordance with the following provisions: (a) Where the Parties agree that the dispute concerns a technical matter, they may agree to appoint a sole arbitrator or, failing agreement on the identity of such sole arbitrator within thirty (30) days after receipt by the other Party of the proposal of a name for such an appointment by the Party who initiated the proceedings, either Party may apply to the Federation Internationale des Ingenieurs-Conseil (FIDIC) of Lausanne, Switzerland for a list of not fewer than five (5) nominees and, on receipt of such list, the Parties shall alternately strike names therefrom, and the last remaining nominee on the list shall be the sole arbitrator for the matter in dispute. If the last remaining nominee has not been determined in this manner within sixty (60) days of the date of the list, the Federation Internationale des Ingenieurs-Conseil (FIDIC) of Lausanne, Switzerland shall appoint, upon the request of either Party and from such list or otherwise, a sole arbitrator for the matter in dispute.

	(b) Where the Parties do not agree that the dispute concerns a technical matter, the Client and the Consultant shall each appoint one (1) arbitrator, and these two arbitrators shall jointly appoint a third arbitrator, who shall chair the arbitration panel. If the arbitrators named by the Parties do not succeed in appointing a third arbitrator within thirty (30) days after the latter of the two (2) arbitrators named by the Parties has been appointed, the third arbitrator shall, at the request of either Party, be appointed by the International Chamber of Commerce, Paris. (c) If, in a dispute subject to paragraph (b) above, one Party fails to appoint its arbitrator within thirty (30) days after the other Party has appointed its arbitrator, the Party which has named an arbitrator may apply to the International Chamber of Commerce, Paris to appoint a sole arbitrator for the matter in dispute, and the arbitrator appointed pursuant to such application shall be the sole arbitrator for that dispute.
	2. <u>Rules of Procedure.</u> Except as otherwise stated herein, arbitration proceedings shall be conducted in accordance with the rules of procedure for arbitration of the United Nations Commission on International Trade Law (UNCITRAL) as in force on the date of this Contract. 3. <u>Substitute Arbitrators.</u> If for any reason an arbitrator is unable to perform his/her function, a substitute shall be appointed in the same manner as the original arbitrator. 4. <u>Nationality and Qualifications of Arbitrators.</u> The sole arbitrator or the third arbitrator appointed pursuant to paragraphs 1(a) through 1(c) above shall be an internationally recognized legal or technical expert with extensive experience in relation to the matter in dispute and shall not be a national of the Consultant's home country <i>[If the Consultant consists of more than one entity, add: or of the home country of any of their members or Parties]</i> or of the Government's country. For the purposes of this Clause, "home country" means any of: (a) the country of incorporation of the Consultant <i>[If the Consultant consists of more than one entity, add: or of any of their members or Parties];</i> or (b) the country in which the Consultant's [or any of their members' or Parties'] principal place of business is located; or (c) the country of nationality of a majority of the Consultant's [or of any members' or Parties'] shareholders; or

	(d) the country of nationality of the Sub-consultants concerned, where the dispute involves a subcontract.
	5. <u>Miscellaneous</u>. In any arbitration proceeding hereunder: (a) proceedings shall, unless otherwise agreed by the Parties, be held in Singapore; (b) the English language shall be the official language for all purposes; and (c) the decision of the sole arbitrator or of a majority of the arbitrators (or of the third arbitrator if there is no such majority) shall be final and binding and shall be enforceable in any court of competent jurisdiction, and the Parties hereby waive any objections to or claims of immunity in respect of such enforcement.

IV. Appendices

APPENDIX A – TERMS OF REFERENCE

[This Appendix shall include the final Terms of Reference (TORs) worked out by the Client and the Consultant during the negotiations; dates for completion of various tasks; location of performance for different tasks; detailed reporting requirements and list of deliverables against which the payments to the Consultant will be made; Client's input, including counterpart personnel assigned by the Client to work on the Consultant's team; specific tasks or actions that require prior approval by the Client.]

Insert the text based on the Section 7 (Terms of Reference) of the ITC in the RFP and modified based on the Forms TECH-1 through TECH-5 of the Consultant's Proposal. Highlight the changes to Section 7 of the RFP]

.....

APPENDIX B - KEY EXPERTS

[Insert a table based on Form TECH-6 of the Consultant's Technical Proposal and finalized at the Contract's negotiations. Attach the CVs (updated and signed by the respective Key Experts) demonstrating the qualifications of Key Experts.]

.....

APPENDIX C – BREAKDOWN OF CONTRACT PRICE

[Insert the table with the unit rates to arrive at the breakdown of the lump-sum price. The table shall be based on [Form FIN-3 and FIN-4] of the Consultant's Proposal and reflect any changes agreed at the Contract negotiations, if any. The footnote shall list such changes made to [Form FIN-3 and FIN-4] at the negotiations or state that none has been made.]

When the Consultant has been selected under Quality-Based Selection method, also add the following:

“The agreed remuneration rates shall be stated in the attached Model Form I. This form shall be prepared on the basis of Appendix A to Form FIN-3 of the RFP “Consultants’ Representations regarding Costs and Charges” submitted by the Consultant to the Client prior to the Contract’s negotiations.

Should these representations be found by the Client (either through inspections or audits pursuant to Clause GCC 25.2 or through other means) to be materially incomplete or inaccurate, the Client shall be entitled to introduce appropriate modifications in the remuneration rates affected by such materially incomplete or inaccurate representations. Any such modification shall have retroactive effect and, in case remuneration has already been paid by the Client before any such modification, (i) the Client shall be entitled to offset any excess payment against the next monthly payment to the Consultants, or (ii) if there are no further payments to be made by the Client to the Consultants, the Consultants shall reimburse to the Client any excess payment within thirty (30) days of receipt of a written claim of the Client. Any such claim by the Client for reimbursement must be made within twelve (12) calendar months after receipt by the Client of a final report and a final statement approved by the Client in accordance with Clause GCC 46.2.3 of this Contract.”]

Model Form I

Breakdown of Agreed Fixed Rates in Consultant's Contract

We hereby confirm that we have agreed to pay to the Experts listed, who will be involved in performing the Services, the basic fees and away from the home office allowances (if applicable) indicated below:

(Expressed in [insert name of currency])*

Experts		1	2	3	4	5	6	7	8
Name	Position	Basic Remuneration rate per Working Month/Day/Year	Social Charges ¹	Overhead ¹	Subtotal	Profit ²	Away from Home Office Allowance	Agreed Fixed Rate per Working Month/Day/Hour	Agreed Fixed Rate per Working Month/Day/Hour ¹
Home Office									
Work in the Client's Country									

1 Expressed as percentage of 1

2 Expressed as percentage of 4

* If more than one currency, add a table

Signature

Date

Name and Title: _____

APPENDIX D - FORM OF ADVANCE PAYMENTS GUARANTEE

[See Clause GCC 42.2.1 and SCC 46.2.1]

{Guarantor letterhead or SWIFT identifier code}

Bank Guarantee for Advance Payment

Guarantor: _____ *[insert commercial Bank's Name, and Address of Issuing Branch or Office]*

Beneficiary: _____ *[insert Name and Address of Client]*

Date: _____ *[insert date]* _____

ADVANCE PAYMENT GUARANTEE No.: _____ *[insert number]* _____

We have been informed that _____ *[name of Consultant or a name of the Joint Venture, same as appears on the signed Contract]* (hereinafter called "the Consultant") has entered into Contract No. _____ *[reference number of the contract]* dated _____ *[insert date]* with the Beneficiary, for the provision of _____ *[brief description of Services]* (hereinafter called "the Contract").

Furthermore, we understand that, according to the conditions of the Contract, an advance payment in the sum of _____ *[insert amount in figures]* (_____) *[amount in words]* is to be made against an advance payment guarantee.

At the request of the Consultant, we, as Guarantor, hereby irrevocably undertake to pay the Beneficiary any sum or sums not exceeding in total an amount of _____ *[amount in figures]* (_____) *[amount in words]*¹ upon receipt by us of the Beneficiary's complying demand supported by the Beneficiary's a written statement, whether in the demand itself or in a separate signed document accompanying or identifying the demand, stating that the Consultant is in breach of its obligation under the Contract because the Consultant:

- (a) has failed to repay the advance payment in accordance with the Contract conditions, specifying the amount which the Consultant has failed to repay;
- (b) has used the advance payment for purposes other than toward providing the Services under the Contract.

It is a condition for any claim and payment under this guarantee to be made that the advance payment referred to above must have been received by the Consultant on their account number _____ at _____ *[name and address of bank]*.

The maximum amount of this guarantee shall be progressively reduced by the amount of the advance payment repaid by the Consultant as indicated in certified statements or invoices marked as "paid" by the Client which shall be presented to us. This guarantee shall expire, at

¹ The Guarantor shall insert an amount representing the amount of the advance payment and denominated either in the currency(ies) of the advance payment as specified in the Contract, or in a freely convertible currency acceptable to the Client.

the latest, upon our receipt of the payment certificate or paid invoice indicating that the Consultant has made full repayment of the amount of the advance payment, or on the __ day of [month], [year],² whichever is earlier. Consequently, any demand for payment under this guarantee must be received by us at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees (URDG) 2010 revision, ICC Publication No. 758.

[signature(s)]

{Note: All italicized text is for indicative purposes only to assist in preparing this form and shall be deleted from the final product.}

² Insert the expected expiration date. In the event of an extension of the time for completion of the Contract, the Client would need to request an extension of this guarantee from the Guarantor. Such request must be in writing and must be made prior to the expiration date established in the guarantee. In preparing this guarantee, the Client might consider adding the following text to the form, at the end of the penultimate paragraph: "The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed [six months][one year], in response to the Client's written request for such extension, such request to be presented to the Guarantor before the expiry of the guarantee."

APPENDIX E - CODE OF CONDUCT FOR EXPERTS

**APPENDIX F - SEXUAL EXPLOITATION AND ABUSE (SEA)
AND/OR SEXUAL HARASSMENT (SH) PERFORMANCE
DECLARATION FOR SUB-CONSULTANTS**

*[The following table shall be filled in for the Consultant, each member of a Joint Venture
and each Sub-consultant proposed by the Consultant]*

Consultant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's or Sub-consultant's Name: *[insert full name]*

RFP No. and title: *[insert RFP number and title]*

Page *[insert page number]* of *[insert total number]* pages

SEA and/or SH Declaration
We: ☐ (a) have not been subject to disqualification by the Bank for non-compliance with SEA/ SH obligations ☐ (b) are subject to disqualification by the Bank for non-compliance with SEA/ SH obligations ☐ (c) had been subject to disqualification by the Bank for non-compliance with SEA/ SH obligations. An arbitral award on the disqualification case has been made in our favor.
<i>[If (c) above is applicable, attach evidence of an arbitral award reversing the findings on the issues underlying the disqualification.]</i>

PART III

Section 9. Notification of Intention to Award and Beneficial Ownership Forms

Notification of Intention to Award

[This Notification of Intention to Award shall be sent to each Consultant whose Financial Proposal was opened. Send this Notification to the authorized representative of the Consultant].

For the attention of Consultant's authorized representative

Name: *[insert authorized representative's name]*

Address: *[insert authorized representative's address]*

Telephone/Fax numbers: *[insert authorized representative's telephone/fax numbers]*

Email Address: *[insert authorized representative's email address]*

[IMPORTANT: insert the date that this Notification is transmitted to all Consultants. The Notification must be sent to all Consultants simultaneously. This means on the same date and as close to the same time as possible.]

DATE OF TRANSMISSION: This Notification is sent by: *[email/fax]* on *[date]* (local time)

Notification of Intention to Award

Client: *[insert the name of the Client]*

Contract title: *[insert the name of the contract]*

Country: *[insert country where RFP is issued]*

Loan No. /Credit No. /Grant No.: *[insert reference number for loan/credit/grant]*

RFP No: *[insert RFP reference number from Procurement Plan]*

This Notification of Intention to Award (Notification) notifies you of our decision to award the above contract. The transmission of this Notification begins the Standstill Period. During the Standstill Period you may:

- a) request a debriefing in relation to the evaluation of your Proposal, and/or
- b) submit a Procurement-related Complaint in relation to the decision to award the contract.

1. The successful Consultant

Name: *[insert name of successful Consultant]*

Address: *[insert address of the successful Consultant]*

Contract price: *[insert contract price of the successful Consultant]*

- 2. Short listed Consultants** *[INSTRUCTIONS: insert names of all short listed Consultants and indicate which Consultants submitted Proposals. Where the selection method requires it, state the price offered by each Consultant as read out, and as evaluated. Include overall technical scores and scores assigned for each criterion and sub-criterion. Select Full Technical Proposal (FTP) or Simplified Technical Proposal (STP) in the last column below.]*

Name of Consultant	Submitted Proposal	[use for FTP] Overall technical scores	[use for STP] Overall technical scores	Financial Proposal price (if applicable)	Evaluated Financial Proposal price (if applicable)	Combined score and ranking (if applicable)
[insert name]	[yes/no]	Criterion (i): [insert score] Criterion (ii): [insert score] Criterion (iii): [insert score] <u>Sub-criterion a:</u> 1: [insert score] 2: [insert score] 3: [insert score] <u>Sub-criterion b:</u> 1: [insert score] 2: [insert score] 3: [insert score] <u>Sub-criterion c:</u> 1: [insert score] 2: [insert score] 3: [insert score] Criterion (iv): [insert score] Criterion (v): [insert score] Total score: [insert score]	Criterion (i): [insert score] Criterion (ii): [insert score] <u>Sub-criterion a:</u> [insert score] <u>Sub-criterion b:</u> [insert score] <u>Sub-criterion c:</u> [insert score] Total score: [insert score]	[Proposal price]	[evaluated price]	<u>Combined Score:</u> [combined score] <u>Ranking:</u> [ranking]
[insert name]	[yes/no]	Criterion (i): [insert score] Criterion (ii): [insert score] Criterion (iii): [insert score] <u>Sub-criterion a:</u> 1: [insert score]	Criterion (i): [insert score] Criterion (ii): [insert score] <u>Sub-criterion a:</u> [insert score] <u>Sub-criterion b:</u> [insert score]	[Proposal price]	[evaluated price]	<u>Combined Score:</u> [combined score] <u>Ranking:</u> [ranking]

Name of Consultant	Submitted Proposal	[use for FTP] Overall technical scores	[use for STP] Overall technical scores	Financial Proposal price (if applicable)	Evaluated Financial Proposal price (if applicable)	Combined score and ranking (if applicable)
		2: [insert score] 3: [insert score] <u>Sub-criterion b:</u> 1: [insert score] 2: [insert score] 3: [insert score] <u>Sub-criterion c:</u> 1: [insert score] 2: [insert score] 3: [insert score] Criterion (iv): [insert score] Criterion (v): [insert score] Total score: [insert score]	<u>Sub-criterion c:</u> [insert score] Total score: [insert score]			
[insert name]	[yes/no]	Criterion (i): [insert score] Criterion (ii): [insert score] Criterion (iii): [insert score] <u>Sub-criterion a:</u> 1: [insert score] 2: [insert score] 3: [insert score] <u>Sub-criterion b:</u> 1: [insert score] 2: [insert score] 3: [insert score] <u>Sub-criterion c:</u> 1: [insert score] 2: [insert score] 3: [insert score]	Criterion (i): [insert score] Criterion (ii): [insert score] <u>Sub-criterion a:</u> [insert score] <u>Sub-criterion b:</u> [insert score] <u>Sub-criterion c:</u> [insert score] Total score: [insert score]	[Proposal price]	[evaluated price]	<u>Combined Score:</u> [combined score] <u>Ranking:</u> [ranking]

Name of Consultant	Submitted Proposal	[use for FTP] Overall technical scores	[use for STP] Overall technical scores	Financial Proposal price (if applicable)	Evaluated Financial Proposal price (if applicable)	Combined score and ranking (if applicable)
		Criterion (iv): <i>[insert score]</i> Criterion (v): <i>[insert score]</i> Total score: <i>[insert score]</i>				
<i>[insert name]</i>	...					
...	...					

3. Reason/s why your Proposal was unsuccessful *[Delete if the combined score already reveals the reason]*

[INSTRUCTIONS; State the reason/s why this Consultant's Proposal was unsuccessful. Do NOT include: (a) a point by point comparison with another Consultant's Proposal or (b) information that is marked confidential by the Consultant in its Proposal.]

4. How to request a debriefing *[This applies only if your proposal was unsuccessful as stated under point (3) above]*

DEADLINE: The deadline to request a debriefing expires at midnight on *[insert date]* (local time).

You may request a debriefing in relation to the results of the evaluation of your Proposal. If you decide to request a debriefing your written request must be made within three (3) Business Days of receipt of this Notification of Intention to Award.

Provide the contract name, reference number, name of the Consultant, contact details; and address the request for debriefing as follows:

Attention: *[insert full name of person, if applicable]*

Title/position: *[insert title/position]*

Agency: *[insert name of Client]*

Email address: *[insert email address]*

Fax number: *[insert fax number] delete if not used*

If your request for a debriefing is received within the 3 Business Days deadline, we will provide the debriefing within five (5) Business Days of receipt of your request. If we are unable to provide the debriefing within this period, the Standstill Period shall be extended by five (5) Business Days after the date that the debriefing is provided. If this happens, we will notify you and confirm the date that the extended Standstill Period will end.

The debriefing may be in writing, by phone, video conference call or in person. We shall promptly advise you in writing how the debriefing will take place and confirm the date and time.

If the deadline to request a debriefing has expired, you may still request a debriefing. In this case, we will provide the debriefing as soon as practicable, and normally no later than fifteen (15) Business Days from the date of publication of the Contract Award Notice.

5. How to make a complaint

DEADLINE: The deadline for submitting a Procurement-related Complaint challenging the decision to award the contract expires on midnight, *[insert date]* (local time).

Provide the contract name, reference number, name of the Consultant, contact details; and address the Procurement-related Complaint as follows:

Attention: *[insert full name of person, if applicable]*

Title/position: *[insert title/position]*

Agency: *[insert name of Client]*

Email address: *[insert email address]*

Fax number: *[insert fax number]* ***delete if not used***

[At this point in the procurement process] [Upon receipt of this notification] you may submit a Procurement-related Complaint challenging the decision to award the contract. You do not need to have requested, or received, a debriefing before making this complaint. Your complaint must be submitted within the Standstill Period and received by us before the Standstill Period ends.

Further information:

For more information see the “Procurement Regulations for IPF Borrowers (Procurement Regulations) (Annex III).” You should read these provisions before preparing and submitting your complaint. In addition, the World Bank’s Guidance “How to make a Procurement-related Complaint” provides a useful explanation of the process, as well as a sample letter of complaint.

In summary, there are four essential requirements:

1. You must be an ‘interested party’. In this case, that means a Consultant who has submitted a Proposal in this selection process, and is the recipient of a Notification of Intention to Award.
2. The complaint can only challenge the decision to award the contract.
3. You must submit the complaint within the deadline stated above.
4. You must include, in your complaint, all of the information required by the Procurement Regulations (as described in Annex III).

6. Standstill Period

DEADLINE: The Standstill Period is due to end at midnight on *[insert date]* (local time).

The Standstill Period lasts ten (10) Business Days after the date of transmission of this Notification of Intention to Award.

The Standstill Period may be extended. This may happen where we are unable to provide a debriefing within the five (5) Business Day deadline. If this happens, we will notify you of the extension.

If you have any questions regarding this Notification, please do not hesitate to contact us.

On behalf of *[insert the name of the Client]*:

Signature: _____

Name: _____

Title/position: _____

Telephone: _____

Email: _____

Beneficial Ownership Disclosure Form

INSTRUCTIONS TO CONSULTANTS: DELETE THIS BOX ONCE YOU HAVE COMPLETED THE FORM

This Beneficial Ownership Disclosure Form ("Form") is to be completed by the successful Consultant. In case of joint venture, the Consultant must submit a separate Form for each member. The beneficial ownership information to be submitted in this Form shall be current as of the date of its submission.

For the purposes of this Form, a Beneficial Owner of a Consultant is any natural person who ultimately owns or controls the Consultant by meeting one or more of the following conditions:

- *directly or indirectly holding 25% or more of the shares*
- *directly or indirectly holding 25% or more of the voting rights*
- *directly or indirectly having the right to appoint a majority of the board of directors or equivalent governing body of the Consultant*

Request for Proposal reference No.: *[insert identification no]*

Name of the Assignment: *[insert name of the assignment]*

To: *[insert complete name of Client]*

In response to your notification of award dated *[insert date of notification of award]* to furnish additional information on beneficial ownership: *[select one option as applicable and delete the options that are not applicable]*

(i) we hereby provide the following beneficial ownership information.

Details of beneficial ownership

Identity of Beneficial Owner	Directly or indirectly holding 25% or more of the shares (Yes / No)	Directly or indirectly holding 25 % or more of the Voting Rights (Yes / No)	Directly or indirectly having the right to appoint a majority of the board of the directors or an equivalent governing body of the Consultant (Yes / No)
<i>[include full name (last, middle, first),</i>			

<i>nationality, country of residence]</i>			
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OR

(ii) *We declare that there is no Beneficial Owner meeting one or more of the following conditions:*

- directly or indirectly holding 25% or more of the shares
- directly or indirectly holding 25% or more of the voting rights
- directly or indirectly having the right to appoint a majority of the board of directors or equivalent governing body of the Consultant

OR

(iii) *We declare that we are unable to identify any Beneficial Owner meeting one or more of the following conditions. [If this option is selected, the Consultant shall provide explanation on why it is unable to identify any Beneficial Owner]*

- directly or indirectly holding 25% or more of the shares
- directly or indirectly holding 25% or more of the voting rights
- directly or indirectly having the right to appoint a majority of the board of directors or equivalent governing body of the Consultant]

Name of the Consultant: **[insert complete name of the Consultant]*

Name of the person duly authorized to sign the Proposal on behalf of the Consultant:
***[insert complete name of person duly authorized to sign the Proposal]*

Title of the person signing the Proposal: *[insert complete title of the person signing the Proposal]*

Signature of the person named above: *[insert signature of person whose name and capacity are shown above]*

Date signed *[insert date of signing]* **day of** *[insert month]*, *[insert year]*

* In the case of the Proposal submitted by a Joint Venture specify the name of the Joint Venture as Consultant. In the event that the Consultant is a joint venture, each reference to "Consultant" in the Beneficial Ownership Disclosure Form (including this Introduction thereto) shall be read to refer to the joint venture member.

** Person signing the Proposal shall have the power of attorney given by the Consultant. The power of attorney shall be attached with the Proposal Schedules.